

1 IN THE CIRCUIT COURT OF THE STATE OF OREGON
2 FOR THE COUNTY OF WASHINGTON
3

4 Case No.: 26LT03815

5 JIM WONG,

6 Plaintiff,

7 vs.

8 ASHLE' PENN,

9 Defendant, *In Propria Persona.*

DEFENDANT'S AMENDED ANSWER;
AFFIRMATIVE DEFENSES; AND
RENEWED MOTION TO DISMISS FOR
LACK OF SUBJECT MATTER
JURISDICTION
AND LACK OF STANDING

10 **SPECIAL APPEARANCE — DEFENDANT DOES NOT WAIVE JURISDICTIONAL DEFENSES**
11 **ORCP 21 A(1)(a), (b), (d), (e), (f), (g); ORCP 21 G(1), G(2), G(4)**
12 **AMENDMENT AS OF RIGHT PURSUANT TO ORCP 23 A**

13 *No responsive pleading has been served by Plaintiff. Defendant amends as of right. This Amended Answer*
14 *supersedes and replaces the original Answer filed March 2, 2026, and is construed to have been filed on that date.*
15 *ORCP 23 A; ORCP 25.*

16 COMES NOW Defendant Ashle' Penn (Defendant"), appearing specially and without waiving any
17 jurisdictional objection previously raised or preserved, and for her Amended Answer states as follows.

18 **I PRELIMINARY MATTERS**

19 **Amendment as of Right.** No responsive pleading has been served by Plaintiff. This Amended
20 Answer is filed as of right under ORCP 23 A. It supersedes and replaces the original Answer filed March 2,
21 2026, and relates back to that date for all purposes. ORCP 23 A; ORCP 25. This filing does not constitute
22 a general appearance and does not waive any jurisdictional defense previously raised. **Filing Under**
23 **Compulsion.** This Amended Answer is filed solely under compulsion of an oral deadline imposed during the
24 March 2, 2026 telephonic hearing. That deadline is objected to on three independent grounds. *First*, under
25 UTCR 21.080(2), the deadline for electronically filed documents is 11:59:59 p.m.; an oral instruction cannot
26 supersede a statewide rule. *Second*, the deadline was imposed after Plaintiff had dropped from the call —
27 the case had been called, Plaintiff was no longer present, and all substantive action was taken with only
28 Defendant on the line, in violation of the prohibition on ex parte proceedings. *Third*, Plaintiff communicated
the trial date to Defendant by text message at 10:19 a.m. — 27 minutes before the court called Defendant
at 10:46 a.m. — stating: "I spoke with the court regarding your motion to file documents, and the court
has scheduled a trial date for June 5, 2026." *See* Exhibit M. This sequence establishes that Plaintiff had ex
parte contact with the court concerning Defendant's pending motion before Defendant was contacted, and

1 that the trial date was set as a result of that communication. Oregon Code of Judicial Conduct Rule 2.9(A)
2 prohibits a judge from initiating, permitting, or considering ex parte communications concerning a pending
3 matter. This filing does not constitute, and shall not be construed as, a waiver of any jurisdictional defense
4 previously raised, including those in Defendant's Motions to Dismiss filed March 2 and March 5, 2026, each
5 incorporated herein by reference. ORCP 21 G(1), G(4). **Fee Objection.** Under ORS §105.130(3), the \$88
6 fee applies only upon a demand for trial. This filing is not a trial demand. Any fee assessed is paid under
7 protest and without waiver. **Trial Date Objection.** When this case was called on March 2, 2026, Plaintiff
8 was not present on the line. The court itself confirmed: We lost the plaintiff." ORS §105.137(3) mandates
9 that the court *shall* dismiss the action or enter judgment for the defendant upon the plaintiff's failure to
10 appear. That provision is non-discretionary. Defendant's presence was special and limited to jurisdictional
11 objections only and does not constitute a general appearance. The court was not authorized to set a trial
12 date over a pending, unresolved jurisdictional motion. ORCP 21 G(4); ORS §105.130(4). The docket reflects
13 the trial date order as entered by Judge Meisner on March 2, 2026; the trial is assigned to Judge Knaupp
14 on June 5, 2026. Defendant's Motion to Dismiss has not been ruled upon and remains pending before
15 this Court. **HAP Payments — Plaintiff's Admission.** Plaintiff's own written communications confirm
16 that he received HAP payments from WCHA throughout the tenancy. *See* Exhibit C. Those payments
17 are recorded as \$0.00 received in every row of Plaintiff's ledger. *See* Exhibit B. The discrepancy between
18 payments admitted and payments credited is not a bookkeeping error; it is the mechanism by which the
19 manufactured arrearage was constructed.

20 II PRESERVATION OF JURISDICTIONAL DEFENSES

21 Pursuant to ORCP 21 A(1) and ORCP 21 G, Defendant expressly preserves:

- 22 (a) Lack of subject matter jurisdiction — ORCP 21 A(1)(a); ORCP 21 G(4) (non-waivable; must be
23 raised at any time);
- 24 (b) Lack of jurisdiction over the person — ORCP 21 A(1)(b); ORCP 21 G(1);
- 25 (c) Insufficiency of summons and service of process — ORCP 21 A(1)(e); ORCP 21 G(1);
- 26 (d) Plaintiff lacks legal capacity and is not the real party in interest — ORCP 21 A(1)(d), (f); ORCP
27 21 G(2);
- 28 (e) Failure to state a claim upon which relief can be granted — ORCP 21 A(1)(g); and

(f) Failure to join an indispensable party — ORCP 21 A(1)(g); ORCP 26 A.

No defense is waived by joinder with other defenses. ORCP 21 A(2)(a).

III RENEWED MOTION TO DISMISS

A Defective Notice — No Subject Matter Jurisdiction (ORS §90.394(3); *Hickey v. Scott*, 370 Or 97 (2022))

The notice of termination states \$5,918.00 as the amount of rent owed. That figure is derived from a ledger that embeds \$2,220.00 in HOA fines and \$1,045.00 in late fees — neither of which constitutes rent” under ORS §90.100(38) — and applies the \$4,494.00 HRSN payment to November 2025 only, in violation of the mandatory chronological application order of ORS §90.220(9). The ledger also includes charges for November 2025 through January 2026, three months in which Defendant’s recertified tenant portion was \$0.00. *See* Exhibits B and G.

Late fees are independently prohibited from appearing in a termination notice. ORS §90.260(4) provides that a landlord may not include a late charge in a notice of termination for nonpayment of rent. The \$1,045.00 in late fees ($\95×11 months) appearing in Plaintiff’s ledger and incorporated into the noticed balance violates ORS §90.260(4) on its face. The inclusion of any prohibited charge in the noticed balance voids the notice under *Hickey v. Scott*, 370 Or 97, 100–101, 515 P3d 368 (2022), regardless of magnitude. There is no harmless-error exception. The corrected balance, derived from Plaintiff’s own ledger, is **\$1,345.00**:

Category	Amount	Authority
Legitimate tenant-portion rent, Feb. 2025–Oct. 2025 (9 months: $\$607 + 8 \times \654) — HAP payments recorded as \$0.00 received throughout despite Plaintiff’s admission of receipt	\$5,839.00	Exhibit B
<i>Less:</i> HRSN \$4,494.00 applied chronologically from Feb. 2025; exhausts mid-Aug. 2025 (\$617 of \$654, leaving \$37 Aug. remainder unpaid)	(\$4,494.00)	ORS §90.220(9)
Corrected balance (Aug. \$37 + Sep. \$654 + Oct. \$654)	\$1,345.00	
Charges improperly included in Plaintiff’s \$5,918.00 notice		
HOA fines/assessments (Jul. 2024–Apr. 2025, 8 months) — not rent’under ORS §90.100(41)(a); pass-through prohibited under ORS §90.302(1)	\$2,220.00	ORS §§90.100(41)(a), 90.302(1)
Late fees ($\$95 \times 11$ months) — prohibited in termination notice	\$1,045.00	ORS §90.260(4)
Nov. 2025–Jan. 2026 charges at \$0.00 tenant portion following recertification ($3 \times \$654$)	\$1,962.00	Exhibits G, H
HRSN misapplied to Nov. 2025 only instead of chronologically from Feb. 2025	\$4,494.00	ORS §90.220(9)
Total overstatement	\$4,573.00	

1 The notice overstates the amount owed by \$4,573.00 — approximately 77% — and is void under *Hickey*.
2 This Court lacks subject matter jurisdiction.¹

3 **B Wrong Plaintiff; Failure to State a Claim; Indispensable Party Not Joined (ORCP 21 A(1)(d),
(f), (g); ORS §105.130(4); ORS §63.165; ORCP 26 A)**

4 The lease identifies the lessor as **JWP WONG REAL ESTATE**, an Oregon limited liability
5 company. *See* Exhibit D. HAP payments from WCHA and the \$4,494.00 HRSN benefit were each paid
6 directly to JWP WONG REAL ESTATE — not to Jim Wong individually. *See* Exhibit G. Jim Wong
7 individually is not the real party in interest and lacks legal capacity to maintain this action. ORS §63.165
8 precludes an LLC member from asserting the LLC’s legal rights in his own name absent express authorization.
9 Jim Wong has produced no operating agreement, board resolution, or agency authorization. The LLC is an
10 indispensable party not joined. ORCP 26 A; ORCP 21 A(1)(g).

11 **Failure to state a claim arises on two independent grounds.** *First*, a plaintiff who is not
12 the real party in interest has no cognizable legal right to possession and therefore cannot state a claim for
13 restitution of the premises. ORS §105.130(4) requires that the action be brought by the landlord” — the
14 party with whom the tenant has a rental agreement, which is JWP WONG REAL ESTATE. *Second*, a
15 complaint premised on a termination notice that is void under ORS §90.394(3) and *Hickey* cannot state
16 a cognizable claim for possession; the void notice is the jurisdictional predicate for the entire action, and
17 without it there is no claim. ORCP 21 A(1)(g). Defendant requests dismissal without prejudice
18 as to the real-party defect, or substitution of JWP WONG REAL ESTATE with proof of agency authority
19 before further proceedings. The real-party defect runs against Plaintiff’s claim only and is not available to
20 Plaintiff as a shield against Defendant’s compulsory counterclaims. ORS §90.370(1)(a); ORCP 22 A.

21 **C Additional Grounds for Dismissal**

22 **Defective Service.** Service did not comply with ORCP 7 and ORS §105.135, depriving this Court
23 of personal jurisdiction over Defendant. ORCP 21 A(1)(e); ORCP 21 G(1). This objection was raised on
24 the record March 2, 2026 and is preserved.

25 **Failure to Cooperate with Rental Assistance.** ORS §90.395 independently requires dismissal where the
26 landlord failed to cooperate with the tenant’s rental assistance program. Plaintiff accepted both the HRSN

27 ¹Plaintiff’s January 21, 2026 email transmitting the ledger states: the HOA kindly agreed to temporarily suspend additional
28 fine HOA account.” *See* Exhibit C. This is a direct admission that HOA fine pass-throughs were within Plaintiff’s discretion
and control, not mandatory charges, and that Plaintiff knew they were not rent at the time he included them in the noticed
balance.

1 payment and monthly HAP payments from WCHA, then misapplied those funds to unlawful charges in
2 violation of ORS §90.220(9)'s mandatory payment application order, and filed this action claiming a balance
3 that does not reflect payments received. Accepting rental assistance and misapplying it to manufactured
4 charges is not cooperation within the meaning of ORS §90.395. Plaintiff's conduct also constitutes a breach
5 of the HAP contract between JWP WONG REAL ESTATE and WCHA under 24 CFR §982.451, and may
6 independently constitute an owner breach of contract under 24 CFR §982.453. Defendant will provide notice
7 to WCHA of these violations.

8 **Plaintiff's Non-Appearance; ORS §105.137(2).** When this case was called on March 2, 2026, Plaintiff
9 was not present on the line. The court confirmed: "We lost the Plaintiff." The court then proceeded to
10 take substantive action — setting a trial date, imposing an answer deadline, and overruling Defendant's
11 jurisdictional objection — with only Defendant on the line. ORS §105.137(2) is mandatory: upon Plaintiff's
12 failure to appear, the court *shall* dismiss or enter judgment for Defendant. The court's failure to apply
13 ORS §105.137(2) is preserved error. Plaintiff's 10:22 a.m. text message — sent 27 minutes before the
14 court called Defendant — confirms that Plaintiff had ex parte contact with the court regarding Defendant's
15 pending motion before Defendant was reached. *See* Exhibit M. Defendant's objection to the trial date was
16 stated on the record, overruled, and is preserved for appellate review. No trial date should have been set
17 while Defendant's jurisdictional motion remained pending and unresolved and after Plaintiff was not present
18 during the hearing. ORCP 21 G(4).

19 IV ANSWER AND DENIAL OF ALLEGATIONS

20 Without waiving any jurisdictional defense, Defendant responds to Plaintiff's Complaint as follows:

- 21 1. Defendant **Denies** that Plaintiff Jim Wong individually is entitled to possession of 17548 NW
22 Springville Rd #9, Portland, OR 97229.
- 23 2. Defendant **Denies** that the landlord of record is Jim Wong. The landlord of record is JWP WONG
24 REAL ESTATE, LLC.
- 25 3. Defendant **Denies** that she owes the amount stated in the notice of termination or Complaint.
- 26 4. Defendant **Denies** that the notice of termination was valid, legally sufficient, or properly served.
- 27 5. Defendant **Denies** each remaining allegation not specifically admitted herein.
- 28 6. Defendant **Admits** that Plaintiff Jim Wong is the titled owner of the unit.

V AFFIRMATIVE DEFENSES

This Answer is filed under court compulsion. This court-compelled filing does not constitute a voluntary general appearance. The Court is obligated to resolve the jurisdictional, standing and capacity questions first. All affirmative defenses and counterclaims are preserved for any subsequent proceeding in which jurisdiction is properly established.

A First Affirmative Defense — Defective Notice (ORS §90.394(3); *Hickey v. Scott*, 370 Or 97 (2022))

The notice overstates the amount of rent owed by \$4,573.00. With payments applied consistent with statutory requirements, any alleged balance would amount to \$1,345.00. Under *Hickey v. Scott*, 370 Or 97 (2022), any overstatement of the amount of rent owed voids the notice and deprives this Court of subject matter jurisdiction. *See* Section III(A), *supra*.

B Second Affirmative Defense — Misapplication of Payments; Unlawful Late Fees (ORS §90.220(9); ORS §90.260(4); ORS §90.395)

Plaintiff received HAP payments from WCHA each month and the \$4,494.00 HRSN benefit, yet applied those funds to HOA fees and late charges ahead of rent, in violation of ORS §90.220(9)'s mandatory payment application order. *See* Exhibits B and G. ORS §90.260(4) independently prohibits the inclusion of late charges in a termination notice for nonpayment of rent. The \$1,045.00 in late fees in Plaintiff's noticed balance violates ORS §90.260(4) regardless of whether the underlying late fee provision is otherwise valid. Correctly applied, the balance is \$1,345.00. Plaintiff's failure to cooperate with Defendant's rental assistance programs independently requires dismissal under ORS §90.395.

C Third Affirmative Defense — Zero Tenant Portion Following Recertification

Defendant recertified her income with WCHA in November 2025, reporting zero income, reducing her tenant portion to \$0.00 for November 2025, December 2025, and January 2026. *See* Exhibits G and H. Plaintiff's inclusion of \$1,962.00 for those three months independently overstates the noticed balance and voids the notice under *Hickey*.

D Fourth Affirmative Defense — Failure to Maintain Habitable Premises (ORS §90.320; ORS §90.360(2); ORS §90.370; ORS §90.380)

Plaintiff failed to maintain the premises in habitable condition as required by ORS §90.320. Defendant provided written notice of each of the following defects, each of which remained unresolved as of this filing:

(a) Drain fly infestation from plumbing defect. Reported November 16, 2023; unresolved as of

1 this filing — approximately **28 months**. ORS §90.320(1)(a)(b)(e)(f) (plumbing facilities in good
2 working order). *See* Exhibit C.

3 (b) **Missing window screens**. Requested July 2023; unresolved as of this filing — approximately
4 **32 months**. ORS §90.320(1)(a) (windows in good repair). Plaintiff's 30-month failure to install
5 window screens directly caused the HOA window-covering noncompliance notices that Plaintiff then
6 forwarded to WCHA. *See* Exhibits C, I–L.

7 (c) **Leaking kitchen sink**. Reported June 26, 2024; unresolved as of this filing — approximately **21**
8 **months**. ORS §90.320(1)(c). *See* Exhibit C.

9 (d) **Water intrusion into live electrical outlet**. Reported June 26, 2024; unresolved as of this filing
10 — approximately **21 months**. ORS §90.320(1)(e) (electrical systems in good working order). This
11 defect constitutes an immediate and ongoing safety hazard. *See* Exhibit C.

12 (e) **Leaking master toilet; standing water; mold**. Reported November 17, 2025; unresolved as of
13 this filing — approximately **4 months**. ORS §90.320(1)(b) (plumbing; elimination of moisture and
14 mold) (f). *See* Exhibit C.

15 (f) **Non-functioning stove burner; inadequate hot water**. Reported November 2025–
16 January 2026; unresolved as of this filing — approximately **4 months**. ORS §90.320(c)(A) (heating
17 and cooking facilities in good working order). *See* Exhibit C.

18 (g) **Intermittent power outages; non-functioning outlets**. Reported January 6, 2026; unresolved
19 as of this filing — approximately **2 months**. ORS §90.320(1)(e). *See* Exhibit C.

20 (h) **Failure to provide replacement mail key**. Three written requests; unresolved as of this filing.
21 ORS §90.320(1) (premises fit for human occupation). This failure deprived Defendant of legal, court,
22 and government correspondence throughout this proceeding. *See* Exhibit C.

23 ORS §90.360(2) provides that where a landlord fails to remedy a habitability defect after written notice, the
24 tenant may recover the diminution in rental value of the dwelling for the period of the defect. A conservative
25 10% diminution of \$2,535.00/month applied to the full 32-month tenancy yields \$8,112.00 in rent abatement.
26 The 10% figure is conservative; the court may find a higher percentage warranted given the number, duration,
27
28

and severity of the defects, particularly the 28-month drain fly infestation and the live electrical hazard. Each item above was noticed in writing. *See* Exhibit C.

Renting dwelling known to be unlawful to occupy (ORS §90.380). Plaintiff knew or reasonably should have known that the unit was unlawful to occupy given the water intrusion into a live electrical outlet (reported June 26, 2024; unresolved 21 months), the 28-month drain fly infestation originating from a plumbing defect, and the standing water and mold from the leaking master toilet. ORS §90.380 provides that where a landlord rents a dwelling that the landlord knows or reasonably should know is unlawful to occupy, the tenant may recover the greater of two months' periodic rent (\$5,070.00) or twice the actual damages sustained. The floor of this remedy is \$5,070.00; actual damages are to be proven at trial.

The causal chain is direct: Plaintiff created the conditions generating the HOA fines by failing to install window screens for 32 months, charged those fines to Defendant in violation of ORS §90.302(1), applied Defendant's payments to those unlawful charges first in violation of ORS §90.220(9), and then filed this eviction claiming unpaid rent. Each step is independently unlawful; together they are a manufactured arrearage. ORS §90.370; ORS §90.385.

**Fifth Affirmative Defense — Retaliation; Selective Enforcement; Discrimination
(ORS §90.385)**

This eviction follows Defendant's assertion of habitability rights and constitutes retaliation under ORS §90.385 on four independent bases: **(1) Selective HCV Disclosure.** In November 2025, Plaintiff selectively forwarded an HOA window-covering noncompliance notice to WCHA at hevintirim@washingtoncountyor.gov — a violation caused entirely by Plaintiff's own 32-month failure to install window screens — while simultaneously concealing from WCHA eleven documented GHQS violations under 24 CFR §982.401, any one of which would have required an HQS inspection and exposed Plaintiff to suspension of HAP payments. *See* Exhibits C, I–L. This selective, bad-faith disclosure was designed to threaten Defendant's Section 8 voucher while shielding Plaintiff from regulatory consequences. **(2) Selective Enforcement of HOA Rules — Grill.** The rental agreement between Defendant and JWP WONG REAL ESTATE expressly permits Defendant to maintain an outdoor grill on the premises. *See* Exhibit D. The patio is Defendant's exclusive-use limited common element under CC&R Sections 5.1 and 6.1. *See* Exhibit E. Plaintiff enforced an HOA demand that Defendant remove her grill — in direct contradiction of a written

1 lease term — while other residents of the complex are permitted to maintain grills and outdoor equipment
2 without comparable enforcement action. *See* Exhibit N. This selective enforcement, directed at Defendant
3 and not at similarly situated residents, constitutes: (a) breach of the rental agreement; (b) retaliation
4 under ORS §90.385; (c) a violation of Defendant’s quiet enjoyment rights under ORS §90.360(1); and (d) a
5 basis for lease termination without penalty under ORS §90.360(1). A landlord cannot simultaneously grant
6 a contractual right in the lease and then enforce an HOA demand to extinguish it. Defendant reserves
7 the right to assert a fair housing claim based on the pattern of selective enforcement if discovery reveals
8 that enforcement has been directed disproportionately at protected-class tenants. **(3) Bad-Faith Lease**
9 **Coercion.** Plaintiff engaged in bad-faith lease coercion in writing on or about January 25, 2025. *See*
10 Exhibit C. **(4) Prior Defective FED Judgment; Constructive Entrapment.** Plaintiff obtained a
11 prior FED judgment in Washington County Circuit Court through service directed to a neighboring address
12 at which Defendant has never resided. That judgment clouds Defendant’s rental history, prevents her from
13 securing alternative housing, and effectively traps her in this tenancy. Plaintiff has repeatedly refused to
14 stipulate to vacatur despite Defendant’s written requests — deliberately maintaining a cloud he knows to be
15 infirm — while simultaneously filing this new action. A landlord who traps a tenant in a substandard unit
16 by refusing to vacate a void judgment, and then files a second eviction for the same tenancy, does not come
17 to this Court with clean hands.

18 **F Sixth Affirmative Defense — Unlawful Vehicle Tow; Conversion (ORS §90.325; ORS §90.365;**
ORS §98.854(2); ORS §12.080)

19 On or about March 6, 2024, Defendant’s Dodge Journey was towed from the Courtyards at
20 Springville by Sergeant’s Towing at AMS direction. Plaintiff owed Defendant a non-delegable duty under
21 ORS §90.325 to ensure that third-party enforcement actions directed at Defendant’s tenancy — including
22 towing — complied with her statutory and contractual rights. Plaintiff breached that duty in the following
23 independently sufficient respects, each documented by Plaintiff’s own written admissions (*see* Exhibit C):
24 **Duty.** As the unit owner and landlord in privity with Defendant, Plaintiff bore a non-delegable duty of
25 reasonable care under ORS §90.325 to supervise and control the conduct of AMS and any towing company
26 acting at AMS direction with respect to Defendant’s property.

27 **Breach.**

28 (a) **No parking pass.** From move-in in July 2023, Defendant registered her vehicles with Plaintiff in

1 writing. Despite repeated requests over more than eight months, Plaintiff never issued a parking
2 pass. Plaintiff's own March 11, 2024 email requesting Defendant fill out a vehicle registration form
3 confirms no valid pass had been issued as of the date of the tow. *See* Exhibit C.

4 (b) **No valid tow authorization.** Under ORS §98.854(2), a tower may not remove a vehicle without
5 signed authorization from the property owner or owner's agent at the time of the tow. No
6 authorization from Plaintiff — the party in privity with Defendant — was obtained.

7 (c) **No pre-tow warning.** Plaintiff acknowledged in writing on March 17–18, 2024 that a warning was
8 required before towing and that Defendant's photographs showed her vehicle was not in the fire lane.
9 *See* Exhibit C.

10 (d) **Shifting justifications.** The stated basis for the tow shifted at least three times (fire lane;
11 blocking pedestrian access; failure to display tags), none supported by the date- and time-stamped
12 photographs required by ORS §98.853(2). *See* Exhibit N.

13 (e) **Abdication.** Plaintiff told Defendant in writing: "there is nothing I could do," and took no action
14 to remedy the tow or recover the vehicle. *See* Exhibit C (March 17, 2024).

15
16 **Causation and Damages.** Plaintiff's breach of his non-delegable duty directly caused the loss of
17 Defendant's Dodge Journey and all personal property contained therein, including an iPad, prescription
18 eyeglasses, prescription medications, legal and financial paperwork, clothing, a child's car seat, jewelry, and
19 work equipment. The outstanding payoff balance on the vehicle — reported to Defendant's credit — is
20 \$14,039.88. *See* Exhibit P. The loss of the vehicle caused further consequential damages including credit
21 impairment, loss of transportation, impaired employment mobility, and emotional distress, to be proven at
22 trial.

23 **Statute of Limitations.** This claim is governed by ORS §12.080, which provides a six-year limitations
24 period for claims arising from the conversion of personal property. The tow occurred March 6, 2024; the
25 limitations period expires March 6, 2030. This filing is timely.

26 **Forthcoming Motion to Compel.** Defendant will file a Motion to Compel production of all towing
27 authorization records, communications between Plaintiff and AMS or Sergeant's Towing, and any HOA
28 enforcement records relating to the March 6, 2024 tow.

G **Seventh Affirmative Defense — Unlawful Entry into Exclusive-Use Space; Breach of Quiet
Enjoyment; Unlawful Fee Pass-Through (ORS §90.322(1)(f), (8); ORS §90.360(1);
ORS §90.302(1), (3); ORS §90.325; CC&R §§5.1, 6.1)**

Plaintiff permitted, authorized, or failed to prevent the HOA and AMS from repeatedly entering Defendant's exclusive-use patio, backyard, and garage — limited common elements for Defendant's exclusive use under CC&R Sections 5.1 and 6.1 (*see* Exhibit E) — without providing the 24-hour notice required by ORS §90.322(1)(f) and without Defendant's consent. Plaintiff's own July 30, 2025 text message confirms the mechanism: They will send compliance officer to check on whether they have been addressed and accumulate the fines each month." *See* Exhibit C. Plaintiff's ledger reflects eight discrete months of HOA fine assessments (July 2024–April 2025), each corresponding to a compliance inspection of Defendant's exclusive-use space without required notice, establishing a minimum of eight violations. *See* Exhibit B. A pre-ledger entry on September 25, 2023 establishes at least one additional violation.

Breach of quiet enjoyment. Each unauthorized entry into Defendant's exclusive-use patio, backyard, and garage independently constitutes a breach of Defendant's right to quiet enjoyment under ORS §90.360(1), entitling Defendant to terminate the rental agreement without penalty and to recover actual damages in addition to the statutory remedy under ORS §90.322(8). The CC&Rs govern the relationship between unit owners and the HOA — not the relationship between Plaintiff and Defendant. Defendant's rights are governed exclusively by the ORLTA. The HOA's authority to conduct compliance inspections of common areas does not extend to Defendant's exclusive-use limited common element without first complying with ORS §90.322(1)(f). Plaintiff, as unit owner and landlord, is responsible under ORS §90.325 for ensuring that HOA enforcement directed at Defendant's exclusive-use space complies with Defendant's statutory rights.

Unlawful fee pass-through. ORS §90.302(1) prohibits a landlord from charging, collecting, or attempting to collect any fee not authorized by statute or rental agreement. HOA assessments run against unit owners only under Bylaws Sections 5.3(a), 5.6, and 5.7 (*see* Exhibit F); Plaintiff has no authority to pass them through to Defendant. Any lease clause purporting to authorize such pass-throughs is void under ORS §90.135 as an attempted waiver of Defendant's ORLTA rights. Under ORS §90.302(3), a landlord who charges, collects, or attempts to collect a fee not authorized by statute or rental agreement is liable for two months' periodic rent (\$5,070.00) plus actual damages (\$2,220.00 confirmed on Plaintiff's own ledger) per

1 claim. The demand itself is the statutory violation — payment is not required to trigger the remedy.

2 **Statute of Limitations.** All HOA entry and fee claims are timely. ORS §12.125 provides a
3 one-year limitations period for claims arising under ORS Chapter 90 or a rental agreement. Entries and
4 demands within one year of this filing are timely on their face. Entries and demands beyond one year are
5 timely under the continuing tort doctrine: each unauthorized entry and each unlawful fee demand was a
6 new and independent violation, and the claim accrued anew with each occurrence.

7 **Forthcoming Motion to Compel.** Defendant will file a Motion to Compel production of all HOA
8 compliance inspection records, fining records, and communications between Plaintiff, AMS, and the HOA
9 relating to Unit 9 from July 2023 to present.

10 H **Eighth Affirmative Defense — Unclean Hands; Bad Faith; Constructive Entrapment**

11 Plaintiff seeks equitable relief — a writ of possession — while having engaged in a sustained course
12 of inequitable conduct that is the direct cause of the conditions he now complains of:

- 13 (1) Plaintiff obtained a prior FED judgment in Washington County Circuit Court through service
14 directed to a neighboring address, producing a void judgment that has clouded Defendant’s rental
15 history and prevented her from securing alternative housing;
- 16 (2) Plaintiff has repeatedly refused to stipulate to vacatur of that void judgment, deliberately
17 maintaining a cloud he knows to be infirm;
- 18 (3) Plaintiff filed the present action without enforcing the prior judgment — a functional concession that
19 the prior judgment cannot stand — while simultaneously refusing to vacate it, trapping Defendant
20 in this tenancy;
- 21 (4) Plaintiff seeks possession of a unit he has allowed to fall into uninhabitable condition for over 32
22 months while Defendant had no viable ability to leave; and
- 23 (5) Plaintiff created the very rent arrearage he relies upon by permitting unlawful HOA entries, passing
24 through the resulting fines in violation of ORS §90.302(1), and misapplying Defendant’s payments
25 in violation of ORS §90.220(9).

26 A party who manufactures the conditions making a tenant’s continued occupancy unavoidable, and who
27 then manufactures the arrearage through his own statutory violations, does not come to this Court with
28 clean hands.

1 I Ninth Affirmative Defense — Waiver (ORS §90.412)

2 To the extent Plaintiff accepted HAP or HRSN payments after the alleged default without providing
3 written notice of reservation of rights, Plaintiff waived the right to terminate for that default. ORS §90.412(1).
4 Plaintiff's own ledger confirms payment receipts throughout the period in question. *See* Exhibit B.

5 VI DEMAND FOR TRIAL IN THE ALTERNATIVE

6 Without waiving, and expressly preserving, all jurisdictional defenses set forth herein, Defendant
7 demands trial on her counterclaims in the event this Court denies the Motion to Dismiss or otherwise retains
8 jurisdiction over any portion of this action. This demand is made solely to preserve Defendant's right to
9 adjudication of her compulsory counterclaims under ORS §90.370(1)(a) and ORCP 22 A, and shall not be
10 construed as a general appearance, a waiver of any jurisdictional objection, or a concession that this Court
11 has subject matter jurisdiction over Plaintiff's complaint. ORCP 21 G(1), G(4).

12 VII COUNTERCLAIMS

13 **Jurisdiction and Mandatory Adjudication.** ORS §90.370(1)(a) provides that in an action for
14 possession based upon nonpayment of rent, the tenant *may* counterclaim for any amount recoverable under
15 the rental agreement or ORS Chapter 90, provided the landlord had or reasonably should have had knowledge
16 of the facts constituting the counterclaim prior to filing. ORS §90.370(1)(a) expressly confers jurisdiction on
17 this Court to hear and determine Defendant's counterclaims in this FED proceeding, notwithstanding the
18 limited jurisdiction of the court. Upon the tenant's assertion of a counterclaim, ORS §90.370(1)(b) requires
19 the court to *determine the amount due to each party* and enter judgment accordingly. This determination
20 is mandatory, not discretionary. ORCP 22 A; ORS §105.130(4). Each counterclaim below arises from the
21 same tenancy and is grounded in Plaintiff's own ledger, text messages, and written communications, each of
22 which was in Plaintiff's possession before this action was filed. *See* Exhibits A–N. Plaintiff had actual and
23 constructive knowledge of every fact asserted herein.

24 **Correct Party.** For purposes of these counterclaims, Plaintiff" refers to **JWP WONG REAL**
25 **ESTATE**, the landlord of record and real party in interest. To the extent the Court finds Jim Wong
26 individually to be the proper plaintiff, these counterclaims are asserted against him in the alternative.
27 Defendant requests that the Court enter judgment on these counterclaims against the correct party —
28 JWP WONG REAL ESTATE — and grant Defendant equitable, injunctive, and legal relief accordingly.

1 The real-party defect cannot be invoked by Plaintiff to defeat compulsory counterclaims. ORCP 22 A.

2 **Statute of Limitations.** Claims arising under ORS Chapter 90 or the rental agreement are subject
3 to the one-year limitations period of ORS §12.125. All Chapter 90 claims within one year of this filing are
4 timely on their face. Claims beyond one year are timely under the continuing tort doctrine, each violation
5 having accrued anew with each occurrence. The vehicle tow and personal property conversion claims are
6 governed by ORS §12.080 (six-year limitations period for conversion of personal property), expiring March 6,
7 2030. All claims are timely under at least one applicable limitations period.

8 **Preservation in Event of Leave to Amend.** In the event the Court finds any counterclaim
9 insufficiently pleaded, Defendant respectfully requests leave to amend pursuant to ORCP 23 A to cure any
10 deficiency. Leave to amend should be freely granted when justice requires. ORCP 23 A.

11 **COUNTERCLAIM DAMAGES SUMMARY**

12

Claim	Statutory Basis	Amount
Habitability rent abatement. 11 documented defects; all noticed in writing; Plaintiff failed to remedy after notice; 10% × \$2,535/mo × 32 months (conservative; court may find higher percentage warranted given 28-month drain fly infestation and live electrical hazard).	ORS §§90.320, 90.360(2), 90.370	\$8,112.00
Renting dwelling known to be unlawful to occupy. Plaintiff knew or reasonably should have known the unit was unlawful to occupy: water intrusion into live electrical outlet (21 months unresolved); 28-month drain fly infestation from plumbing defect; standing water and mold from leaking master toilet. Remedy is greater of two months' periodic rent (\$5,070.00) or twice actual habitability damages; floor stated; actual damages to be proven at trial.	ORS §90.380	\$5,070.00+
Unlawful HOA entries into exclusive-use patio, backyard, and garage; breach of quiet enjoyment. One month's periodic rent per occurrence under ORS §90.322(8); 8 ledger-documented occurrences (Jul. 2024–Apr. 2025); Plaintiff confirmed monthly compliance officer visits (Exhibit C, Jul. 30, 2025); pre-ledger entry Sep. 25, 2023 establishes additional occurrence; each entry independently breaches ORS §90.360(1); \$2,535 × 8 = \$20,280.00 minimum.	ORS §§90.322(8), 90.360(1), 90.325	\$20,280.00

13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

Claim	Statutory Basis	Amount
Unlawful HOA fee pass-throughs. ORS §90.302(1) prohibits the charge; ORS §90.302(3) provides the remedy: two months' periodic rent (\$5,070.00) plus actual damages (\$2,220.00 per Exhibit B) per claim; the demand itself is the violation; any lease clause authorizing pass-throughs is void under ORS §90.135.	ORS §§90.302(1), (3); 90.135	\$7,290.00
Vehicle tow and conversion — Dodge Journey. \$14,039.88 outstanding payoff balance reported to Defendant's credit (Exhibit P); towed March 6, 2024; no parking pass issued for 8+ months despite written requests; no valid tow authorization (ORS §98.854(2)); no pre-tow warning; Plaintiff abdicated duty in writing: there is nothing I could do" (Exhibit C, Mar. 17, 2024); 6-year SOL under ORS §12.080 (expires Mar. 6, 2030).	ORS §§90.325, 90.365; ORS §12.080	\$14,039.88
Personal property lost in towed vehicle. iPad, prescription eyeglasses, prescription medications, legal and financial paperwork, clothing, child's car seat, jewelry, work equipment; 6-year SOL under ORS §12.080 (expires Mar. 6, 2030); to be proven at trial.	ORS §§90.325, 90.365; ORS §12.080	\$3,000.00
Retaliation — 4 independent bases. (1) Selective HCV disclosure concealing 11 HQS violations while forwarding HOA noncompliance notice caused by Plaintiff's own failure to install window screens; (2) Selective grill enforcement contrary to express lease term while similarly situated residents are not comparably enforced against (Exhibit N); (3) Bad-faith lease coercion Jan. 25, 2025 (Exhibit C); (4) Maintenance of void prior FED judgment trapping Defendant in substandard unit; statutory remedy up to 3 months' periodic rent (\$7,605.00) plus actual damages; to be proven at trial.	ORS §90.385(2)	TBD
Emotional distress and consequential damages. Loss of vehicle containing child's car seat and prescription medications; credit destruction (\$14,039.88 reported to credit, Exhibit P); loss of transportation; impaired employment mobility; inability to coordinate rental assistance; 32-month habitability pattern; HCV voucher threatened by bad-faith disclosure; to be proven at trial.	ORS §§90.365, 90.385; ORS §90.125	TBD
Minimum Quantified Total (before TBD claims)		\$57,791.88
<i>Plus pre-ledger entry Sep. 25, 2023 (+\$2,535.00) raises floor to \$60,326.88; ORS §90.380 actual damages may further increase quantified total.</i>		<i>(\$60,326.88+)</i>
Plaintiff's corrected rent balance (HOA fines and late fees removed; HRSN correctly applied; \$0 tenant portion Nov. 2025–Jan. 2026 credited)	ORS §§90.394, 90.220(9)	\$1,345.00
Net amount owed to Defendant (minimum quantified, before TBD claims)		(\$56,446.88+)

1 Defendant's minimum quantified counterclaim damages of \$57,791.88 exceed the corrected rent balance
2 by not less than \$56,446.88, resulting in a net judgment in Defendant's favor. Defendant has satisfied
3 her duty to mitigate through documented habitability complaints, repeated attempts to secure alternative
4 housing (frustrated by Plaintiff's void prior FED judgment), and active coordination of rental assistance
5 payments.

6 **A Note on the Magnitude of These Counterclaims.** Defendant does not present
7 these counterclaims lightly. The amounts reflected herein are not a litigation strategy — they are the
8 product of 32 months of documented, unresolved habitability failures, repeated statutory violations, and a
9 manufactured rent arrearage built from charges the Legislature has expressly prohibited. Each dollar figure
10 derives from one of two sources: either Plaintiff's own ledger, or the remedy the Oregon Legislature has
11 assigned by statute to the specific violation Defendant endured. Where the Legislature has determined
12 that an unlawful entry into a tenant's exclusive-use space costs one month's periodic rent per occurrence,
13 or that an unlawful fee demand costs two months' periodic rent, those are not Defendant's numbers —
14 they are the Legislature's. Defendant has lived in this home throughout. These counterclaims are a record
15 of that time.

16 **Preservation in Event of Jurisdictional Dismissal.** In the event the Court
17 grants Defendant's Motion to Dismiss, Defendant requests that the Court either: (a) retain jurisdiction
18 over these counterclaims as independent claims pursuant to ORS §90.370(1)(a) and ORCP 22 B, severing
19 them from Plaintiff's dismissed complaint; or (b) expressly state in its order of dismissal that Defendant's
20 counterclaims are dismissed without prejudice and preserved for assertion in any subsequent proceeding,
21 including any refiled FED action or independent civil action, so that no preclusion argument may be raised
22 against them. Defendant does not abandon these claims by seeking dismissal of Plaintiff's complaint.

23 VIII REQUEST FOR RELIEF

24 WHEREFORE, Defendant Ashle' Penn respectfully requests that this Court:

- 25 1. In the alternative, and without waiving any jurisdictional defense, grant Defendant a trial on her
26 counterclaims pursuant to ORS §90.370(1)(a), ORCP 22 A, and ORS §105.130(3), solely to preserve
27 her right to adjudication of those claims in the event this Court retains jurisdiction;
- 28 2. Dismiss Plaintiff's Complaint **with prejudice** under ORS §90.394(3) and *Hickey v. Scott*, 370 Or
97 (2022), the notice having overstated the amount owed by \$4,573.00;
3. In the alternative, dismiss under ORCP 21 A(1)(g) for failure to state a claim on the grounds that:

- 1 (a) Jim Wong individually is not the real party in interest and cannot state a claim for possession;
2 and (b) the void notice is the jurisdictional predicate for the entire action;
- 3 4. In the alternative, dismiss under ORS §90.395 for failure to cooperate with rental assistance
4 programs;
- 5 5. In the alternative, dismiss without prejudice under ORCP 26 A for failure to prosecute in the name
6 of the real party in interest, with leave to refile in the name of JWP WONG REAL ESTATE upon
7 submission of proof of agency authority;
- 8 6. In the alternative, dismiss for defective service under ORCP 7 and ORS §105.135;
- 9 7. In the alternative, dismiss or enter default due to Plaintiff's non-appearance at the March 2, 2026
10 hearing as required by ORS §105.137(3);
- 11 8. In the alternative, vacate the June 5, 2026 trial date and resolve the pending Motion to Dismiss
12 before any trial date is set, pursuant to ORCP 21 G(4);
- 13 9. Deny Plaintiff's request for possession;
- 14 10. Enter judgment in favor of Defendant on her counterclaims against **JWP WONG REAL**
15 **ESTATE** (or Jim Wong in the alternative) for equitable, injunctive, and legal relief, in an amount
16 not less than \$57,791.88, resulting in a net judgment in Defendant's favor of not less than \$56,446.88,
17 with TBD claims reserved for trial;
- 18 11. Grant injunctive relief prohibiting Plaintiff, JWP WONG REAL ESTATE, AMS, and the HOA from
19 further unauthorized entry into Defendant's exclusive-use patio, backyard, and garage without the
20 24-hour notice required by ORS §90.322(1)(f);
- 21 12. Grant injunctive relief prohibiting Plaintiff from enforcing any HOA demand that Defendant remove
22 her outdoor grill, in contravention of the express terms of the rental agreement and Defendant's quiet
23 enjoyment rights under ORS §90.360(1);
- 24 13. Stay any writ of possession pending resolution of Defendant's Motion to Dismiss and, if denied,
25 pending any appeal, to prevent irreparable harm to Defendant and her minor child;
- 26 14. Issue written findings of fact and conclusions of law on each jurisdictional and merits issue raised
27 herein, including: (a) whether the notice accurately states the amount of rent owed; (b) whether Jim
28 Wong individually is the real party in interest; (c) whether service was legally sufficient; (d) whether

1 Plaintiff appeared at the March 2, 2026 hearing within the meaning of ORS §105.137(3); (e) the
2 amount due to each party on Defendant's counterclaims under ORS §90.370(1)(b); and (f) the
3 disposition of each counterclaim, for purposes of appellate preservation;

4 15. Expressly preserve Defendant's counterclaims without prejudice in the event of jurisdictional
5 dismissal, pursuant to ORCP 22 B and ORS §90.370(1)(a);

6 16. Grant leave to amend any counterclaim found insufficiently pleaded, pursuant to ORCP 23 A;

7 17. Award Defendant attorney fees and costs under ORS §90.255; and

8 18. Grant such other equitable, injunctive, and legal relief as the Court deems just.

9 I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct
10 to the best of my knowledge and belief. Respectfully submitted,

11 Date: March 15, 2026

12
13 
14 /s/

15 _____
16 Ashle' Penn, Defendant, *In Propria Persona*

17 17548 NW Springville Rd #9, Portland, OR 97229

18 *Defendant appears pro se and specially, without waiving any jurisdictional defenses.*
19
20
21
22
23
24
25
26
27
28

EXHIBIT LIST

Jim Wong v. Ashle' Penn, Case No. 26LT03815

Washington County Circuit Court

Exhibit	Description
Exhibit A	Defendant's Counterclaim Damages Summary (Section VIII of this Amended Answer).
Exhibit B	Plaintiff's Rent Ledger, 17548 NW Springville Rd Unit 9, Tenant Ashle' Penn, July 2024–January 2026, transmitted by email from jimwong@me.com on January 21, 2026 at 11:56 p.m.; confirming HOA fines of \$2,220.00, late fees of \$1,045.00, and HRSN credit of \$4,494.00 applied to November 2025 only; basis for Plaintiff's claimed balance of \$5,918.00.
Exhibit C	Text Message and Email Record, Jim Wong and Ashle' Penn, July 2023–March 2026, including: habitability complaints and responses; HOA noncompliance notices forwarded by Plaintiff; Plaintiff's July 30, 2025 admission of monthly compliance officer visits; Defendant's January 13, 2025 explanation of window tape as self-help remedy for missing screens; Plaintiff's March 11–18, 2024 tow communications and admissions including there is nothing I could do"; failure to provide parking pass; failure to provide replacement mail key; January 25, 2025 lease coercion; Plaintiff's January 21, 2026 email admitting HOA fine suspension was discretionary; Plaintiff's March 2, 2026 text message at 10:19 a.m. confirming ex parte contact with the court regarding Defendant's pending motion before Defendant was contacted.
Exhibit D	Lease Agreement, 17548 NW Springville Rd Unit 9, JWP WONG REAL ESTATE and Ashle' Penn, including provision expressly permitting outdoor grill.
Exhibit E	CC&Rs for Courtyards at Springville, all phases: exclusive-use limited common element designations (patios, backyards, garages); Sections 5.1 and 6.1.
Exhibit F	Bylaws, Courtyards at Springville: Sections 5.3(a), 5.6, 5.7 confirming HOA assessments and enforcement remedies run against unit owners only.
Exhibit G	WCHA HAP Payment History, Ashle' Penn, 17548 NW Springville Rd Unit 9, confirming payments to JWP WONG REAL ESTATE; \$0.00 tenant portion for November 2025–January 2026 following income recertification.
Exhibit H	Income Recertification Signature Document, Ashle' Penn, confirming \$0.00 tenant portion effective November 2025.
Exhibit I	HOA Compliance Letter, Case No. 2024-CSVC-00058, August 13, 2024.
Exhibit J	HOA Compliance Letter, Case No. 2024-CSVC-00058, September 17, 2024.
Exhibit K	HOA Compliance Letter, Case No. 2024-CSVC-00059, September 24, 2024.
Exhibit L	HOA Compliance Letter, Case No. 2024-CSVC-00059, January 13, 2025.
Exhibit M	Text message screenshot, March 2, 2026 at 10:19 a.m., Jim Wong to Ashle' Penn, confirming Plaintiff's ex parte contact with the court regarding Defendant's pending motion before Defendant was contacted.
Exhibit N	Photograph of parking area at 17548 NW Springville Rd showing absence of fire lane markings at location of tow; and photograph showing outdoor grills maintained by other residents without comparable enforcement action.

Exhibit	Description
Exhibit O	Jim Wong email(s), March 17–18, 2024, admitting: no pre-tow warning was given; Defendant’s photographs showed vehicle was not in the fire lane; and there is nothing I could do” — establishing Plaintiff’s abdication of his non-delegable duty under ORS §90.325.
Exhibit P	Defendant’s credit report and/or bank statement reflecting \$14,039.88 outstanding payoff balance on Dodge Journey reported to credit following tow.

1 **Defendant's Exhibit A**

2 **COUNTERCLAIM DAMAGES SUMMARY**

3 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815

4 Washington County Circuit Court

5
6 *See* Section VIII of Defendant's Amended Answer, incorporated herein by reference. The counterclaim
7 damages summary set forth in Section VIII constitutes Defendant's Exhibit A.
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

1 **Defendant's Exhibit B**

2 **PLAINTIFF'S RENT LEDGER — UNIT 9**

3 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815

4 Transmitted January 21, 2026 at 11:56 p.m. by jimwong@me.com

Ledger						
17548 NW SPRINGVILLE RD UNIT 9, PORTLAND, OR 97229		Rent amount	rent received	late fees	hoa fines	rent owed
Tenant: Ashle Penn						
July 2024		\$0.00	\$0.00	\$0.00	\$170.00	\$170.00
aug 2024	1	\$0.00	\$0.00	\$0.00	\$300.00	\$300.00
sept 2024	2	\$0.00	\$0.00	\$0.00	\$250.00	\$250.00
Oct 2024		\$0.00	\$0.00	\$0.00	\$250.00	\$250.00
Dec 2024	3	\$0.00	\$0.00	\$0.00	\$250.00	\$250.00
Jan 2025		\$0.00	\$0.00	\$0.00	\$500.00	\$500.00
Feb 2025	4	\$607.00	\$0.00	\$95.00	\$0.00	\$702.00
March 2025	5	\$654.00	\$0.00	\$95.00	\$250.00	\$999.00
April 2025		\$654.00	\$0.00	\$95.00	\$250.00	\$999.00
May 2025	6	\$654.00	\$0.00	\$95.00	\$0.00	\$749.00
June 2025		\$654.00	\$0.00	\$95.00	\$0.00	\$749.00
July 2025	7	\$654.00	\$0.00	\$95.00	\$0.00	\$749.00
August 2025	8	\$654.00	\$0.00	\$95.00	\$0.00	\$749.00
September 2025		\$654.00	\$0.00	\$95.00	\$0.00	\$749.00
October 2025	9	\$654.00	\$0.00	\$95.00	\$0.00	\$749.00
Nov 2025		\$654.00	\$4,494.00	\$0.00	\$0.00	-\$4,494.00
Dec 2025	10	\$654.00	\$0.00	\$95.00	\$0.00	\$749.00
Jan2026	11	\$654.00	\$0.00	\$95.00	\$0.00	\$749.00
Total rent owed						\$5,918.00

12

13

14

15

16

17

18

19

20

21

22

23

24

25

26

27

28

Defendant's Exhibit C

TEXT MESSAGE AND EMAIL RECORD — SELECTED RELEVANT
COMMUNICATIONS

Jim Wong v. Ashle' Penn, Case No. 26LT03815

Index of Communications:

Date	Subject
Jul. 2023	Defendant's vehicle registration and parking pass request
Nov. 16, 2023	Drain fly infestation — written notice to Plaintiff
Jun. 26, 2024	Leaking kitchen sink; water intrusion into live electrical outlet — written notice
Mar. 11–18, 2024	Tow communications: parking pass failure; shifting justifications; Plaintiff's admission there is nothing I could do"
Jan. 13, 2025	Window tape as self-help remedy for missing screens
Jan. 25, 2025	Bad-faith lease coercion
Jul. 30, 2025	Plaintiff's admission: They will send compliance officer to check on whether they have been addressed and accumulate the fines each month"
Nov. 17, 2025	Leaking master toilet; standing water; mold — written notice
Nov. 2025–	Non-functioning stove burner; inadequate hot water; power outages; non-
Jan. 2026	functioning outlets; mail key requests
Jan. 21, 2026	Plaintiff's email transmitting ledger; admission HOA fine suspension was discretionary: the HOA kindly agreed to temporarily suspend"
Mar. 2, 2026 (10:19 a.m.)	Plaintiff's text confirming ex parte court contact: I spoke with the court regarding your motion to file documents"

1 Wednesday, March 6
2
3

4 Good afternoon
5 This is Sergeants Towing
6 As requested, we have
7 arrived at Courtyards at
8 Springville
9 And found the following
10 vehicles: white Dodge
11 Journey no plate
12 in violation for: no permit
13 fire lane
14 Do you wish for us to tow
15 the vehicle at this time?
16
17

18 10:33 AM

19
20 Yes please
21

22 You were quick
23

24 10:35 AM

25 Yes my driver is on the
26 way
27

28 10:35 AM

Thank you

10:36 AM

1 Defendant's Exhibit D

2 LEASE AGREEMENT — 17548 NW SPRINGVILLE RD UNIT 9

3 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

Rent: \$2460

LF310-04

RESIDENTIAL LEASE

Apartment — Condominium — House

BY THIS AGREEMENT made and entered into on June 10th, 2024 (year),
between Stepping Meadow J&C&W LLC
herein referred to as Lessor, and Ashle Antoinette Penn
herein referred to as Lessee. Lessor leases to Lessee
the premises situated at 17548 NW Springville Rd, unit #9
in the City of Portland, County of Washington,
State of OR 97229, and more particularly described as
follows:

together with all appurtenances, for a term of 2 years, to commence on July 1st,
2024 (year), and to end on June 30th, 2026 (year), at 12 o'clock P. m.

1. **Rent.** Lessee agrees to pay, without demand, to Lessor as rent for the demised premises the sum of
Two thousand four hundred sixty only Dollars (\$ 2460⁰⁰) per
month in advance on the 1st day of each calendar month beginning July
2024 (year), at 3300 NW 185th, #303, City of
Portland, State of OR 97229, or at such other place as Lessor may
designate.

2. **Security Deposit.** On execution of this lease, Lessee deposits with Lessor
< NA > Dollars (\$), receipt of which is
acknowledged by Lessor, as security for the faithful performance by Lessee of the terms hereof, to be returned to
Lessee, without interest, on the full and faithful performance by him of the provisions hereof.

3. **Quiet Enjoyment.** Lessor covenants that on paying the rent and performing the covenants herein contained,
Lessee shall peacefully and quietly have, hold, and enjoy the demised premises for the agreed term.

4. **Use of Premises.** The demised premises shall be used and occupied by Lessee exclusively as a private single
family residence, and neither the premises nor any part thereof shall be used at any time during the term of this
lease by Lessee for the purpose of carrying on any business, profession, or trade of any kind, or for any purpose
other than as a private single family residence. Lessee shall comply with all the sanitary laws, ordinances, rules,
and orders of appropriate governmental authorities affecting the cleanliness, occupancy, and preservation of the
demised premises, and the sidewalks connected thereto, during the term of this lease.

5. **Number of Occupants.** Lessee agrees that the demised premises shall be occupied by no more
than 5 persons, consisting of 2 adults and 3 children under
the age of _____ years, without the written consent of Lessor.

6. **Condition of Premises.** Lessee stipulates that he has examined the demised premises, including the grounds
and all buildings and improvements, and that they are, at the time of this lease, in good order, repair, and a safe,
clean, and tenantable condition.

7. **Assignment and Subletting.** Lessee shall have the right to sub-lease the property in whole or in part.
Lessee may sublease all or any portion of the Premises without the prior consent of Lessor, provided that any
such sublease shall be subject and subordinate to the terms and conditions of this Lease. Lessee shall remain
fully liable to Lessor for the performance of all obligations under this Lease, notwithstanding any such
sublease. Any sublease entered into by Lessee shall not relieve Lessee of its obligations under this Lease, and
the acts or omissions of any subtenant shall be deemed the acts or omissions of Lessee for purposes of
enforcement of this Lease. The rights of any subtenant shall be limited to those expressly granted in the
applicable sublease and shall in all respects be subject to the terms and conditions of this Lease.

NOTICE: Contact your local county real estate board for additional forms that may be required to meet your specific needs.

© 1992-2001 E-Z Legal Forms, Inc.

Page 1

Rev. 03/01

This product does not constitute the rendering of legal advice or services. This product is intended for informational use only and is not a substitute for legal
advice. State laws vary, so consult an attorney on all legal matters. This product was not necessarily prepared by a person licensed to practice law in your state.

DEFENDANT'S EXHIBIT D — Pg. 27

Rent is due on the 1st must be postmarked by postal office by the 3rd
to avoid \$95 late fees to: Jim Wong, 3300 NW 185th, #303, Portland 97229

8. **Alterations and Improvements.** Lessee shall make no alterations to the buildings on the demised premises or construct any building or make other improvements on the demised premises without the prior written consent of Lessor. All alterations, changes, and improvements built, constructed, or placed on the demised premises by Lessee, with the exception of fixtures removable without damage to the premises and movable personal property, shall, unless otherwise provided by written agreement between Lessor and Lessee, be the property of Lessor and remain on the demised premises at the expiration or sooner termination of this lease.

9. **Damage to Premises.** If the demised premises, or any part thereof, shall be partially damaged by fire or other casualty not due to Lessee's negligence or willful act or that of his employee, family, agent, or visitor, the premises shall be promptly repaired by Lessor and there shall be an abatement of rent corresponding with the time during which, and the extent to which, the leased premises may have been untenable; but, if the leased premises should be damaged other than by Lessee's negligence or willful act or that of his employee, family, agent, or visitor to the extent that Lessor shall decide not to rebuild or repair, the term of this lease shall end and the rent shall be prorated up to the time of the damage.

10. **Dangerous Materials.** Lessee shall not keep or have on the leased premises any article or thing of a dangerous, inflammable, or explosive character that might unreasonably increase the danger of fire on the leased premises or that might be considered hazardous or extra hazardous by any responsible insurance company.

11. **Utilities.** Lessee shall be responsible for arranging for and paying for all utility services required on the premises, except that *water, sewer & garbage included* shall be provided by Lessor.

12. **Right of Inspection.** Lessor and his agents shall have the right at all reasonable times during the term of this lease and any renewal thereof to enter the demised premises for the purpose of inspecting the premises and all building and improvements thereon.

13. **Maintenance and Repair.** Lessee will, at his sole expense, keep and maintain the leased premises and appurtenances in good and sanitary condition and repair during the term of this lease and any renewal thereof. In particular, Lessee shall keep the fixtures in the house or on or about the leased premises in good order and repair; keep the furnace clean; keep the electric bells in order; keep the walks free from dirt and debris; and, at his sole expense, shall make all required repairs to the plumbing, range, heating, apparatus, and electric and gas fixtures whenever damage thereto shall have resulted from Lessee's misuse, waste, or neglect or that of his employee, family, agent, or visitor. Major maintenance and repair of the leased premises, not due to Lessee's misuse, waste, or neglect or that of his employee, family, agent, or visitor, shall be the responsibility of Lessor or his assigns. Lessee agrees that no signs shall be placed or painting done on or about the leased premises by Lessee or at his direction without the prior written consent of Lessor.

14. **Animals.** Lessee shall keep no domestic or other animals on or about the leased premises without the written consent of Lessor. *No pet is allowed*

15. **Display of Signs.** During the last *45* days of this lease, Lessor or his agent shall have the privilege of displaying the usual "For Sale" or "For Rent" or "Vacancy" signs on the demised premises and of showing the property to prospective purchasers or tenants.

16. **Subordination of Lease.** This lease and Lessee's leasehold interest hereunder are and shall be subject, subordinate, and inferior to any liens or encumbrances now or hereafter placed on the demised premises by Lessor, all advances made under any such liens or encumbrances, the interest payable on any such liens or encumbrances, and any and all renewals or extensions of such liens or encumbrances.

17. ~~**Holdover by Lessee.** Should Lessee remain in possession of the demised premises with the consent of Lessor after the natural expiration of this lease, a new month-to-month tenancy shall be created between Lessor and Lessee which shall be subject to all the terms and conditions hereof but shall be terminated on _____ days' written notice served by either Lessor or Lessee on the other party.~~ *No month to month when lease expires*

18. **Surrender of Premises.** At the expiration of the lease term, Lessee shall quit and surrender the premises hereby demised in as good state and condition as they were at the commencement of this lease, reasonable use and wear thereof and damages by the elements excepted.

19. **Default.** If any default is made in the payment of rent, or any part thereof, at the times hereinbefore specified, or if any default is made in the performance of or compliance with any other term or condition hereof, the lease, at the option of Lessor, shall terminate and be forfeited, and Lessor may re-enter the premises and remove all persons therefrom. Lessee shall be given written notice of any default or breach, and termination and forfeiture of the lease

shall not result if, within 30 days of receipt of such notice, Lessee has corrected the default or breach or has taken action reasonably likely to effect such correction within a reasonable time.

20. Abandonment. If at any time during the term of this lease Lessee abandons the demised premises or any part thereof, Lessor may, at his option, enter the demised premises by any means without being liable for any prosecution therefor, and without becoming liable to Lessee for damages or for any payment of any kind whatever, and may, at his discretion, as agent for Lessee, re-let the demised premises, or any part thereof, for the whole or any part of the then unexpired term, and may receive and collect all rent payable by virtue of such re-letting, and, at Lessor's option, hold Lessee liable for any difference between the rent that would have been payable under this lease during the balance of the unexpired term, if this lease had continued in force, and the net rent for such period realized by Lessor by means of such re-letting. If Lessor's right of re-entry is exercised following abandonment of the premises by Lessee, then Lessor may consider any personal property belonging to Lessee and left on the premises to also have been abandoned, in which case Lessor may dispose of all such personal property in any manner Lessor shall deem proper and is hereby relieved of all liability for doing so.

21. Binding Effect. The covenants and conditions herein contained shall apply to and bind the heirs, legal representatives, and assigns of the parties hereto, and all covenants are to be construed as conditions of this lease.

22. Radon Gas Disclosure. As required by law, (Landlord) (Seller) makes the following disclosure: "Radon Gas" is a naturally occurring radioactive gas that, when it has accumulated in a building in sufficient quantities, may present health risks to persons who are exposed to it over time. Levels of radon that exceed federal and state guidelines have been found in buildings in <NA>. Additional information regarding radon and radon testing may be obtained from your county public health unit.

23. Lead Paint Disclosure. "Every purchaser or lessee of any interest in residential real property on which a residential dwelling was built prior to 1978 is notified that such property may present exposure to lead from lead-based paint that may place young children at risk of developing lead poisoning. Lead poisoning in young children may produce permanent neurological damage, including learning disabilities, reduced intelligence quotient, behavioral problems and impaired memory. Lead poisoning also poses a particular risk to pregnant women. The seller or lessor of any interest in residential real estate is required to provide the buyer or lessee with any information on lead-based paint hazards from risk assessments or inspection in the seller or lessor's possession and notify the buyer or lessee of any known lead-based paint hazards. A risk assessment or inspection for possible lead-based paint hazards is recommended prior to purchase."

24. Other Terms:

(1) No pet is allowed.

(2) House must be kept clean

(3) Condo HOA rules must be abided: (1) Car must be parked inside of assigned garage at all time, if violated, HOA fines will be assessed.

(2) No storage of any personal item anywhere on backyard patio except grill

(3) Window covering must be off white.

(4) Rent check must be postmarked by the 3rd to avoid \$95 late fees

IN WITNESS WHEREOF, the parties have executed this lease the day and year first above written.

[Signature] 6/10/2024
Lessor

[Signature] 6/10/24
Lessee

Lessor

Lessee

NOTICE: State law establishes rights and obligations for parties to rental agreements. This agreement is required to comply with the Truth in Renting Act or the applicable Landlord Tenant Statute or code of your state. If you have a question about the interpretation or legality of a provision of this agreement, you may want to seek assistance from a lawyer or other qualified person: -

(5) Washer & dryer hookup only.

(6) 45 days before lease expires, tenants must submit proper written notice to move.

(7) Early termination of the lease carries a one & half months rent penalty plus "EXTRA" 45 days of advance notice

1 Defendant's Exhibit E

2 CC&Rs — COURTYARDS AT SPRINGVILLE, ALL PHASES

3 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

CC&R's

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

26

27

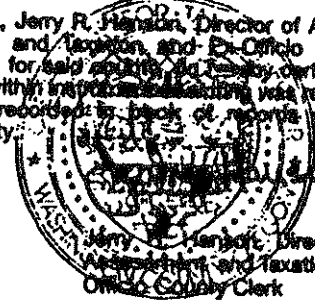
28

315.00
6.33

STATE OF OREGON
County of Washington

SS

I, Jerry R. Hanson, Director of Assessment and Taxation, and Ex-Officio County Clerk for said county, do hereby certify that the within instrument has been received and recorded in book of records of said county.



AFTER RECORDING, RETURN TO:

FN

PREPARED BY:

Howard M. Feuerstein
Steel Rives LLP
900 SW Fifth Avenue, Suite 2600
Portland, Oregon 97204

Doc : 2001059740
Rect: 281492 332.00
06/21/2001 02:11:29pm

DECLARATION SUBMITTING
COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE 1
TO CONDOMINIUM OWNERSHIP

Springville Corporation

DECLARANT

Portland-2055713.2 00-10603-00001

1-63

TABLE OF CONTENTS

	<u>Page</u>
ARTICLE 1. DEFINITIONS	1
1.1 "Association"	1
1.2 "Bylaws"	1
1.3 "Condominium"	1
1.4 "Declarant"	1
1.5 "Declaration"	1
1.6 "Eligible Mortgage Insurer or Guarantor"	1
1.7 "Eligible Mortgage Holder"	2
1.8 "Mortgage" and "Mortgagee"	2
1.9 "Plat"	2
1.10 Incorporation by Reference	2
ARTICLE 2. SUBMISSION OF PROPERTY TO CONDOMINIUM STATUTE ..	2
ARTICLE 3. NAME OF CONDOMINIUM	2
ARTICLE 4. UNITS	2
4.1 General Description of Buildings	2
4.2 General Description, Location and Designation of Units	2
4.3 Boundaries of Units	3
ARTICLE 5. GENERAL COMMON ELEMENTS	3
ARTICLE 6. LIMITED COMMON ELEMENTS	4
ARTICLE 7. ALLOCATION OF UNDIVIDED INTERESTS IN COMMON ELEMENTS	4
ARTICLE 8. COMMON PROFITS AND EXPENSES: VOTING	4
8.1 Allocation of Common Profits and Expenses	4
8.2 Allocation of Voting Rights	5
ARTICLE 9. SERVICE OF PROCESS	5
ARTICLE 10. USE OF PROPERTY	5

1	ARTICLE 11.	MAINTENANCE OF COMMON ELEMENTS	5
2			
3	11.1	Responsibility for Maintenance	5
4	11.2	Mortgagee's Rights upon Failure to Maintain	5
5	11.3	Rights of County Upon Failure to Maintain	6
6	ARTICLE 12.	EASEMENTS	6
7	12.1	In General	6
8	12.2	Encroachments	6
9	12.3	Granting of Easements by Association	6
10	12.4	Right of Entry	7
11	12.5	Easements for Declarant	7
12	12.6	Reservation of Easements for Future Development	7
13	ARTICLE 13.	APPROVAL BY MORTGAGEES	8
14	13.1	Notice of Action	8
15	13.2	Termination and Amendment to Documents	8
16	13.3	Additional Approvals	10
17	13.4	Notice to First Mortgagees of Defaults	10
18	ARTICLE 14.	ASSOCIATION OF UNIT OWNERS	10
19	14.1	Organization	10
20	14.2	Membership; Board of Directors	10
21	14.3	Powers and Duties	11
22	14.4	Adoption of Bylaws, Declarant Control of Association	11
23	ARTICLE 15.	PLAN OF DEVELOPMENT	11
24	15.1	Maximum Number of Units	11
25	15.2	Termination Date	11
26	15.3	Additional Common Elements	11
27	15.4	Allocation of Interests in Common Elements	11
28	15.5	Legal Description of Additional Stages	12
	ARTICLE 16.	AMENDMENT	12
	16.1	How Proposed	12
	16.2	Approval Required	12
	16.3	Recordation	12

1 ARTICLE 17. SEVERABILITY 13

2 ARTICLE 18. APPLICABILITY 13

3
4 Exhibit A Legal Description
5 Exhibit B Unit Square Footage and Undivided Interests
6 Exhibit C Parking Space Assignments
7 Exhibit D Legal Description of Future Stages
8 Exhibit E Bylaws
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

Portland-2055713.2 0040603-00001

iii 4

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

**DECLARATION SUBMITTING
COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE I
TO CONDOMINIUM OWNERSHIP**

THIS DECLARATION, pursuant to the provisions of the Oregon Condominium Act, is made and executed this 4th day of April, 2001, by **SPRINGVILLE CORPORATION**, an Oregon corporation ("Declarant").

Declarant proposes to create a condominium to be known as Courtyards at Springville Condominium, which will be located in Washington County, Oregon. The purpose of this Declaration is to submit the property described in Article 2 below to the condominium form of ownership and use in the manner provided by the Oregon Condominium Act.

NOW, THEREFORE, Declarant does hereby declare and provide as follows:

ARTICLE I.

DEFINITIONS

When used in this Declaration the following terms shall have the following meanings:

1.1 "**Association**" means the association of unit owners established pursuant to Article 14 below.

1.2 "**Bylaws**" means the Bylaws of Courtyards at Springville Condominium Association adopted pursuant to Section 14.4 below as the same may be amended from time to time.

1.3 "**Condominium**" means all of that property submitted to the condominium form of ownership by this Declaration plus any additional property annexed to the project pursuant to Article 15 below.

1.4 "**Declarant**" means Springville Corporation, an Oregon corporation, and its successors and assigns.

1.5 "**Declaration**" means this Declaration as the same may hereafter be amended and any supplemental declaration annexing property to the Condominium.

1.6 "**Eligible Mortgage Insurer or Guarantor**" means an insurer or governmental guarantor of a first mortgage on a unit who has requested notice of certain matters from the Association in accordance with Section 13.1 below.

1 1.7 "Eligible Mortgage Holder" means a holder of a first mortgage on a unit who has
2 requested notice of certain matters from the Association in accordance with Section 13.1 below,
3 but shall not include a contract vendor.

4 1.8 "Mortgage" and "Mortgagee" mean, respectively, a recorded mortgage, trust deed
5 or contract of sale which creates a lien against a unit, and the holder, beneficiary or vendor of
6 such a mortgage, trust deed or contract of sale.

7 1.9 "Plat" means the plat of Stage 1 of Courtyards at Springville Condominium
8 recorded simultaneously with the recording of this Declaration.

9 1.10 Incorporation by Reference. Except as otherwise provided in this Declaration,
10 each of the terms defined in ORS 100.005, a part of the Oregon Condominium Act, shall have the
11 meanings set forth in such section.

12 ARTICLE 2.

13 SUBMISSION OF PROPERTY TO CONDOMINIUM STATUTE

14 The property submitted to the Oregon Condominium Act by this Declaration is held by
15 Declarant and conveyed by Declarant in fee simple estate. The land submitted is located in
16 Washington County, Oregon, and is more particularly described in the attached Exhibit A. The
17 property submitted includes the land so described, all buildings, improvements and structures, all
18 easements, and rights and appurtenances located on, belonging to or used in connection with such
19 land.

20 ARTICLE 3.

21 NAME OF CONDOMINIUM

22 The name by which the Condominium shall be known is "Courtyards at Springville
23 Condominium."

24 ARTICLE 4.

25 UNITS

26 4.1 General Description of Buildings. Stage 1 The Condominium contains four
27 buildings of dwelling units. Each of such buildings contains two and three story elements, without
28 basement. The buildings are of wood frame construction with vinyl siding and composition roofs.

4.2 General Description, Location and Designation of Units. Stage 1 consists of 60 units. The designation, location, description of boundaries and area in square feet of each unit are shown on the Plat and the attached Exhibit B.

4.3 Boundaries of Units. Each unit shall be bounded by the interior surfaces of its perimeter and bearing walls, floors, ceilings, windows and window frames, doors and door frames, and trim. The unit shall include all lath, furring, wallboard, plasterboard, plaster, paneling, tiles, wallpaper, paint, finished flooring and any other materials constituting any part of its finished surfaces, except those portions of the walls, floors or ceilings that materially contribute to the structural or shear capacity of the Condominium. All other portions of the walls, floors or ceilings shall be a part of the common elements. In addition, each unit shall include the following: (a) All spaces, nonbearing interior partitions, windows, window frames, exterior doors, door frames and all other fixtures and improvements within the boundaries of the unit; and (b) All outlets of utility and communications service lines, including but not limited to power, light, gas, hot and cold water, heating, refrigeration, air conditioning and waste disposal, security, cable television and telephone, within the boundaries of the unit, but shall not include any part of such lines or ducts themselves.

ARTICLE 5.

GENERAL COMMON ELEMENTS

The general common elements consist of the following:

5.1 The land, pathways, driveways, fences, grounds, pool and spa area, garage structures and parking areas, except parking spaces which are designated as limited common elements by Article 6 below.

5.2 Pipes, ducts, flues, chutes, conduits, wires and other utility and communications installations to their outlets.

5.3 Roofs, foundations, bearing and shear walls, perimeter walls, beams, columns and girders to the interior surfaces thereof.

5.4 Stairways, landings, entrances and exits which are not part of a unit.

5.5 All other elements of the buildings and the Condominium necessary or convenient to their existence, maintenance and safety, or normally in common use, except as may be expressly designated in this Declaration as part of a unit or a limited common element.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

ARTICLE 6.

LIMITED COMMON ELEMENTS

The following shall constitute limited common elements, the use of which shall be restricted to the units to which they pertain:

6.1 All patios and balconies, each of which shall pertain to the unit which it adjoins as shown on the Plat.

6.2 Parking spaces designated as limited common elements in the Plat, each of which shall pertain to the unit indicated in the attached Exhibit C; provided, however, that any such parking space may be transferred so as to pertain to a different unit by an amendment to this Declaration executed by the owner and any mortgagee of the unit to which the parking space previously pertained and by the owner of the unit to which the space is being transferred. Such transfer shall be effective upon the recording of such amendment in the Records of Washington County, Oregon. No transfer, however, shall be such as to leave any unit without at least one parking space assigned to it as a limited common element.

ARTICLE 7.

ALLOCATION OF UNDIVIDED INTERESTS IN COMMON ELEMENTS

Each unit will be entitled to an undivided ownership interest in the common elements determined by the ratio by which the approximate area of the particular unit bears to the total approximate area of all units combined, as shown on the attached Exhibit B. Such allocation will change if additional stages are added to the Condominium as is more particularly described in Section 15.4 below. Each unit's interest in the common elements shall be inseparable from the unit and any conveyance, encumbrance, judicial sale, or other transfer, voluntary or involuntary, of an undivided interest in the common elements shall be void unless the unit to which that interest is allocated is also transferred.

ARTICLE 8.

COMMON PROFITS AND EXPENSES; VOTING

8.1 Allocation of Common Profits and Expenses. The common profits and common expenses of the Condominium shall be allocated to each unit equally, so that each unit shall be entitled to and bear a portion such profits and expenses determined by dividing one by the number of units then existing in the condominium (1/34th at Stage 1), except that the following common expenses shall be allocated to each unit according to such unit's allocation of undivided interest in the common elements: (a) the Association's property damage insurance, and (b) all costs of maintaining, repairing or reconstructing the dwelling buildings, including any reserves for such

1 future costs. Except upon termination of the Condominium or as otherwise provided in the
2 Bylaws with respect to damage, destruction or condemnation, any such common profits shall be
3 used solely for the purpose of maintaining, repairing and replacing the common elements or for
other expenses or reserves of the Association.

4 8.2 Allocation of Voting Rights. Each unit owner shall be entitled to one vote in the
5 affairs of the Association and for the purposes of this Declaration for each unit owned by such
6 owner. The method of voting shall be as specified in the Bylaws.

7 ARTICLE 9.

8 SERVICE OF PROCESS

9 The designated agent to receive service of process in cases provided in subsection (1) of
10 ORS 100.550 is named in the Condominium Information Report which has been filed in
11 accordance with ORS 100.250(1)(a).

12 ARTICLE 10.

13 USE OF PROPERTY

14 Each unit is to be used for residential purposes as described in the Bylaws. Additional
15 limitations on use are contained in the Bylaws and the rules and regulations adopted pursuant to
the Bylaws. Each unit owner shall be bound by each of such documents.

16 ARTICLE 11.

17 MAINTENANCE OF COMMON ELEMENTS

18 11.1 Responsibility for Maintenance. The necessary work to maintain, repair or
19 replace the common elements shall be the responsibility of the board of directors of the
20 Association and shall be carried out as provided in the Bylaws.

21 11.2 Mortgagee's Rights upon Failure to Maintain. If the mortgagee of any unit
22 determines that the board of directors is not providing an adequate maintenance, repair and
23 replacement program for the common elements, such mortgagee, at its option, may give a notice
24 to the board of directors by delivering same to the registered agent, setting forth the particular
25 defect which it believes exists in the maintenance, repair and replacement program. If the
26 specified defects are not corrected within 90 days subsequent to receipt of such notice, then the
27 mortgagee, upon written notice to the registered agent that it is exercising its proxy rights, shall
28 have the right to attend succeeding annual or special meetings of the Association and to cast a vote
for each unit on which it holds a mortgage on all business coming before such meeting. Such
proxy rights shall continue until the defects listed on the notice are corrected.

1 execute, acknowledge, deliver and record on behalf of the unit owners leases, easements, rights-
2 of-way, licenses, and similar interests in excess of two years affecting the common elements and
3 consent to vacation of roadways within and adjacent to the Condominium. Any such instrument
4 shall be executed by the chairperson and secretary of the Association. No such interest may be
5 granted with regard to a limited common element unless the owners and mortgagees of the units
6 having the right to use such limited common element consent to and join in the instrument
7 granting the interest.

8 **12.4 Right of Entry.** The board of directors of the Association, managing agent,
9 manager or any other person authorized by the board of directors shall have the right to enter any
10 unit and limited common element in the case of an emergency originating in or threatening such
11 unit or other condominium property, whether or not the owner is present at the time. Such
12 persons shall also have the right to enter any unit and limited common element for the purpose
13 of performing installations, alterations or repairs to any common element and for the purpose of
14 inspection to verify that the unit owner is complying with the restrictions and requirements
15 described in this Declaration and the Bylaws, provided that requests for entry are made in advance
16 and that such entry is at a time convenient to the owner.

17 **12.5 Easements for Declarant.** Declarant and Declarant's agents, successors and
18 assigns shall have an easement over and upon the common elements as may be reasonably
19 necessary for the purpose of completing or making repairs to existing structures, for the purpose
20 of carrying out sales and rental activities necessary or convenient for the sale or rental of units,
21 including, without limitation, the right to use the units owned by Declarant as model units and the
22 right to use a unit as a sales office, and for the purpose of discharging any other obligation of
23 Declarant or exercising any other special Declarant right, whether arising under the Oregon
24 Condominium Act or reserved in this Declaration or the Bylaws.

25 **12.6 Reservation of Easements for Future Development.** Until such time, if ever, that
26 the real property described on Exhibit D has been annexed to the Condominium, Declarant hereby
27 reserves (a) a nonexclusive easement for ingress and egress over all roadways and driveways
28 within the Condominium, (b) an easement for the maintenance and use of all existing utility lines
and systems within the Condominium, including without limitation water, sewer, gas, electrical,
telephone, communication and cable television systems, and (c) an easement for use of the
common element facilities of the Condominium, provided that Declarant pays a pro rata share of
the costs of operating and maintaining such easement areas based upon the number of living units
in the additional stages divided by the total number of such living units in the additional stages
and the Condominium combined. Such easements shall be for the benefit of and shall run with
the ownership of the entire remainder of the proposed project site, more particularly described in
the attached Exhibit D, and each and every portion thereof, whether or not such property is
annexed to the Condominium as provided in Article 15 below.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

ARTICLE 13.

APPROVAL BY MORTGAGEES

13.1 Notice of Action. Upon written request to the Association identifying the name and address of the holder, insurer or guarantor and the unit number or address of the unit on which it has (or insures or guarantees) the mortgage, any such eligible mortgage holder or eligible insurer or guarantor shall be entitled to timely written notice of the following:

(a) Any condemnation or casualty loss which affects a material portion of the Condominium or affects the unit securing its mortgage.

(b) Any 60-day delinquency in the payment of assessments or charges owed by an owner of any unit on which it holds the mortgage.

(c) Any lapse, cancellation or material modification of any insurance policy maintained by the Association.

(d) Any proposed action which would require consent of a specified percentage of eligible mortgage holders as required by this article.

13.2 Termination and Amendment to Documents.

(a) The approval of eligible holders holding mortgages on units which have at least 67 percent of the voting rights of units subject to eligible holder mortgages shall be required to terminate the legal status of the project as a condominium for reasons other than substantial destruction or condemnation of the property.

(b) Except when a greater percent is required by the Declaration or Bylaws, or a greater or lesser percent is required by the Oregon Condominium Act, the consent of the owners of units holding at least 67 percent of the voting rights and the approval of eligible holders holding mortgages on units which have at least 51 percent of the voting rights of the units subject to eligible holder mortgages shall be required for any amendments of a material nature to the Declaration or Bylaws. Any amendment to the Declaration or Bylaws which changes any of the following shall constitute a material change:

(1) Voting rights;

(2) Increases in assessments that raise the previously assessed amount by more than twenty-five percent (25%), assessment liens or the priority of such liens;

(3) Reduction in reserves for maintenance, repair and replacement of the common elements;

1 **13.3 Additional Approvals.** In addition to any other approvals required by the Oregon
2 Condominium Act, this Declaration or the Bylaws, the prior written approval of two-thirds of the
3 holders of first mortgages on units in the Condominium (based upon one vote for each first
4 mortgage owned) or unit owners (other than Declarant) must be obtained for the following:

5 (a) Abandonment or termination of the Condominium regime.

6 (b) Except as otherwise provided in Section 15.4, any change in the pro rata
7 interest or obligations of any individual unit for (a) purpose of levying assessments or charges or
8 allocating distributions of hazard insurance proceeds or condemnation awards, or (b) determining
9 the pro rata share of ownership of each unit in the common elements.

10 (c) The partition or subdivision of any unit.

11 (d) Abandonment, partition, subdivision, encumbrance, sale or transfer of the
12 common elements. The granting of easements for public utilities or for other public purposes
13 consistent with the intended use of the common elements by the condominium project shall not
14 be deemed a transfer within the meaning of this clause.

15 (e) Use of hazard insurance proceeds for losses to any condominium property,
16 whether to units or to common elements, for other than the repair, replacement or reconstruction
17 of such improvements, except as provided by statute in cases of substantial loss to the units and/or
18 common elements of the condominium project.

19 **13.4 Notice to First Mortgagees of Defaults.** Any first mortgagee, upon request, will
20 be entitled to written notification from the Association of any default in the performance by the
21 owner of the mortgaged unit of any obligation under this Declaration, the rules and regulations
22 or the Bylaws which is not cured within 60 days.

23 **ARTICLE 14.**

24 **ASSOCIATION OF UNIT OWNERS**

25 **14.1 Organization.** Upon the recording of this Declaration an association of unit
26 owners shall be organized to serve as a means through which the unit owners may take action with
27 regard to the administration, management and operation of the Condominium. The name of this
28 association shall be "Courtyards at Springville Condominium Association," and the Association
shall be an Oregon nonprofit corporation.

14.2 Membership; Board of Directors. Each unit owner shall be a member of the
Association. The affairs of the Association shall be governed by a board of directors as provided
in the Bylaws.

14.3 Powers and Duties. The Association shall have such powers and duties as may be granted to it by the Oregon Condominium Act, including each of the powers set forth in ORS 100.405(4), together with such additional powers and duties afforded it by this Declaration or the Bylaws.

14.4 Adoption of Bylaws, Declarant Control of Association. Upon the execution and the recording of this Declaration, Declarant shall adopt Bylaws for the Association, which Bylaws are attached as Exhibit E. Declarant specifically reserves the right to control the Association by appointing the interim directors of the Association until the organizational and turnover meeting of the Association has been held and the unit owners have elected regular directors as provided in Sections 2.2 and 3.4 of the Bylaws. In addition, Declarant shall have the right to consent to any amendment to the Declaration or the Bylaws as provided in Section 16.2 below and Section 9.2 of the Bylaws.

ARTICLE 15.

PLAN OF DEVELOPMENT

The Condominium may be developed in stages. By recording this Declaration, Declarant hereby submits Stage 1 to the Condominium form of ownership. Declarant reserves the right to add additional stages to the Condominium and to annex such additional stages by recording supplements to this Declaration pursuant to ORS 100.120, together with a plat of the stage being annexed bearing a completion certificate as required by ORS 100.120 and 100.115. Any such additional stage shall be consistent with Stage 1 in structure type and quality of construction, and all improvements shall be substantially completed prior to annexation.

15.1 Maximum Number of Units. If fully developed, the Condominium shall contain not more than 128 units.

15.2 Termination Date. No additional stage may be added more than seven years after the recording of this Declaration. Such date may be extended for a period not to exceed two years by an amendment adopted pursuant to Section 16.2.

15.3 **Additional Common Elements.** Declarant does not propose to include in future stages any common elements which would substantially increase the proportionate amount of the common expenses payable by owners of units in Stage 1.

15.4 Allocation of Interests in Common Elements. The allocation of undivided interests in the common elements of units in Stage 1 will change if additional stages are annexed to the Condominium. Such allocation shall be determined by the ratio of the approximate area of each unit compared to the total approximate area of all units then existing in the Condominium.

15.5 Legal Description of Additional Stages. A legal description of the property upon which the additional stages would be located is included in the attached Exhibit D.

ARTICLE 16.

AMENDMENT

16.1 How Proposed. Amendments to the Declaration shall be proposed by either a majority of the board of directors or by unit owners holding thirty percent (30%) or more of the voting rights. The proposed amendment must be reduced to writing and shall be included in the notice of any meeting at which action is to be taken thereon or attached to any request for consent to the amendment.

16.2 Approval Required. Except as may otherwise be provided in this Declaration or by the Oregon Condominium Act, this Declaration may be amended if such amendment is approved by unit owners holding 75 percent of the voting rights of the Condominium and by mortgagees to the extent required by Article 13. Declarant's prior written consent shall also be required until annexation of the last stage of the Condominium and so long as Declarant owns 25 percent or more of the total number of units which Declarant may submit to the Condominium, but no such consent shall be required after five years from the date of conveyance of the first unit to a person other than Declarant. Except as provided in Article 15 and except as otherwise permitted by the Oregon Condominium Act, no amendment may change the size, location, allocation of undivided interest in the common elements, method of determining liability for common expenses, right to common profits, or voting rights of any unit unless such amendment has been approved by the owners and mortgagees of the affected unit. Any amendment which would limit or diminish any special Declarant rights established in this Declaration, including the right of Declarant to annex additional stages under Article 15, or the Bylaws shall require the written consent of Declarant.

16.3 Recordation. The amendment shall be effective upon recordation in the Deed Records of Washington County, Oregon, of the Declaration as amended or of the amendment thereto, certified to by the chairperson and secretary of the Association as being adopted in accordance with this Declaration and the provisions of the Oregon Condominium Act, and approved by the county assessor and the Real Estate Commissioner if such approvals are required by the Oregon Condominium Act.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

ARTICLE 17.

SEVERABILITY

Each provision of this Declaration and the Bylaws shall be deemed independent and severable, and the validity or partial invalidity of any provision shall not affect the validity or enforceability of the remaining part of that or any other provision of this Declaration or the Bylaws.

ARTICLE 18.

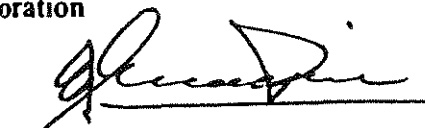
APPLICABILITY

Each unit owner, including Declarant as to any unsold unit, shall be subject to all of the rights and duties assigned to unit owners under the terms of the Declaration and Bylaws.

IN WITNESS WHEREOF, Declarant has caused this Declaration to be executed as of the day and year first set forth above.

SPRINGVILLE CORPORATION, an Oregon corporation

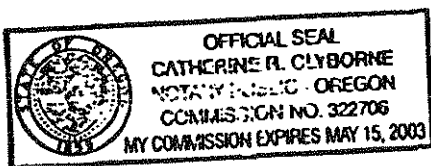
By

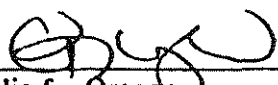

Michael Chiu, President

STATE OF OREGON)

County of Washington) ss.

The foregoing instrument was acknowledged before me this 4 day of April, 2004 by Michael Chiu, President of Springville Corporation, an Oregon corporation, on behalf of the corporation.




Notary Public for Oregon

My commission expires:

Commission No.:

5/15/03

1 The foregoing Declaration is approved this 20th day of JUNE, 2001.

2
3 ASSESSOR AND TAX COLLECTOR
FOR WASHINGTON COUNTY

4
5 By Paul A. Taffner

6
7 The foregoing Declaration is approved pursuant to ORS 100.110 this 19th day of
8 June, 20 01 and in accordance with ORS 100.110(7), this approval shall automatically
expire if this Declaration is not recorded within two (2) years from this date.

9
10 SCOTT W. TAYLOR,
Real Estate Commissioner

11
12 By Brian Demarco
13 Brian Demarco

EXHIBIT A

Legal Description, Stage 1

A portion of that tract of land as conveyed to Springville Associates, Inc. in Document No. 92057025, Washington County Deed Records, situated in the Northwest Quarter of Section 19, Township 1 North, Range 1 West, Willamette Meridian, Washington County, State of Oregon, being more particularly described as follows:

Beginning at the initial point, said point being a found 5/8" iron rod with yellow plastic cap marked "W.B. Wells & Assoc. Inc.," said point being the northeast corner of said Springville Assoc. tract and bears South 56°48'46" West, a distance of 67.46 feet from the north quarter corner of Section 19; thence along the east line of the said Springville Tract, South 00°00'13" East, a distance of 515.36 feet; thence leaving said east line, North 66°10'05" West, a distance of 48.78 feet to a 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc."; thence North 86°32'50" West, a distance of 176.17 feet to a 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc."; thence North 79°48'19" West, a distance of 27.82 feet to the west line of said Springville Tract; thence along the west line of said Springville Tract, North 00°10'01" East, a distance of 480.44 feet to the northwest corner of said Springville Tract, said point being on the south right-of-way line of N.W. Springville Road; thence along said right-of-way line and the north line of said Springville Tract, South 89°55'33" East, a distance of 246.41 feet to the initial point.

EXHIBIT B

Unit Square Footages and Undivided Interests

<u>Unit</u>	<u>Square Footage</u>	<u>Undivided Interest</u>
A1	999	1.6826%
A2	999	1.6826%
A3	708	1.1925%
A4	708	1.1925%
A5	913	1.5377%
A6	913	1.5377%
A7	913	1.5377%
A8	913	1.5377%
A9	913	1.5377%
A10	913	1.5377%
A11	913	1.5377%
A12	913	1.5377%
A13	1366	2.3007%
A14	1366	2.3007%
B1	1010	1.7011%
B2	1010	1.7011%
B3	706	1.1891%
B4	706	1.1891%
B5	971	1.6354%
B6	971	1.6354%
B7	995	1.6758%
B8	995	1.6758%

Portion II-2055713.2 0040603-00001

20

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

<u>Unit</u>	<u>Square Footage</u>	<u>Undivided Interest</u>
B9	1318	2.2198%
B10	1318	2.2198%
B11	1318	2.2198%
B12	1318	2.2198%
B13	995	1.6758%
B14	995	1.6758%
B15	971	1.6354%
B16	971	1.6354%
B17	706	1.1891%
B18	706	1.1891%
B19	1016	1.7112%
B20	1016	1.7112%
C1	998	1.6809%
C2	998	1.6809%
C3	906	1.5259%
C4	906	1.5259%
C5	913	1.5377%
C6	913	1.5377%
C7	913	1.5377%
C8	913	1.5377%
C9	912	1.5360%
C10	912	1.5360%
C11	1349	2.2720%
C12	1349	2.2720%
D1	1013	1.7061%

PortInd1-2055713.2 0040603-00001

21

<u>Unit</u>	<u>Square Footage</u>	<u>Undivided Interest</u>
D2	1013	1.7061%
D3	709	1.1941%
D4	709	1.1941%
D5	973	1.6388%
D6	973	1.6388%
D7	971	1.6354%
D8	971	1.6354%
D9	985	1.6590%
D10	985	1.6590%
D11	995	1.6758%
D12	995	1.6758%
D13	1319	2.2215%
D14	1319	2.2215%
TOTAL	59374	100.0000%

1

2

3

4

5

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

<u>Unit</u>	<u>Parking Space Assignment</u>
B9	PS-37
B10	PS-38
B11	PS-40
B12	PS-39
B13	PS-26
B14	PS-41
B15	PS-27
B16	PS-42
B17	PS-43
B18	PS-44
B19	PS-45
B20	PS-46
C1	PS-21
C2	PS-20
C3	PS-19
C4	PS-18
C5	PS-17
C6	PS-16
C7	PS-29
C8	PS-28
C9	PS-30
C10	PS-15
C11	PS-14
C12	PS-13
D1	PS-47

PortInd1-2055713.2 0040603-00001

24

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

<u>Unit</u>	<u>Parking SpaceAssignment</u>
D2	PS-48
D3	PS-49
D4	PS-50
D5	PS-51
D6	PS-52
D7	PS-53
D8	PS-54
D9	PS-55
D10	PS-56
D11	PS-58
D12	PS-57
D13	PS-59
D14	PS-60

Portland-2055713.2 00-0003-00001

25

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

EXHIBIT D

Legal Description of Future Stages

The premises are in Washington County and are described as follows:

A portion of the northwest quarter of Section 19, Township 1 North, Range 1 West of the Willamette Meridian in Washington County, Oregon, described as follows:

Beginning at a point on the north line of said Section 19 which bears North 89° 55' 33" West 56.46 feet from the north quarter corner thereof; thence South 1068.36 feet to a point on the south line of that certain tract conveyed to Ernest Schaer and Hedvig Schaer by deeds recorded in Book 144, Page 515 and Book 150, Page 386 in the deed records of said county; thence along the boundary of said Schaer tracts North 89° 12' 30" West 249.56 feet and North 00° 10' 33" East 1065.23 feet to a point on the north line of said Section 19; thence South 89° 55' 33" East 246.26 feet to the point of beginning.

Excepting therefrom that portion thereof dedicated to the public by deed recorded July 11, 1991, as Fee No. 91037011.

Excepting therefrom the Stage 1 property described in Exhibit A of this declaration.

1 AFTER RECORDING, RETURN TO:

2
3 Howard M. Feuerstein, Esq.
4 Stool Rives, LLP
5 900 SW Fifth, Suite 2600
6 Portland, OR 97204

READ, REVIEWED AND APPROVED

(X) [Signature]
(X) [Signature]
(X) _____
(X) _____

7
8 **COURTYARDS AT SPRINGVILLE CONDOMINIUM**

9 **Amendment Transferring Parking Spaces**

10
11 THIS AMENDMENT is made and executed this 15th day of August, 2001, by
12 SPRINGVILLE CORPORATION, an Oregon corporation ("Declarant").

13 **RECITALS**

14 A. Declarant is the owner of Units A2, A3, A4, A6, A7 and A8 of Courtyards at
15 Springville Condominium, a condominium located in Washington County, Oregon.

16 B. The Declaration Submitting Courtyards at Springville Condominium, Stage 1 to
17 Condominium Ownership dated April 4, 2001 and recorded June 21, 2001, as Document No.
18 2001059740 of the Recdrds of Deeds of Washington County, Oregon (the "Declaration")
19 provides in Section 6.2 that any parking space that is a limited common element may be
20 transferred so as to pertain to a different unit by an amendment to the Declaration executed by
21 the owner and any mortgagee of the unit to which the parking space previously pertained and
22 by the owner of the unit to which the space is being transferred.

23 C. Declarant wishes to transfer certain parking spaces among the above units.

24 NOW, THEREFORE, FOR VALUABLE CONSIDERATION, the receipt of which
25 is hereby acknowledged, Declarant amends the above-described Declaration for the purpose of
26 reassigning and conveying the following parking spaces to the following units so that the same
27 shall hereafter be a limited common element for the exclusive use of such unit: ,
28

Portnd1-2081127.1 0040603-00001

PARKING SPACE	CURRENTLY ASSIGNED TO UNIT	TRANSFERRED TO UNIT
PS-5	A8	A7
PS-6	A7	A6
PS-7	A6	A8
PS-9	A4	A3
PS-10	A2	A4
PS-11	A3	A2

The Parking Spaces now assigned to such units are as follows:

UNIT	PARKING SPACES
A2	PS-11
A3	PS-9
A4	PS-10
A6	PS-6
A7	PS-5
A8	PS-7

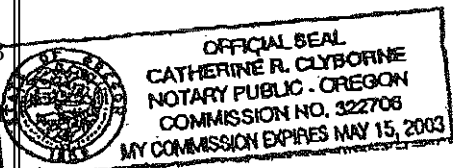
SPRINGVILLE CORPORATION, an Oregon corporation

By

Michael Chiu, President

STATE OF Oregon)
County of Washington) ss.

The foregoing instrument is acknowledged before me this 1 day of August, 2001, by Michael Chiu, President of Springville Corporation, an Oregon corporation, on its behalf.

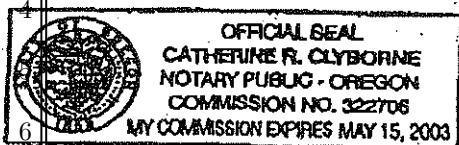


Notary Public for _____
My commission expires: _____

5/15/2003

MORTGAGEE'S CONSENT

The undersigned, as holder of a trust deed on the above units, hereby consents to the above transfer.



M&T REAL ESTATE, INC.

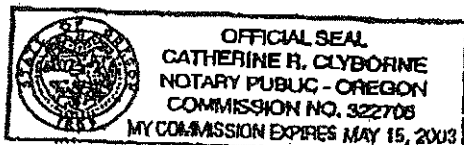
By

Its

[Signature]
BANKING OFFICER

STATE OF OREGON)
)ss.
County of _____)

The foregoing instrument is acknowledged before me this 1 day of August, 2001, by James Gaylord, Banking Officer of M&T Real Estate, Inc., a(n) _____, on its behalf.



[Signature]
Notary Public for Oregon

My commission expires: 5/15/03

The foregoing Amendment Transferring Parking Spaces is hereby approved this _____ day of August, 2001.

ASSESSOR AND TAX COLLECTOR FOR
WASHINGTON COUNTY

By _____

Washington County, Oregon

11/18/2004 08:37:14 AM

2004-131258

D-RND

Crt=1 Sns=6 J ORBOORY

\$75.00 \$5.00 \$11.00 - Total = \$92.00



00084289200401312580150183

I, Jerry Hansen, Director of Assessment and Taxation
and Ex-Officio County Clerk for Washington County,
Oregon, do hereby certify that the within instrument of
writing was received and recorded in the book of
records of said county.

Jerry Hansen
Jerry R. Hansen, Director of Assessment and Taxation,
Ex-Officio County Clerk

AFTER RECORDING, RETURN TO:

* Same as below

PREPARED BY:

* Howard M. Feuerstein, Esq.
Steel Rives LLP
900 SW Fifth Avenue, Suite 2600
Portland, OR 97204

**SUPPLEMENTAL DECLARATION SUBMITTING
COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE 2
TO CONDOMINIUM OWNERSHIP**

**Springville Corporation
DECLARANT**

PortInd1-2179399.2 0040603-00001



TABLE OF CONTENTS

	<u>Page</u>
ARTICLE 1 DEFINITIONS.....	1
1.1 "Association"	1
1.2 "Bylaws"	1
1.3 "Condominium"	1
1.4 "Declarant"	1
1.5 "Declaration"	1
1.6 "Plat"	1
1.7 "Stage 1 Declaration"	2
1.8 Incorporation by Reference.....	2
ARTICLE 2 SUBMISSION OF PROPERTY TO CONDOMINIUM OWNERSHIP	2
ARTICLE 3 UNITS.....	2
3.1 General Description of Buildings	2
3.2 General Description, Location and Designation of Units.....	2
3.3 Boundaries of Units.	2
ARTICLE 4 GENERAL COMMON ELEMENTS.....	3
ARTICLE 5 LIMITED COMMON ELEMENTS	3
ARTICLE 6 ALLOCATION OF UNDIVIDED INTERESTS IN COMMON ELEMENTS.....	4
ARTICLE 7 EASEMENTS	4
7.1 In General.....	4
7.2 Encroachments.....	4
7.3 Granting of Easements by Association	4
7.4 Right of Entry.	5

Portland-2179399.2 0040603-00001



2004-131288

7.5	Easements for Declarant	5
7.6	Reservation of Easements for Future Development	5
ARTICLE 8 PLAN OF DEVELOPMENT.....		5
8.1	Maximum Number of Units.....	6
8.2	Termination Date	6
8.3	Additional Common Elements.....	6
8.4	Allocation of Interest in Common Elements.	6
ARTICLE 9 ADOPTION BY REFERENCE.....		6



1
2
3 **SUPPLEMENTAL DECLARATION SUBMITTING**
4 **COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE 2**
5 **TO CONDOMINIUM OWNERSHIP**

6 **THIS SUPPLEMENTAL DECLARATION**, pursuant to the provisions of the Oregon
7 Condominium Act, is made and executed this 8th day of October, 2004, by
8 **SPRINGVILLE CORPORATION**, an Oregon corporation ("Declarant").

9 By document dated April 4, 2001, entitled Declaration Submitting Courtyards at
10 Springville Condominium, Stage 1 to Oregon Condominium Act, Declarant created a
11 condominium known as Courtyards at Springville Condominium, which is located in
12 Washington County, Oregon. The purpose of this Supplemental Declaration is to submit the
13 property described in Article 2 below to the condominium form of ownership and use in the
14 manner provided by the Oregon Condominium Act, and to annex such property to Courtyards at
15 Springville Condominium.

16 **NOW, THEREFORE**, Declarant does hereby declare and provide as follows:

17 **ARTICLE 1**

18 **DEFINITIONS**

19 When used in this Declaration the following terms shall have the following meanings:

20 1.1 **"Association"** means Courtyards at Springville Condominium Association.

21 1.2 **"Bylaws"** means the Bylaws of Courtyards at Springville Condominium
22 Association adopted pursuant to the Stage 1 Declaration as the same may be amended from time
23 to time.

24 1.3 **"Condominium"** means all of that property submitted to the condominium form
25 of ownership by the State 1 Declaration plus any additional property annexed to the project
26 pursuant to Article 15 of such Declaration.

27 1.4 **"Declarant"** means Springville Corporation, an Oregon corporation, and its
28 successors and assigns.

1.5 **"Declaration"** means the Stage 1 Declaration and any Supplemental Declaration
recorded in accordance with Article 16 of the Stage 1 Declaration, including without limitation,
this Supplemental Declaration.

1.6 **"Plat"** means the plat of Stage 2 of Courtyards at Springville Condominium
recorded simultaneously with the recording of this Supplemental Declaration.

Portland-2179399.2 0040603-00001



2004-121258

1.7 **"Stage 1 Declaration"** means that instrument dated April 4, 2001, recorded June 21, 2001 in the Records of Washington County, Oregon, as Document/Reception No. 2001059740.

1.8 **Incorporation by Reference.** Except as otherwise provided in this Supplemental Declaration, each of the terms defined in ORS 100.005, a part of the Oregon Condominium Act, shall have the meanings set forth in such section.

ARTICLE 2

SUBMISSION OF PROPERTY TO CONDOMINIUM OWNERSHIP

The property submitted to the Oregon Condominium Act by this Supplemental Declaration is held by Declarant and conveyed by Declarant in fee simple estate. The land submitted is located in Washington County, Oregon, and is more particularly described in the attached Exhibit A. The property submitted includes the land so described, all buildings, improvements and structures, all easements, and rights and appurtenances located on, belonging to or used in connection with such land.

ARTICLE 3

UNITS

3.1 **General Description of Buildings.** Stage 2 contains one building of dwelling units and two garage buildings. The dwelling building contains three stories, without basement. The buildings are of wood frame construction with vinyl siding and composition roofs.

3.2 **General Description, Location and Designation of Units.** Stage 2 consists of 20 units. The designation, location, description of boundaries and area in square feet of each unit are shown on the Plat and the attached Exhibit B.

3.3 **Boundaries of Units.** Each unit shall be bounded by the interior surfaces of its perimeter and bearing walls, floors, ceilings, windows and window frames, doors and door frames, and trim. The unit shall include all lath, furring, wallboard, plasterboard, plaster, paneling, tiles, wallpaper, paint, finished flooring and any other materials constituting any part of its finished surfaces, except those portions of the walls, floors or ceilings that materially contribute to the structural or shear capacity of the Condominium. All other portions of the walls, floors or ceilings shall be a part of the common elements. In addition, each unit shall include the following: (a) All spaces, nonbearing interior partitions, windows, window frames, exterior doors, door frames and all other fixtures and improvements within the boundaries of the unit; and (b) All outlets of utility and communications service lines, including but not limited to power, light, gas, hot and cold water, heating, refrigeration, air conditioning and waste disposal, security, cable television and telephone, within the boundaries of the unit, but shall not include any part of such lines or ducts themselves.

Portland-2179399.2 0040603-00001



1
2
3 **ARTICLE 4**

4 **GENERAL COMMON ELEMENTS**

5 The general common elements consist of the following:

6 4.1 The land, pathways, driveways, fences, grounds, garage structures and parking
7 areas, except parking spaces designated as limited common elements by Article 5 below.

8 4.2 Pipes, ducts, flues, chutes, conduits, wires and other utility and communications
9 installations to their outlets.

10 4.3 Roofs, foundations, bearing and shear walls, perimeter walls, beams, columns and
11 girders to the interior surfaces thereof.

12 4.4 Stairways, landings, entrances and exits which are not part of a unit.

13 4.5 All other elements of the buildings and the Condominium necessary or convenient
14 to their existence, maintenance and safety, or normally in common use, except as may be
15 expressly designated in this Supplemental Declaration as part of a unit or a limited common
16 element.

17 **ARTICLE 5**

18 **LIMITED COMMON ELEMENTS**

19 The following shall constitute limited common elements, the use of which shall be
20 restricted to the units to which they pertain:

21 5.1 All patios and balconies, each of which shall pertain to the unit which it adjoins as
22 shown on the Plat.

23 5.2 Parking spaces designated as limited common elements in the Plat, each of which
24 shall pertain to the unit indicated in the attached Exhibit C; provided, however, that any such
25 parking space may be transferred so as to pertain to a different unit by an amendment to the
26 Declaration executed by the owner and any mortgagee of the unit to which the parking space
27 previously pertained and by the owner of the unit to which the space is being transferred. Such
28 transfer shall be effective upon the recording of such amendment in the Records of Washington
County, Oregon. No transfer, however, shall be such as to leave any unit without at least one
parking space assigned to it as a limited common element.

ARTICLE 6

ALLOCATION OF UNDIVIDED INTERESTS IN COMMON ELEMENTS

Each unit will be entitled to an undivided ownership interest in the common elements determined by the ratio by which the approximate area of the particular unit bears to the total approximate area of all units combined, as shown on the attached Exhibit B. Such allocation will change if additional stages are added to the Condominium as is more particularly described in Section 8.4 below. Each unit's interest in the common elements shall be inseparable from the unit and any conveyance, encumbrance, judicial sale, or other transfer, voluntary or involuntary, of an undivided interest in the common elements shall be void unless the unit to which that interest is allocated is also transferred.

ARTICLE 7

EASEMENTS

7.1 In General. Each unit has an easement in and through each other unit and the common elements for all support elements and utility, wiring, heat, and service elements, and for reasonable access thereto, as required to effectuate and continue proper operation of the Condominium. In addition, each unit and all the common elements are specifically subject to easements as required for the electrical wiring and plumbing for each unit. The specific mention or reservation of any easement in this Supplemental Declaration does not limit or negate the general easement for common elements reserved by law. Each unit owner has an unrestricted right of ingress and egress to his or her unit. This right is perpetual and passes with the ownership of the unit.

7.2 Encroachments. Each unit and all common elements shall have an easement over all adjoining units and common elements for the purpose of accommodating any present or future encroachment as a result of engineering errors, construction, reconstruction, repairs, settlement, shifting, or movement of any portion of the property, or any other similar cause, and any encroachment due to building overhang or projection as long as the physical boundaries of the units are in substantial accord with the description of those boundaries that appears in the Declaration. There shall be valid easements for the maintenance of the encroaching units and common elements so long as the encroachments shall exist, and the rights and obligations of owners shall not be altered in any way by the encroachment. This provision does not relieve a unit owner of liability in the case of willful misconduct of the unit owner, or relieve Declarant or any contractor, subcontractor or materialman from any liability as a result of failure to adhere to the Plat. The encroachments described in this Section 7.2 shall not be construed to be encumbrances affecting the marketability of title to any unit.

7.3 Granting of Easements by Association. Pursuant to ORS 100.405(5), the Association, upon prior approval of 75 percent of the voting power of the unit owners, may execute, acknowledge, deliver and record on behalf of the unit owners leases, easements, rights-of-way, licenses, and similar interests in excess of two years affecting the common elements and

Portland-2179399.2 0040603-00001



consent to vacation of roadways within and adjacent to the Condominium. Any such instrument shall be executed by the chairperson and secretary of the Association. No such interest may be granted with regard to a limited common element unless the owners and mortgagees of the units having the right to use such limited common element join in the instrument granting the interest.

7.4 Right of Entry. The board of directors of the Association, managing agent, manager or any other person authorized by the board of directors shall have the right to enter any unit and limited common element in the case of an emergency originating in or threatening such unit or other condominium property, whether or not the owner is present at the time. Such persons shall also have the right to enter any unit and limited common element for the purpose of performing installations, alterations or repairs to any common element and for the purpose of inspection to verify that the unit owner is complying with the restrictions and requirements described in the Declaration and the Bylaws, provided that requests for entry are made in advance and that such entry is at a time convenient to the owner.

7.5 Easements for Declarant. Declarant and Declarant's agents, successors and assigns shall have an easement over and upon the common elements as may be reasonably necessary for the purpose of completing or making repairs to existing structures, for the purpose of carrying out sales and rental activities necessary or convenient for the sale or rental of units, including, without limitation, the right to use the units owned by Declarant as model units and the right to use a unit as a sales office, and for the purpose of discharging any other obligation of Declarant or exercising any other special Declarant right, whether arising under the Oregon Condominium Act or reserved in the Declaration or the Bylaws.

7.6 Reservation of Easements for Future Development. Until such time, if ever, that the real property described in Exhibit D of the Stage 1 Declaration has been annexed to the Condominium, Declarant hereby reserves (a) a nonexclusive easement for ingress and egress over all roadways and driveways within the Condominium, (b) an easement for the maintenance and use of all existing utility lines and systems within the Condominium, including without limitation water, sewer, gas, electrical, telephone, communication and cable television systems, and (c) an easement for use of the common element facilities of the Condominium, provided that Declarant pays a pro rata share of the costs of operating and maintaining such easement areas based upon the number of living units in the additional stages divided by the total number of such living units in the additional stages and the Condominium combined. Such easements shall be for the benefit of and shall run with the ownership of the entire remainder of the proposed project site, more particularly described in Exhibit D of the Stage 1 Declaration and each and every portion thereof, whether or not such property is annexed to the Condominium as provided in Article 8 below.

ARTICLE 8

PLAN OF DEVELOPMENT

Pursuant to Article 15 of the Stage 1 Declaration, Declarant proposes to develop the Condominium in stages. By recording this Supplemental Declaration, Declarant hereby submits

Portland-2179399.2 0040603-00001



1
2
3 Stage 2 to the condominium form of ownership. Declarant reserves the right to add additional
4 stages to the Condominium and to annex such additional stages by recording supplements to the
5 Declaration pursuant to ORS 100.120, together with a plat of the stage being annexed bearing a
6 completion certificate as required by ORS 100.120 and ORS 100.115. Any such additional stage
shall be consistent with Stage 1 in structure type and quality of construction and all
improvements shall be substantially completed prior to annexation.

7 8.1 Maximum Number of Units. If fully developed, the Condominium shall contain
not more than 128 units.

8 8.2 Termination Date. No additional stage may be added more than seven years
9 after the recording of the Stage 1 Declaration. Such date may be extended for a period not to
exceed two years by an amendment adopted pursuant to the Stage 1 Declaration.

10 8.3 Additional Common Elements. Declarant does not propose to include in future
11 stages any common elements which would substantially increase the proportionate amount of the
common expenses payable by owners of units in Stages 1 and 2.

12 8.4 Allocation of Interest in Common Elements. The allocation of undivided
13 interests in the common elements of units in Stages 1 and 2 is set forth in Exhibit B and will
14 change if additional stages are annexed to the Condominium. Such allocation shall be
determined by the ratio of the approximate area of each unit compared to the total approximate
15 area of all units then existing in the Condominium.

16 **ARTICLE 9**

17 **ADOPTION BY REFERENCE**

18 Except as otherwise expressly provided in this document, each of the provisions of the
19 Stage 1 Declaration shall be applicable to Stage 2 of Courtyards at Springville Condominium.

20 IN WITNESS WHEREOF, Declarant has caused this Supplemental Declaration to be
executed as of the day and year first set forth above.

21 **SPRINGVILLE CORPORATION**

22
23 By: 

24 Michael Chiu, President

25
26
27 Portland-2179399.2 0040603-00001



1
2
3 STATE OF OREGON)
4 County of Multnomah)ss.

5 The foregoing instrument was acknowledged before me this 8th day of October, 2004 by
6 Michael Chiu, President of Springville Corporation, an Oregon corporation, on behalf of the
7 corporation.



8 Patricia A. Kester
9 Notary Public for Oregon
10 My commission expires: 3/11/05
11 Commission No.: 343386

12 2004. The foregoing Supplemental Declaration is approved this 15TH day of NOVEMBER

13 ASSESSOR AND TAX COLLECTOR
14 FOR WASHINGTON COUNTY

15
16 By Paul A. Kuffner

17 The foregoing Supplemental Declaration is approved pursuant to ORS 100.110 and ORS
18 100.120 this 10th day of November, 2004 and in accordance with ORS 100.110(7), this
19 approval shall automatically expire if this Supplemental Declaration is not recorded within two
20 (2) years from this date.

21 SCOTT W. TAYLOR
22 Real Estate Commissioner

23 By Brian DeMarco
24
25
26
27
28



2004-131258

EXHIBIT A

Legal Description Stage 2

A portion of that tract of land as conveyed to Springville Associates, Inc., in Document No. 92057025, Washington County Deed Records, situated in the Northwest Quarter of Section 19, Township 1 North, Range 1 West, Willamette Meridian, Washington County, State of Oregon, being more particularly described as follows:

Beginning at the initial point, a found 5/8" iron rod with a yellow plastic cap marked "Alpha Eng., Inc.," said point being the Southeast corner of "Courtyards at Springville Condominium," said point being on the West line of "Springville Summit"; thence along said West line of "Springville Summit," South 00°00'13" East, a distance of 240.48 feet to a 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc."; thence leaving said West line of "Springville Summit," South 82°38'29" West, a distance of 94.78 feet to a 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc."; thence North 30°26'17" West, a distance of 81.89 feet to a brass screw with a 1/4" brass washer marked "W.B. Wells & Assoc. Inc."; thence North 34°58'23" East, a distance of 12.02 feet to a 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc."; thence North 03°58'37" East, a distance of 118.09 feet to a 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc."; thence North 29°20'01" East a distance of 18.52 feet to a 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc."; thence North 00°54'40" East, a distance of 61.90 feet to a 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc.," said point being on the Southerly line of "Courtyards at Springville Condominium;" thence along said Southerly line, South 86°32'50" East, a distance of 65.84 feet to an angle point; thence South 66°10'05" East, a distance of 48.78 feet to the initial point.

Portland-2179399.2 0040603-00001



2084-121256

EXHIBIT B

Unit Square Footages and Undivided Interests

	Unit	Square Footage	Undivided Interest
Stage 1	A1	999	999/79384
	A2	999	999/79384
	A3	708	708/79384
	A4	708	708/79384
	A5	913	913/79384
	A6	913	913/79384
	A7	913	913/79384
	A8	913	913/79384
	A9	913	913/79384
	A10	913	913/79384
	A11	913	913/79384
	A12	913	913/79384
	A13	1366	1366/79384
	A14	1366	1366/79384
	B1	1010	1010/79384
	B2	1010	1010/79384
	B3	706	706/79384
	B4	706	706/79384
	B5	971	971/79384
	B6	971	971/79384
	B7	995	995/79384
	B8	995	995/79384
	B9	1318	1318/79384
	B10	1318	1318/79384
	B11	1318	1318/79384
	B12	1318	1318/79384
	B13	995	995/79384
	B14	995	995/79384
	B15	971	971/79384
	B16	971	971/79384
	B17	706	706/79384
	B18	706	706/79384
	B19	1016	1016/79384
	B20	1016	1016/79384
	C1	998	998/79384



2004-131258

	Unit	Square Footage	Undivided Interest
	C2	998	998/79384
	C3	906	906/79384
	C4	906	906/79384
	C5	913	913/79384
	C6	913	913/79384
	C7	913	913/79384
	C8	913	913/79384
	C9	912	912/79384
	C10	912	912/79384
	C11	1349	1349/79384
	C12	1349	1349/79384
	D1	1013	1013/79384
	D2	1013	1013/79384
	D3	709	709/79384
	D4	709	709/79384
	D5	973	973/79384
	D6	973	973/79384
	D7	971	971/79384
	D8	971	971/79384
	D9	985	985/79384
	D10	985	985/79384
	D11	995	995/79384
	D12	995	995/79384
	D13	1319	1319/79384
	D14	1319	1319/79384
Stage 2	F1	1015	1015/79384
	F2	1015	1015/79384
	F3	708	708/79384
	F4	708	708/79384
	F5	973	973/79384
	F6	973	973/79384
	F7	995	995/79384
	F8	995	995/79384
	F9	1313	1313/79384
	F10	1313	1313/79384
	F11	1313	1313/79384
	F12	1313	1313/79384
	F13	995	995/79384
	F14	995	995/79384
	F15	973	973/79384



2004-131258

1

2

Unit

Square Footage

Undivided Interest

3

F16

973

973/79384

4

F17

708

708/79384

5

F18

708

708/79384

6

F19

1012

1012/79384

7

F20

1012

1012/79384

TOTALS

79384

1

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

26

27

28

PortInd1-2141725.2

Exhibit B, Page 3

40603-0000



EXHIBIT C

Parking Space Assignments

Unit	Parking Space
F1	79
F2	80
F3	82
F4	81
F5	75
F6	83
F7	76
F8	84
F9	85
F10	86
F11	88
F12	87
F13	89
F14	90
F15	77
F16	78
F17	91
F18	92
F19	93
F20	94

PortInd1-2179399.2 0040603-00001

DOCUMENT NO. 89-061920

"COLLEGE PARK"

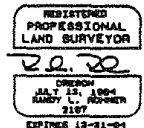
RECORDED AS DOCUMENT NUMBER 2004131257

COURTYARDS AT SPRINGVILLE 2 CONDOMINIUM SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF STAGE 1

A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVEYED TO SPRINGVILLE ASSOCIATES, INC., IN DOCUMENT NO. 8907025, WASHINGTON COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER OF SECTION 18, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
SCALE: 1" = 30'
SEPTEMBER 26, 2004

LEGEND

- B FOUND 6/8" IRON ROD WITH YELLOW PLASTIC CAP MARKED "ALPHA DIV. INC." SET IN THE PLAT OF "SPRINGVILLE SUMMIT"
- S FOUND MONUMENT AS SHOWN
- A FOUND AND HELD 6/8" IRON ROD WITH YELLOW PLASTIC CAP MARKED "V.B. WELLS & ASSOC., INC." SET IN THE PLAT OF "COURTYARDS AT SPRINGVILLE CONDOMINIUM"
- G.C.E. GENERAL COMMON ELEMENT
- SM SURVEY NUMBER, WASHINGTON COUNTY SURVEY RECORDS
- W/PC WITH YELLOW PLASTIC CAP
- IR IRON ROD
- O SET 6/8" X 20" IRON ROD WITH YELLOW PLASTIC CAP MARKED "V.B. WELLS & ASSOC., INC." ON JULY 21, 2003
- ◊ SET BRASS SCREWS WITH 3/4" BRASS TUBES MARKED "V.B. WELLS & ASSOC." ON JULY 21, 2003
- M MEASURED DATA



INDEX

- PAGE 1 - BOUNDARY / BUILDING LOCATION
- PAGE 2 - BUILDING F, GARAGE LEVEL
- PAGE 3 - BUILDING F, GARAGE LEVEL
- PAGE 4 - BUILDING F, FIRST FLOOR / GARAGES 7 AND 8
- PAGE 5 - BUILDING F, FIRST FLOOR
- PAGE 6 - BUILDING F, SECOND FLOOR / SECTION A-A
- PAGE 7 - BUILDING F, SECOND FLOOR / SECTION A-A
- PAGE 8 - SURVEYOR'S CERTIFICATE / NARRATIVE / DECLARATION
- ACKNOWLEDGEMENT / APPROVALS

NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. BUILDING DIMENSIONS SHOWN ARE TO THE EXTERIOR FACE OF THE FOUNDATION.
3. TIES SHOWN TO BUILDINGS ARE TO THE EXTERIOR FACE OF THE FOUNDATION.
4. BOUNDARY DETERMINATION PER SURVEY NUMBER 28464 AND THE PLAT OF "COURTYARDS AT SPRINGVILLE CONDOMINIUM".
5. THIS CONDOMINIUM PLAT IS SUBJECT TO A BLANKET EASEMENT TO COLUMBIA CANAL OF OREGON, RECORDED IN DOCUMENT NO. 84015875, WASHINGTON COUNTY DEED RECORDS.



V.B. WELLS AND ASSOCIATES, INC.
SURVEYORS/ENGINEERS/PLANNERS
4300 S.E. FREIGHT STREET
PORTLAND, OREGON 97212
PHONE (503) 234-8830
FAX (503) 234-8830

PAGE 1 OF 8

NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF PARKING SPACES ARE 0.25' WIDE UNLESS NOTED OTHERWISE.
3. INTERIOR WALLS OF PARKING SPACES ARE 0.25' WIDE UNLESS NOTED OTHERWISE.
4. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY RECORD BOOK NO. 104, ELEVATION=200.204, WASHINGTON COUNTY DATUM.
5. PARKING SPACES ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.

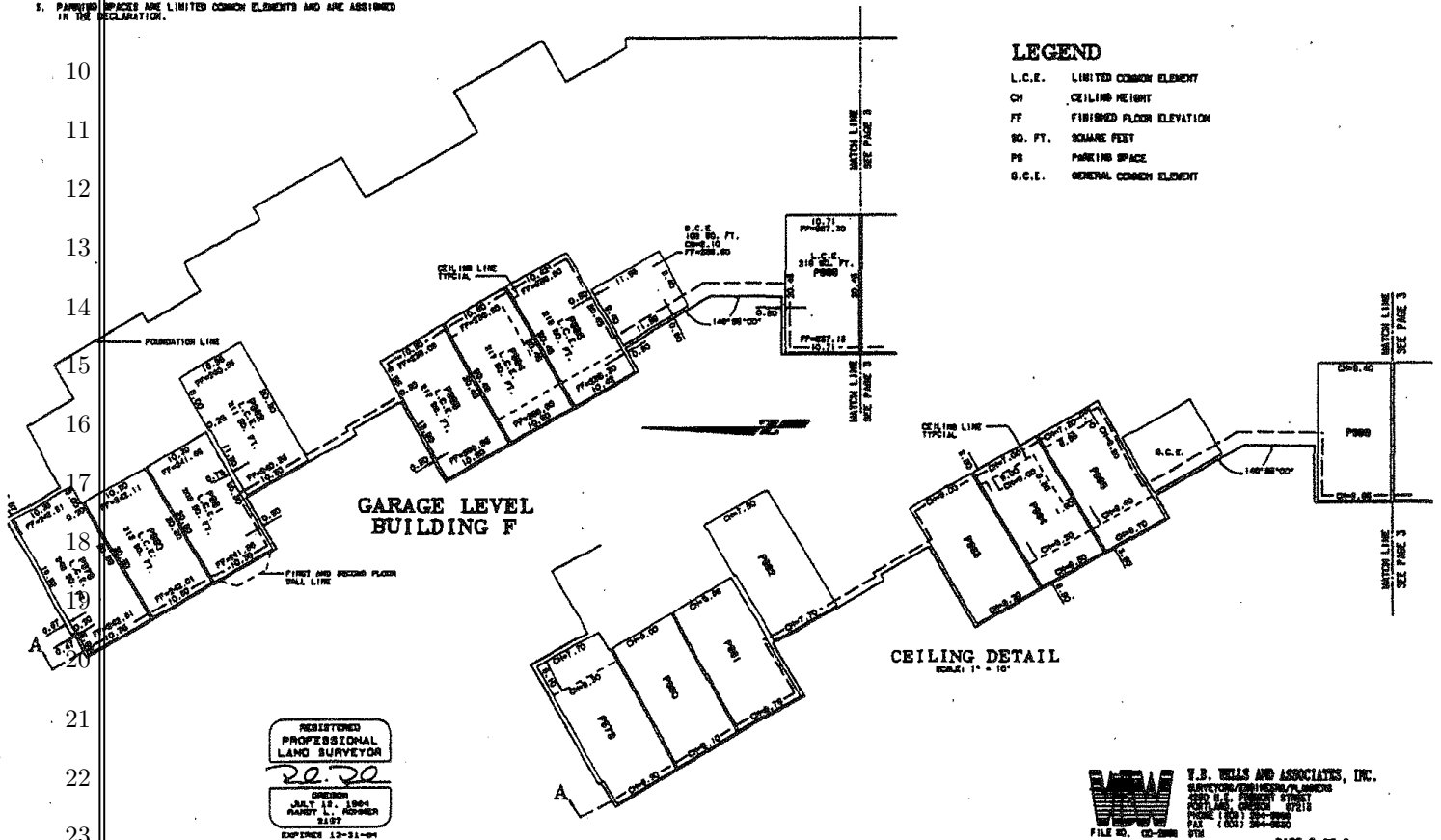
RECORDED AS DOCUMENT NUMBER 2004131257

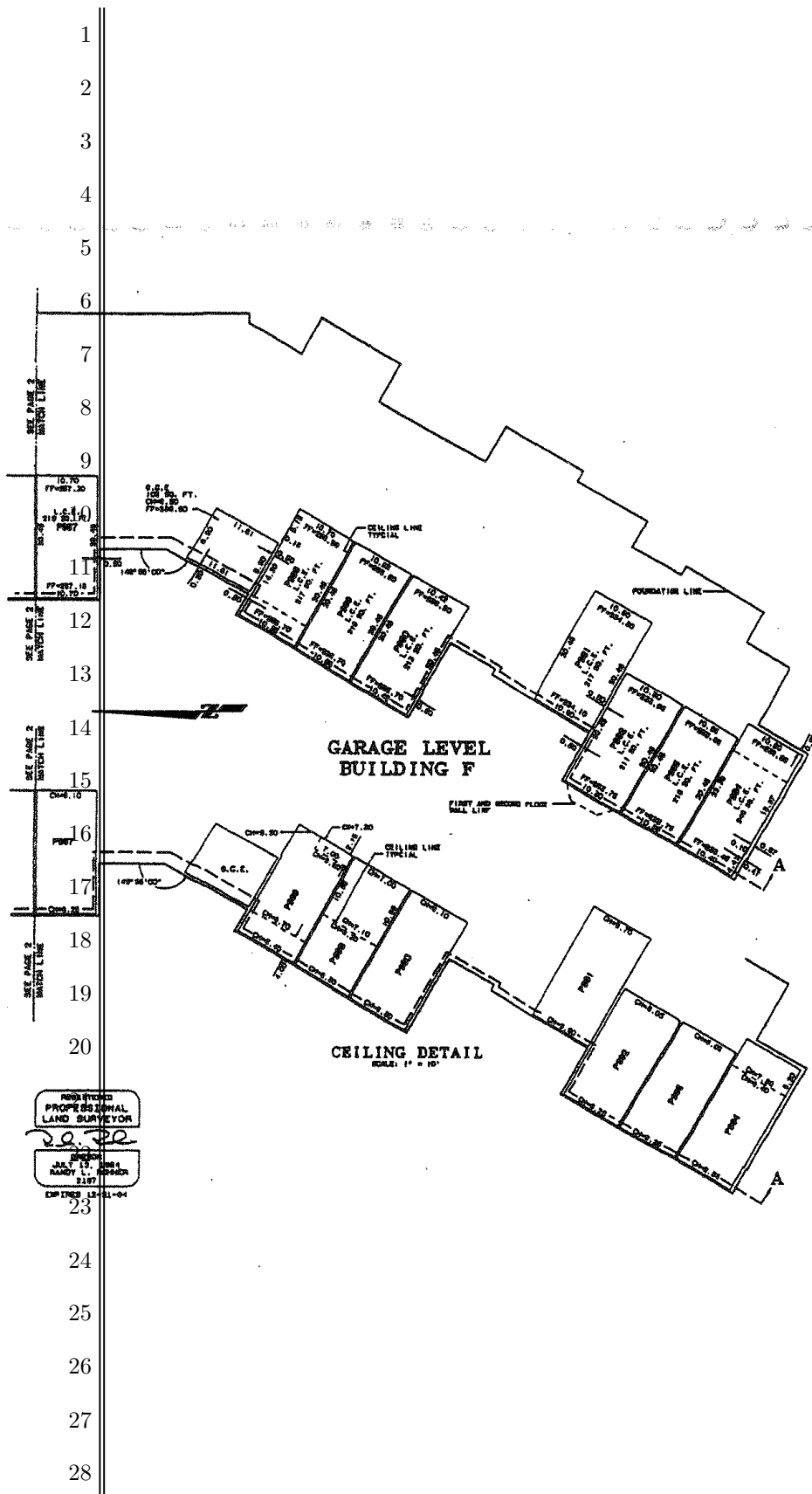
**COURTYARDS AT SPRINGVILLE 2
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 1: ANNEXATION OF STAGE 2**

A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVEYED TO SPRINGVILLE ASSOCIATES, INC., IN DECEMBER 05, 2003, WASHINGTON COUNTY DEED RECORD, SITUATED IN THE NORTHWEST QUARTER OF SECTION 10, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
SCALE: 1" = 10' SEPTEMBER 20, 2004

LEGEND

- L.C.E. LIMITED COMMON ELEMENT
- CH CEILING HEIGHT
- FF FINISHED FLOOR ELEVATION
- SQ. FT. SQUARE FEET
- PS PARKING SPACE
- S.C.E. GENERAL COMMON ELEMENT





RECORDED AS DOCUMENT NUMBER 2004131257
COURTYARDS AT SPRINGVILLE 2
CONDOMINIUM SUPPLEMENTAL PLAN
NO. 1: ANNEXATION OF STAGE 2
 A CONDOMINIUM PLAN OF A PORTION OF THAT TRACT OF LAND AS CONVEYED
 TO SPRINGVILLE ASSOCIATES, INC., IN DEED BY SD. RECORDS -
 WASHINGTON COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER
 OF SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE
 MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
 SCALE: 1" = 10' SEPTEMBER 29, 2004

LEGEND

L.C.E. LIMITED COMMON ELEMENT
 CH CEILING HEIGHT
 FF FINISHED FLOOR ELEVATION
 SQ. FT. SQUARE FEET
 PS PARKING SPACE
 G.C.E. GENERAL COMMON ELEMENT

NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF PARKING SPACES ARE 0.29' WIDE UNLESS NOTED OTHERWISE.
3. INTERIOR WALLS OF PARKING SPACES ARE 0.30' WIDE UNLESS NOTED OTHERWISE.
4. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY BENCHMARK NO. 154, ELEVATION=200.254, WASHINGTON COUNTY DATUM.
5. PARKING SPACES ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.



W.B. WELLS AND ASSOCIATES, INC.
 SURVEYORS/ENGINEERS/PLANNERS
 2000 N.E. FREIGHT STREET
 PORTLAND, OREGON 97215
 PHONE (503) 244-8888
 FAX (503) 244-8888
 TOLL FREE 1-800-541-5770

PAGE 3 OF 8

NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF UNITS ARE 0.50' WIDE.
3. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY BENCHMARK NO. 104. ELEVATION=250.254. WASHINGTON COUNTY DATUM.
4. THE HORIZONTAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FACE OF FINISHED WALL TO FACE OF FINISHED WALL. THE VERTICAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR TO FINISHED CEILING.
5. PATIOS ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED TO THE UNIT THAT THEY ADJOIN. PARKING SPACES ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.

LEGEND

L.C.E.	LIMITED COMMON ELEMENT
CH	CEILING HEIGHT
FF	FINISHED FLOOR ELEVATION
SQ. FT.	SQUARE FEET
PS	PARKING SPACE

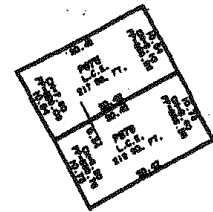
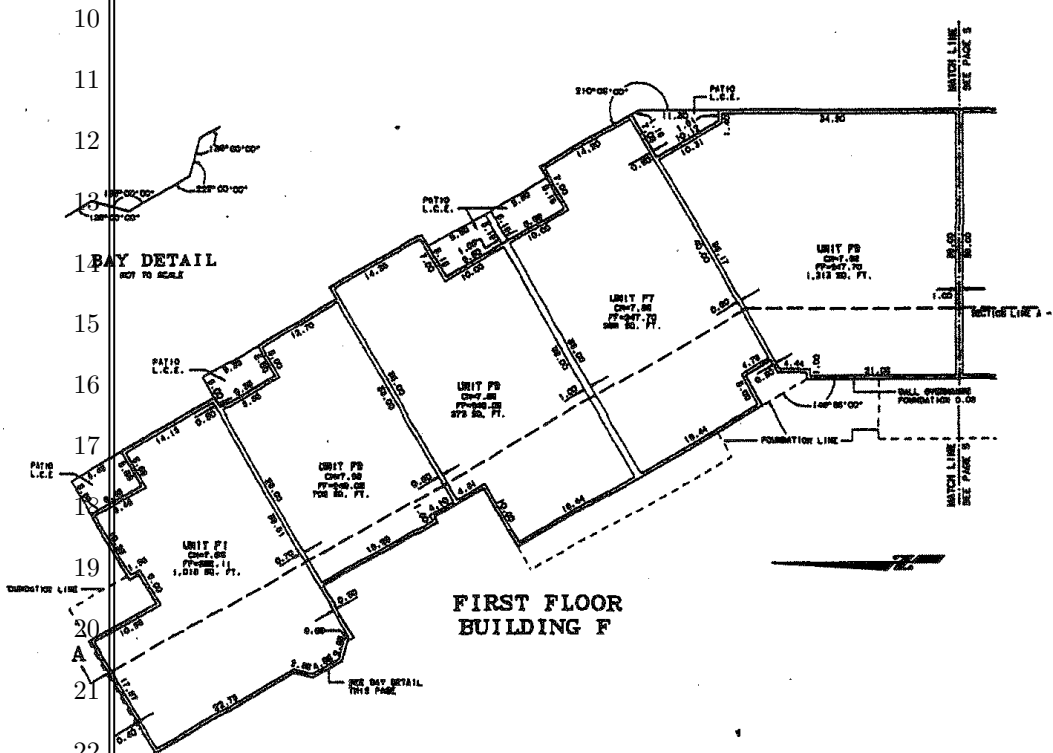
RECORDED AS DOCUMENT NUMBER 2004131257

COURTYARDS AT SPRINGVILLE² CONDOMINIUM SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF STAGE 2

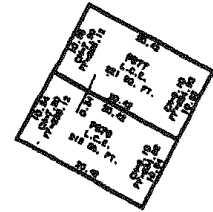
A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVEYED TO SPRINGVILLE ASSOCIATES, INC., IN DEED NO. 80, SECTION 18, WASHINGTON COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER OF SECTION 18, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.

SEPTEMBER 20, 2004

SCALE: 1" = 10'



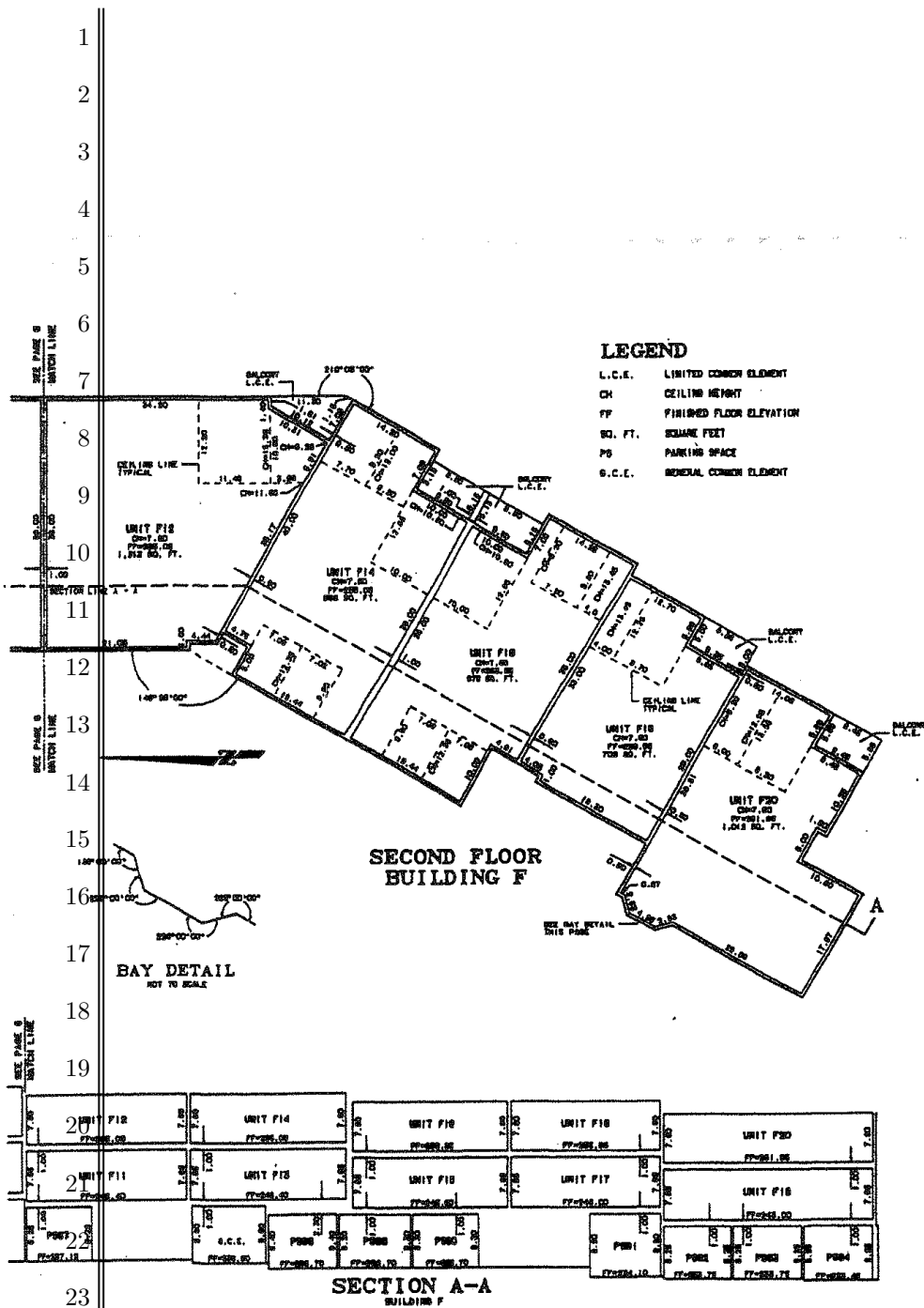
GARAGE 7
EXTERIOR WALLS ARE 0.50' WIDE



GARAGE 8
EXTERIOR WALLS ARE 0.50' WIDE

REGISTERED
PROFESSIONAL
LAND SURVEYOR
22.20
JULY 17, 2004
NANCY L. KEMPER
2187
EXPIRES 12-31-04

W&W W.B. WELLS AND ASSOCIATES, INC.
SURVEYING/ENGINEERING/PLANNING
4350 N.E. FRONT STREET
PORTLAND, OREGON 97213
TEL: (503) 554-5555
FAX: (503) 554-5555
FILE NO. 02-000 576
PAGE 4 OF 8



RECORDED AS DOCUMENT NUMBER 2004131257

COURTYARDS AT SPRINGVILLE CONDOMINIUM SUPPLEMENTAL PLA NO. 1: ANNEXATION OF STAGE 2

A CONDOMINIUM PLAT OF A PORTION OF TRACT OF LAND AS CONVEYED TO SPRINGVILLE ASSOCIATES, INC., IS DOCUMENT NO. 2004000, BARNHARTON COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER OF SECTION 18, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, BARNHARTON COUNTY, STATE OF OREGON.
SCALE: 1" = 10' SEPTEMBER 19, 2004

REGISTERED
PROFESSIONAL
LAND SURVEYOR
22.22
JULY 15, 1984
JANUARY 1, 2004
EXPIRES 12-31-04

NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF UNITS ARE 0.50' THICK, UNLESS NOTED OTHERWISE.
3. FINISHED FLOOR ELEVATIONS BASED ON BARNHARTON COUNTY BENCHMARK NO. 184, ELEVATION 808.354, BARNHARTON COUNTY DATUM.
4. THE HORIZONTAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FACE OF FINISHED WALL TO FACE OF FINISHED WALL. THE VERTICAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR TO FINISHED CEILING.
5. BALCONIES ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED TO THE UNITS THAT THEY ADJOIN.

Y.S. WELLS AND ASSOCIATES, INC.
SURVEYOR/ENGINEER/PLANNING
300 S.W. 10TH STREET
PORTLAND, OREGON 97204
PHONE (503) 584-2200
FAX (503) 584-2200
FILE NO. 00-000 DTH
PAGE 7 OF 8



00887714200501448310140147

I, Jerry Hanson, Director of Assessment and Taxation
and Ex-Officio County Clerk for Washington County,
Oregon, do hereby certify that the within instrument of
writing was received and recorded in the book of
records of said county.

Jerry Hanson
Jerry R. Hanson, Director of Assessment and Taxation,
Ex-Officio County Clerk



AFTER RECORDING, RETURN TO:

Prima Donna Construction
373 FIRST STREET #200
LOS ALTOS, CA 94022

PREPARED BY:

Howard M. Feuerstein, Esq.
Stoel Rives LLP
900 SW Fifth Avenue, Suite 2600
Portland, OR 97204

**SUPPLEMENTAL DECLARATION SUBMITTING
COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE 3
TO CONDOMINIUM OWNERSHIP**

Springville Corporation
Declarant

TABLE OF CONTENTS

		<u>Page</u>
1	ARTICLE 1 DEFINITIONS	1
2	1.1 "Association"	1
3	1.2 "Bylaws"	1
4	1.3 "Condominium"	1
5	1.4 "Declarant"	1
6	1.5 "Declaration"	1
7	1.6 "Plat"	1
8	1.7 "Stage 1 Declaration"	1
9	1.8 Incorporation by Reference	1
10	ARTICLE 2 SUBMISSION OF PROPERTY TO CONDOMINIUM OWNERSHIP	2
11	ARTICLE 3 UNITS	2
12	3.1 General Description of Buildings	2
13	3.2 General Description, Location and Designation of Units	2
14	3.3 Boundaries of Units	2
15	ARTICLE 4 GENERAL COMMON ELEMENTS	2
16	ARTICLE 5 LIMITED COMMON ELEMENTS	3
17	ARTICLE 6 ALLOCATION OF UNDIVIDED INTERESTS IN COMMON ELEMENTS	3
18	ARTICLE 7 EASEMENTS	3
19	7.1 In General	3
20	7.2 Encroachments	4
21	7.3 Granting of Easements by Association	4
22	7.4 Right of Entry	4
23	7.5 Easements for Declarant	4
24	7.6 Reservation of Easements for Future Development	4

	ARTICLE 8 PLAN OF DEVELOPMENT	5
	8.1 Maximum Number of Units.	5
1	8.2 Termination Date.....	5
2	8.3 Additional Common Elements.	5
3	8.4 Allocation of Interest in Common Elements	5
4	ARTICLE 9 ADOPTION BY REFERENCE	5

Portland1-2196928.1 0040603-00001

**SUPPLEMENTAL DECLARATION SUBMITTING
COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE 3
TO CONDOMINIUM OWNERSHIP**

THIS SUPPLEMENTAL DECLARATION, pursuant to the provisions of the Oregon Condominium Act, is made and executed this 10th day of May, 2005, by **SPRINGVILLE CORPORATION**, an Oregon corporation ("**Declarant**").

By document dated April 4, 2001, entitled Declaration Submitting Courtyards at Springville Condominium, Stage 1 to Oregon Condominium Act, Declarant created a condominium known as Courtyards at Springville Condominium, which is located in Washington County, Oregon. The purpose of this Supplemental Declaration is to submit the property described in Article 2 below to the condominium form of ownership and use in the manner provided by the Oregon Condominium Act, and to annex such property to Courtyards at Springville Condominium.

NOW, THEREFORE, Declarant does hereby declare and provide as follows:

ARTICLE 1

DEFINITIONS

When used in this Declaration the following terms shall have the following meanings:

1.1 "**Association**" means Courtyards at Springville Condominium Association.

1.2 "**Bylaws**" means the Bylaws of Courtyards at Springville Condominium Association adopted pursuant to the Stage 1 Declaration as the same may be amended from time to time.

1.3 "**Condominium**" means all of that property submitted to the condominium form of ownership by the State 1 Declaration plus any additional property annexed to the project pursuant to Article 15 of such Declaration.

1.4 "**Declarant**" means Springville Corporation, an Oregon corporation, and its successors and assigns.

1.5 "**Declaration**" means the Stage 1 Declaration and any Supplemental Declaration recorded in accordance with Article 16 of the Stage 1 Declaration, including without limitation, this Supplemental Declaration.

1.6 "**Plat**" means the plat of Courtyards at Springville Condominium Supplemental Plat No. 2: Annexation of Stage 3 recorded simultaneously with the recording of this Supplemental Declaration.

1.7 "**Stage 1 Declaration**" means that instrument dated April 4, 2001, recorded June 21, 2001 in the Records of Washington County, Oregon, as Document/Reception No. 2001059740.

1.8 "**Incorporation by Reference**." Except as otherwise provided in this Supplemental Declaration, each of the terms defined in ORS 100.005, a part of the Oregon Condominium Act, shall have the meanings set forth in such section.

ARTICLE 2

SUBMISSION OF PROPERTY TO CONDOMINIUM OWNERSHIP

The property submitted to the Oregon Condominium Act by this Supplemental Declaration is held by Declarant and conveyed by Declarant in fee simple estate. The land submitted is located in Washington County, Oregon, and is more particularly described in the attached **Exhibit A**. The property submitted includes the land so described, all buildings, improvements and structures, all easements, and rights and appurtenances located on, belonging to or used in connection with such land.

ARTICLE 3

UNITS

3.1 General Description of Buildings. Stage 3 contains one building of dwelling units and two garage buildings and a portion of a third garage building. The dwelling building contains three stories, without basement. The buildings are of wood frame construction with vinyl siding and composition roofs.

3.2 General Description, Location and Designation of Units. Stage 3 consists of 14 units. The designation, location, description of boundaries and area in square feet of each unit are shown on the Plat and the attached **Exhibit B**.

3.3 Boundaries of Units. Each unit shall be bounded by the interior surfaces of its perimeter and bearing walls, floors, ceilings, windows and window frames, doors and door frames, and trim. The unit shall include all lath, furring, wallboard, plasterboard, plaster, paneling, tiles, wallpaper, paint, finished flooring and any other materials constituting any part of its finished surfaces, except those portions of the walls, floors or ceilings that materially contribute to the structural or shear capacity of the Condominium. All other portions of the walls, floors or ceilings shall be a part of the common elements. In addition, each unit shall include the following: (a) All spaces, nonbearing interior partitions, windows, window frames, exterior doors, door frames and all other fixtures and improvements within the boundaries of the unit; and (b) All outlets of utility and communications service lines, including but not limited to power, light, gas, hot and cold water, heating, refrigeration, air conditioning and waste disposal, security, cable television and telephone, within the boundaries of the unit, but shall not include any part of such lines or ducts themselves.

ARTICLE 4

GENERAL COMMON ELEMENTS

The general common elements consist of the following:

4.1 The land, pathways, driveways, fences, grounds, storage rooms, garage structures and parking areas, except parking spaces designated as limited common elements by Article 5 below.

4.2 Pipes, ducts, flues, chutes, conduits, wires and other utility and communications installations to their outlets.

4.3 Roofs, foundations, bearing and shear walls, perimeter walls, beams, columns and girders to the interior surfaces thereof.

4.4 Stairways, landings, entrances and exits which are not part of a unit.

4.5 All other elements of the buildings and the Condominium necessary or convenient to their existence, maintenance and safety, or normally in common use, except as may be expressly designated in this Supplemental Declaration as part of a unit or a limited common element.

ARTICLE 5

LIMITED COMMON ELEMENTS

The following shall constitute limited common elements, the use of which shall be restricted to the units to which they pertain:

5.1 All patios and balconies, each of which shall pertain to the unit which it adjoins as shown on the Plat.

5.2 Parking spaces designated as limited common elements in the Plat, each of which shall pertain to the unit indicated in the attached **Exhibit C**; provided, however, that any such parking space may be transferred so as to pertain to a different unit by an amendment to the Declaration executed by the owner and any mortgagee of the unit to which the parking space previously pertained and by the owner of the unit to which the space is being transferred. Such transfer shall be effective upon the recording of such amendment in the Records of Washington County, Oregon. No transfer, however, shall be such as to leave any unit without at least one parking space assigned to it as a limited common element.

ARTICLE 6

ALLOCATION OF UNDIVIDED INTERESTS IN COMMON ELEMENTS

Each unit will be entitled to an undivided ownership interest in the common elements determined by the ratio by which the approximate area of the particular unit bears to the total approximate area of all units combined, as shown on the attached **Exhibit B**. Such allocation will change if additional stages are added to the Condominium as is more particularly described in Section 8.4 below. Each unit's interest in the common elements shall be inseparable from the unit and any conveyance, encumbrance, judicial sale, or other transfer, voluntary or involuntary, of an undivided interest in the common elements shall be void unless the unit to which that interest is allocated is also transferred.

ARTICLE 7

EASEMENTS

7.1 **In General.** Each unit has an easement in and through each other unit and the common elements for all support elements and utility, wiring, heat, and service elements, and for reasonable access thereto, as required to effectuate and continue proper operation of the Condominium. In addition, each unit and all the common elements are specifically subject to easements as required for the electrical wiring and plumbing for each unit. The specific mention or reservation of any easement in this Supplemental Declaration does not limit or negate the general easement for common elements reserved by law. Each unit owner has an unrestricted right of ingress and egress to his or her unit. This right is perpetual and passes with the ownership of the unit.

7.2 **Encroachments.** Each unit and all common elements shall have an easement over all adjoining units and common elements for the purpose of accommodating any present or future encroachment as a result of engineering errors, construction, reconstruction, repairs, settlement, shifting, or movement of any portion of the property, or any other similar cause, and any encroachment due to building overhang or projection as long as the physical boundaries of the units are in substantial accord with the description of those boundaries that appears in the Declaration. There shall be valid easements for the maintenance of the encroaching units and common elements so long as the encroachments shall exist, and the rights and obligations of owners shall not be altered in any way by the encroachment. This provision does not relieve a unit owner of liability in the case of willful misconduct of the unit owner, or relieve Declarant or any contractor, subcontractor or materialman from any liability as a result of failure to adhere to the Plat. The encroachments described in this Section 7.2 shall not be construed to be encumbrances affecting the marketability of title to any unit.

7.3 **Granting of Easements by Association.** Pursuant to ORS 100.405(5), the Association, upon prior approval of 75 percent of the voting power of the unit owners, may execute, acknowledge, deliver and record on behalf of the unit owners leases, easements, rights-of-way, licenses, and similar interests in excess of two years affecting the common elements and consent to vacation of roadways within and adjacent to the Condominium. Any such instrument shall be executed by the chairperson and secretary of the Association. No such interest may be granted with regard to a limited common element unless the owners and mortgagees of the units having the right to use such limited common element join in the instrument granting the interest.

7.4 **Right of Entry.** The board of directors of the Association, managing agent, manager or any other person authorized by the board of directors shall have the right to enter any unit and limited common element in the case of an emergency originating in or threatening such unit or other condominium property, whether or not the owner is present at the time. Such persons shall also have the right to enter any unit and limited common element for the purpose of performing installations, alterations or repairs to any common element and for the purpose of inspection to verify that the unit owner is complying with the restrictions and requirements described in the Declaration and the Bylaws, provided that requests for entry are made in advance and that such entry is at a time convenient to the owner.

7.5 **Easements for Declarant.** Declarant and Declarant's agents, successors and assigns shall have an easement over and upon the common elements as may be reasonably necessary for the purpose of completing or making repairs to existing structures, for the purpose of carrying out sales and rental activities necessary or convenient for the sale or rental of units, including, without limitation, the right to use the units owned by Declarant as model units and the right to use a unit as a sales office, and for the purpose of discharging any other obligation of Declarant or exercising any other special Declarant right, whether arising under the Oregon Condominium Act or reserved in the Declaration or the Bylaws.

7.6 **Reservation of Easements for Future Development.** Until such time, if ever, that the real property described in Exhibit D of the Stage 1 Declaration has been annexed to the Condominium, Declarant hereby reserves (a) a nonexclusive easement for ingress and egress over all roadways and driveways within the Condominium, (b) an easement for the maintenance and use of all existing utility lines and systems within the Condominium, including without limitation water, sewer, gas, electrical, telephone, communication and cable television systems, and (c) an easement for use of the common element facilities of the Condominium, provided that Declarant pays a pro rata share of the costs of operating and maintaining such easement areas based upon the number of living units in the additional stages divided by the total number of such living units in the additional stages and the Condominium combined. Such easements shall be for the benefit of and shall run with the ownership of the entire remainder of the proposed project site, more particularly described in Exhibit D of the Stage 1

Declaration and each and every portion thereof, whether or not such property is annexed to the Condominium as provided in Article 8 below.

ARTICLE 8

PLAN OF DEVELOPMENT

Pursuant to Article 15 of the Stage 1 Declaration, Declarant proposes to develop the Condominium in stages. By recording this Supplemental Declaration, Declarant hereby submits Stage 3 to the condominium form of ownership. Declarant reserves the right to add additional stages to the Condominium and to annex such additional stages by recording supplements to the Declaration pursuant to ORS 100.120, together with a plat of the stage being annexed bearing a completion certificate as required by ORS 100.120 and ORS 100.115. Any such additional stage shall be consistent with Stage 1 in structure type and quality of construction and all improvements shall be substantially completed prior to annexation.

8.1 **Maximum Number of Units.** If fully developed, the Condominium shall contain not more than 128 units.

8.2 **Termination Date.** No additional stage may be added more than seven years after the recording of the Stage 1 Declaration. Such date may be extended for a period not to exceed two years by an amendment adopted pursuant to the Stage 1 Declaration.

8.3 **Additional Common Elements.** Declarant does not propose to include in future stages any common elements which would substantially increase the proportionate amount of the common expenses payable by owners of units in Stages 1, 2 and 3.

8.4 **Allocation of Interest in Common Elements.** The allocation of undivided interests in the common elements of units in Stages 1, 2 and 3 is set forth in **Exhibit B** and will change if additional stages are annexed to the Condominium. Such allocation shall be determined by the ratio of the approximate area of each unit compared to the total approximate area of all units then existing in the Condominium.

ARTICLE 9

ADOPTION BY REFERENCE

Except as otherwise expressly provided in this document, each of the provisions of the Stage 1 Declaration shall be applicable to Stage 3 of Courtyards at Springville Condominium.

IN WITNESS WHEREOF, Declarant has caused this Supplemental Declaration to be executed
as of the day and year first set forth above.

SPRINGVILLE CORPORATION

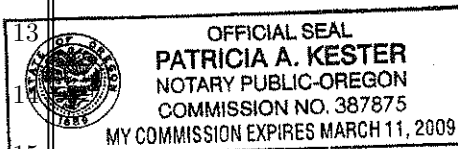
By: _____

Michael Chiu, President

STATE OF OREGON)

County of Multnomah)ss.

The foregoing instrument was acknowledged before me this 10th day of May, 2005 by Michael Chiu, President of Springville Corporation, an Oregon corporation, on behalf of the corporation.



Patricia A. Kester

Notary Public for Oregon

My commission expires: 3/11/09

Commission No.: 387875

The foregoing Supplemental Declaration is approved this 17th day of November, 2005.

ASSESSOR AND TAX COLLECTOR
FOR WASHINGTON COUNTY

By: Pat A. Kuffman

The foregoing Supplemental Declaration is approved pursuant to ORS 100.110 and ORS 100.120 this 14th day of November 2005 and in accordance with ORS 100.110(7), this approval shall automatically expire if this Supplemental Declaration is not recorded within two (2) years from this date.

SCOTT W. TAYLOR
Real Estate Commissioner

By: _____

Brian DeMarco

EXHIBIT A**Legal Description Stage 3**

A portion of that tract of land as conveyed to Springville Associates, Inc., in Document No. 92057025, Washington County Deed Records, situated in the Northwest Quarter of Section 19, Township 1 North, Range 1 West, Willamette Meridian, Washington County, State of Oregon, being more particularly described as follows:

Beginning at the initial point, a found 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc.", said point being the Southeast corner of "Courtyards at Springville Condominium Supplemental Plat No. 1: Annexation of Stage 2," said point being on the West line of "Springville Summit"; thence along said West line of "Springville Summit," South 00°00'13" East, a distance of 275.53 feet to the Southeast corner of said Springville Associates Inc. Tract; thence along the South line of said Springville Associates Tract, North 89°10'50" West, a distance of 110.34 feet; thence North 07°21'40" East, a distance of 85.62 feet to an angle point; thence North 22°21'42" West, a distance of 56.71 feet to an angle point; thence North 08°43'27" East a distance of 102.27 feet to an angle point; thence North 63°44'25" West, a distance of 23.00 feet to an angle point; thence North 06°26'14" West, a distance of 84.32 feet to a point on the Westerly line of "Courtyards at Springville Condominium Supplemental Plat No. 1: Annexation of Stage 2"; thence along said Westerly line, South 30°26'17" East, a distance of 81.89 feet to the Southwest corner of said plat; thence along the South line of said plat, North 82°38'29" East, a distance of 94.78 feet to the initial point.

EXHIBIT B

Unit Square Footages and Undivided Interests
at Stage 3

Unit	Square Footage	Undivided Interest
Stage 1		
A1	999	999/93370
A2	999	999/93370
A3	708	708/93370
A4	708	708/93370
A5	913	913/93370
A6	913	913/93370
A7	913	913/93370
A8	913	913/93370
A9	913	913/93370
A10	913	913/93370
A11	913	913/93370
A12	913	913/93370
A13	1366	1366/93370
A14	1366	1366/93370
B1	1010	1010/93370
B2	1010	1010/93370
B3	706	706/93370
B4	706	706/93370
B5	971	971/93370
B6	971	971/93370
B7	995	995/93370
B8	995	995/93370
B9	1318	1318/93370
B10	1318	1318/93370
B11	1318	1318/93370
B12	1318	1318/93370
B13	995	995/93370
B14	995	995/93370
B15	971	971/93370
B16	971	971/93370
B17	706	706/93370
B18	706	706/93370
B19	1016	1016/93370
B20	1016	1016/93370
C1	998	998/93370

	Unit	Square Footage	Undivided Interest
1	C2	998	998/93370
2	C3	906	906/93370
3	C4	906	906/93370
4	C5	913	913/93370
5	C6	913	913/93370
6	C7	913	913/93370
7	C8	913	913/93370
8	C9	912	912/93370
9	C10	912	912/93370
10	C11	1349	1349/93370
11	C12	1349	1349/93370
12	D1	1013	1013/93370
13	D2	1013	1013/93370
14	D3	709	709/93370
15	D4	709	709/93370
16	D5	973	973/93370
17	D6	973	973/93370
18	D7	971	971/93370
19	D8	971	971/93370
20	D9	985	985/93370
21	D10	985	985/93370
22	D11	995	995/93370
23	D12	995	995/93370
24	D13	1319	1319/93370
25	D14	1319	1319/93370
26	Stage 2 F1	1015	1015/93370
27	F2	1015	1015/93370
28	F3	708	708/93370
	F4	708	708/93370
	F5	973	973/93370
	F6	973	973/93370
	F7	995	995/93370
	F8	995	995/93370
	F9	1313	1313/93370
	F10	1313	1313/93370
	F11	1313	1313/93370
	F12	1313	1313/93370
	F13	995	995/93370
	F14	995	995/93370
	F15	973	973/93370

	Unit	Square Footage	Undivided Interest
1	F16	973	973/93370
2	F17	708	708/93370
3	F18	708	708/93370
4	F19	1012	1012/93370
5	F20	1012	1012/93370
6	Stage 3 H1	1021	1021/93370
7	H2	1021	1021/93370
8	H3	706	706/93370
9	H4	706	706/93370
10	H5	973	973/93370
11	H6	973	973/93370
12	H7	967	967/93370
13	H8	967	967/93370
14	H9	993	973/93370
15	H10	993	973/93370
16	H11	995	995/93370
17	H12	995	995/93370
18	H13	1338	1338/93370
19	H14	1338	1338/93370
20	TOTAL	93370	1
21			
22			
23			
24			
25			
26			
27			
28			

EXHIBIT C

Parking Space Assignments

Unit	Parking Space
H1	108
H2	95
H3	98
H4	96
H5	97
H6	99
H7	100
H8	101
H9	107
H10	102
H11	106
H12	105
H13	104
H14	103

DOCUMENT NO. 92-057025

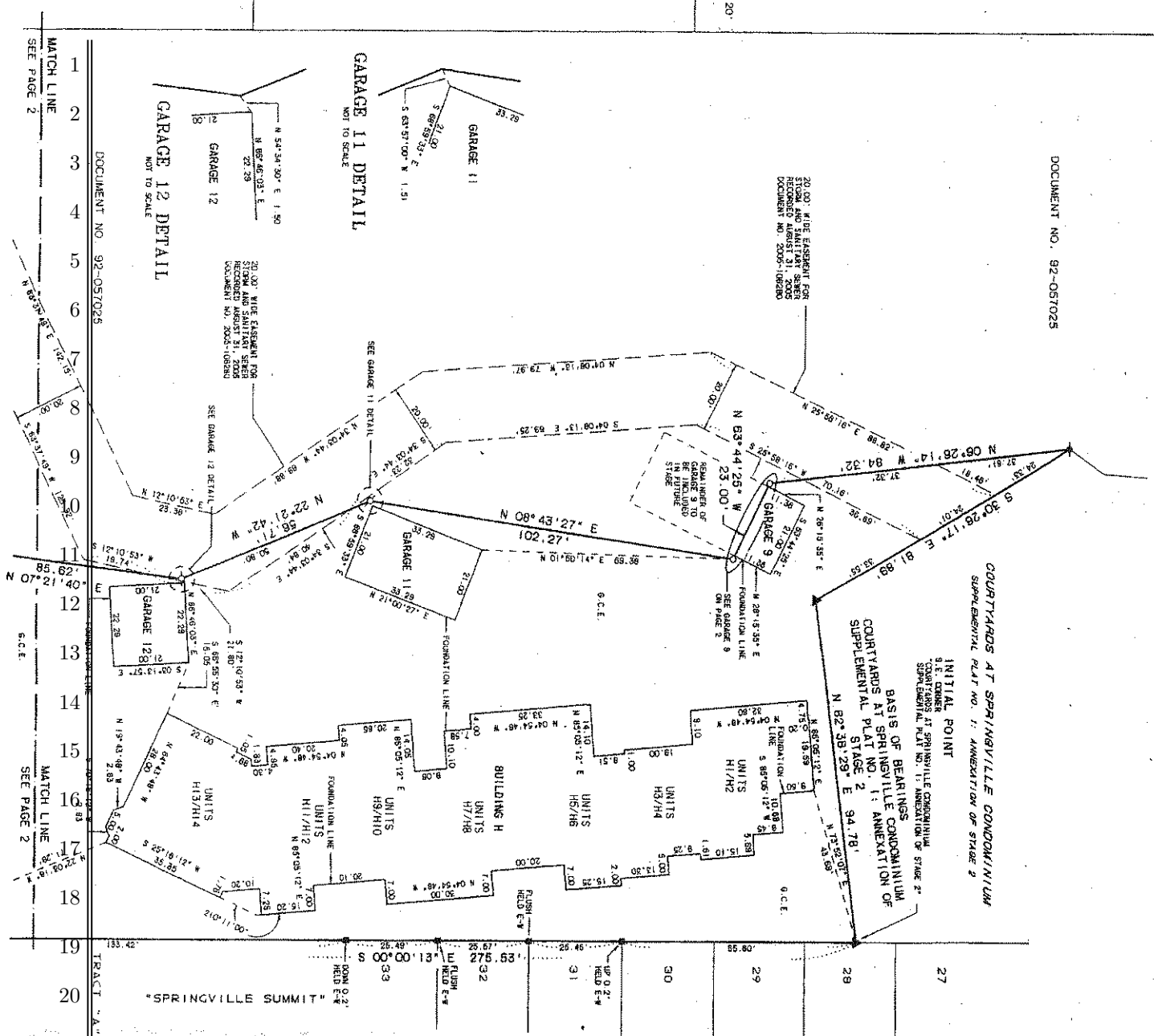
57

SCALE: 1" = 20'

"COLLEGE PARK"

58

59



COURTYARDS AT SPRINGVILLE CONDOMINIUM
SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF STAGE 2

INITIAL POINT
S.E. CORNER
AT SPRINGVILLE CONDOMINIUM
SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF STAGE 2

BASIS OF BEARINGS
COURTYARDS AT SPRINGVILLE CONDOMINIUM
SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF
STAGE 2

LEGEND

- FOUND 5/8" IRON ROD WITH YELLOW PLASTIC CAP MARKED "ALPHA ENG. INC." SET IN THE PLAT OF "SPRINGVILLE SUMMIT"
- FOUND MONUMENT AS SHOWN
- FOUND AND HELD 5/8" IRON ROD WITH YELLOW PLASTIC CAP MARKED "ALPHA ENG. INC." SET IN THE PLAT OF "COURTYARDS AT SPRINGVILLE CONDOMINIUM SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF STAGE 2"
- GENERAL COMMON ELEMENT
- FOUND AND HELD BRASS SCREW WITH 3/4" BRASS WASHER MARKED "W.B. WELLS & ASSOC." SET IN THE PLAT OF "COURTYARDS AT SPRINGVILLE CONDOMINIUM SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF STAGE 2"
- SET BRASS SCREW WITH 3/4" BRASS WASHER MARKED "W.B. WELLS & ASSOC."
- SET 5/8" X 30" IRON ROD WITH YELLOW PLASTIC CAP MARKED "W.B. WELLS & ASSOC. INC."

INDEX

- PAGE 1 - BOUNDARY / BUILDING AND GARAGE LOCATIONS
- PAGE 2 - BOUNDARY / BUILDING AND GARAGE LOCATIONS
- PAGE 3 - BUILDING H, GARAGE LEVEL
- PAGE 4 - BUILDING H, FIRST FLOOR
- PAGE 5 - BUILDING H, FIRST FLOOR
- PAGE 6 - BUILDING H, FIRST FLOOR
- PAGE 7 - BUILDING H, FIRST FLOOR
- PAGE 8 - BUILDING H, FIRST FLOOR
- PAGE 9 - BUILDING H, FIRST FLOOR
- PAGE 10 - BUILDING H, FIRST FLOOR
- PAGE 11 - BUILDING H, FIRST FLOOR
- PAGE 12 - BUILDING H, FIRST FLOOR
- PAGE 13 - BUILDING H, FIRST FLOOR
- PAGE 14 - BUILDING H, FIRST FLOOR
- PAGE 15 - BUILDING H, FIRST FLOOR
- PAGE 16 - BUILDING H, FIRST FLOOR
- PAGE 17 - BUILDING H, FIRST FLOOR
- PAGE 18 - BUILDING H, FIRST FLOOR
- PAGE 19 - BUILDING H, FIRST FLOOR
- PAGE 20 - BUILDING H, FIRST FLOOR
- PAGE 21 - BUILDING H, FIRST FLOOR
- PAGE 22 - BUILDING H, FIRST FLOOR

NOTES:

- BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
- BUILDING DIMENSIONS SHOWN ARE TO THE EXTERIOR FACE OF THE FOUNDATION.
- TIES SHOWN TO BUILDINGS ARE TO THE EXTERIOR FACE OF THE FOUNDATION.
- BASIS OF BEARINGS AND BOUNDARY DETERMINATION PER SURVEY NUMBER 2884 AND THE PLAT OF "COURTYARDS AT SPRINGVILLE CONDOMINIUM SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF STAGE 2".
- THIS CONDOMINIUM PLAT IS SUBJECT TO A BLANKET EASEMENT TO WASHINGTON COUNTY DEED RECORDS.

W.B. WELLS AND ASSOCIATES, INC.
1230 N.E. 10TH AVE., SUITE 100
PORTLAND, OREGON 97213
PHONE (503) 284-8896
FAX (503) 284-8530
FILE NO. 00-288C 01M

RECORDED AS DOCUMENT NUMBER 2005149830
COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 2: ANNEXATION OF STAGE 3

A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVEYED TO SPRINGVILLE ASSOCIATES, INC., IN DOCUMENT NO. 92-057025, WASHINGTON COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
 SCALE: 1" = 20'

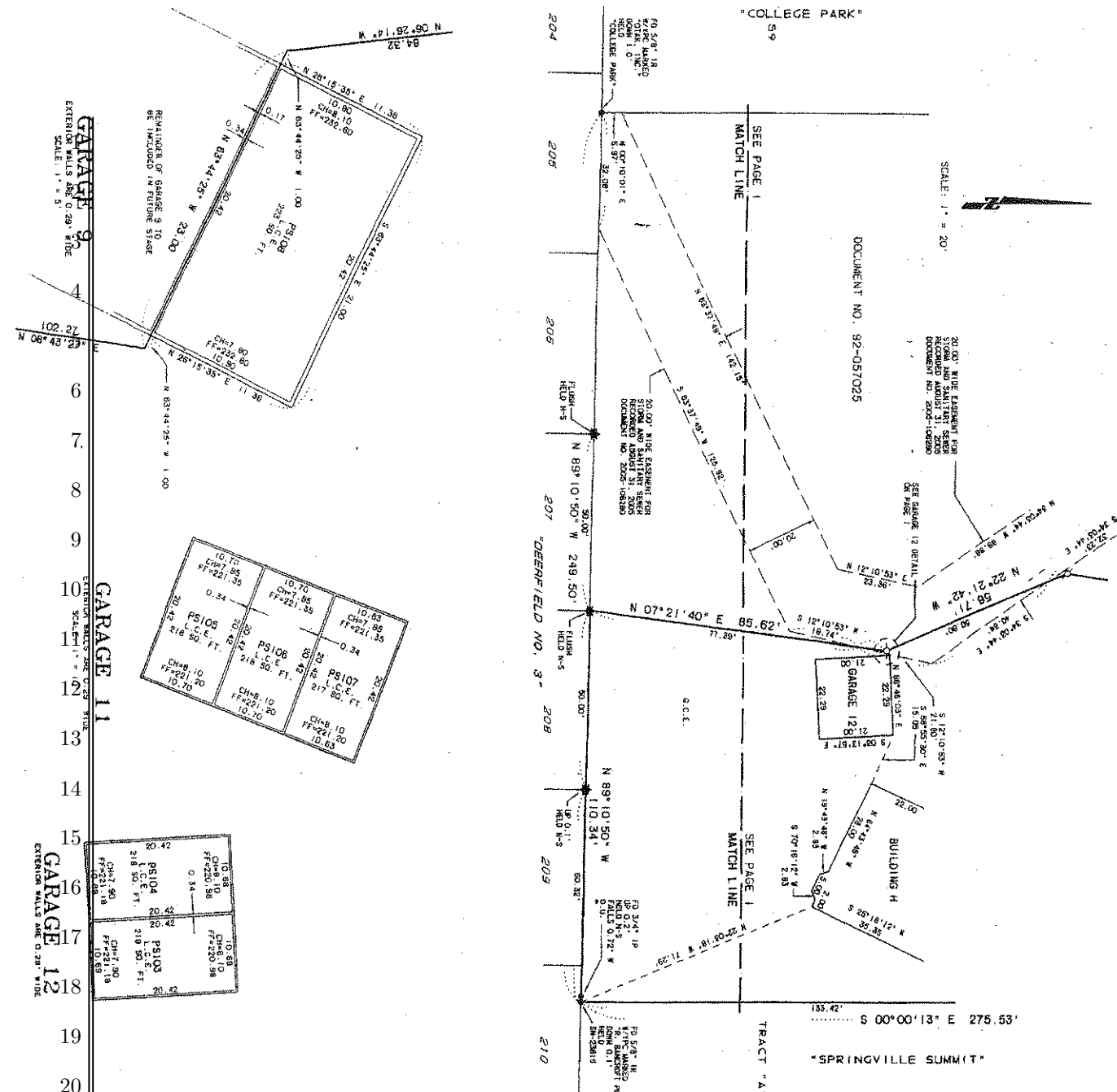
NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. BUILDING DIMENSIONS SHOWN ARE TO THE EXTERIOR FACE OF THE FOUNDATION.
3. TIES SHOWN TO BUILDINGS ARE TO THE EXTERIOR FACE OF THE FOUNDATION.
4. BOUNDARY DETERMINATION PER SURVEY NUMBER 29434 AND THE PLAT OF "COURTYARDS AT SPRINGVILLE CONDOMINIUM SUPPLEMENTAL PLAT NO. 1: ANNEXATION OF STAGE 2".
5. FINISHED FLOOR ELEVATIONS ARE BASED ON WASHINGTON COUNTY BENCHMARK NO. 194, ELEVATION 208.54, WASHINGTON COUNTY DATUM.

REGISTERED
 LAND SURVEYOR
 20.22
 JULY 13, 1984
 ANDY L. ROSS
 2187
 EXPIRES 12-31-06

LEGEND

- FOUND MONUMENT AS SHOWN
- * FOUND 5/8" IRON ROD WITH YELLOW PLASTIC CAP MARKED "ALPHA ENG. INC." SET IN THE PLAT OF "SPRINGVILLE SUMMIT"
- * FOUND 5/8" IRON ROD WITH YELLOW PLASTIC CAP MARKED "ALPHA ENG. INC." SET IN THE PLAT OF "DEERFIELD NO. 3"
- GENERAL COMMON ELEMENT
- G.C.E. WITH YELLOW PLASTIC CAP
- W/IRC
- IRON ROD
- SM
- SN
- FD
- PD
- PS
- L.C.E.
- LIMITED COMMON ELEMENT
- SS. FT.
- SQ. FT.
- CH
- CEILING HEIGHT
- FINISHED FLOOR ELEVATION
- SET 5/8" X 30" IRON ROD WITH YELLOW PLASTIC CAP MARKED "B. BELLS & ASSOC. INC."



GARAGE 8
 EXTERIOR WALLS AND 0.29' WIDE
 SCALE: 1" = 20'

GARAGE 11
 EXTERIOR WALLS AND 0.29' WIDE
 SCALE: 1" = 20'

GARAGE 12
 EXTERIOR WALLS AND 0.28' WIDE
 SCALE: 1" = 20'

W.B. BELLS AND ASSOCIATES, INC.
 2400 N. WASHINGTON STREET
 PORTLAND, OREGON 97213
 PHONE (503) 284-8898
 FAX (503) 284-8550
 FILE NO. 00-288C 078

I HEREBY CERTIFY THIS TO BE A TRUE AND CORRECT COPY OF THE ORIGINAL PLAN

REGISTERED
PROFESSIONAL
LAND SURVEYOR

OREGON 584
JULY 1, 1988
PANDY L. RORNER
2187
EXPIRES 12-31-96

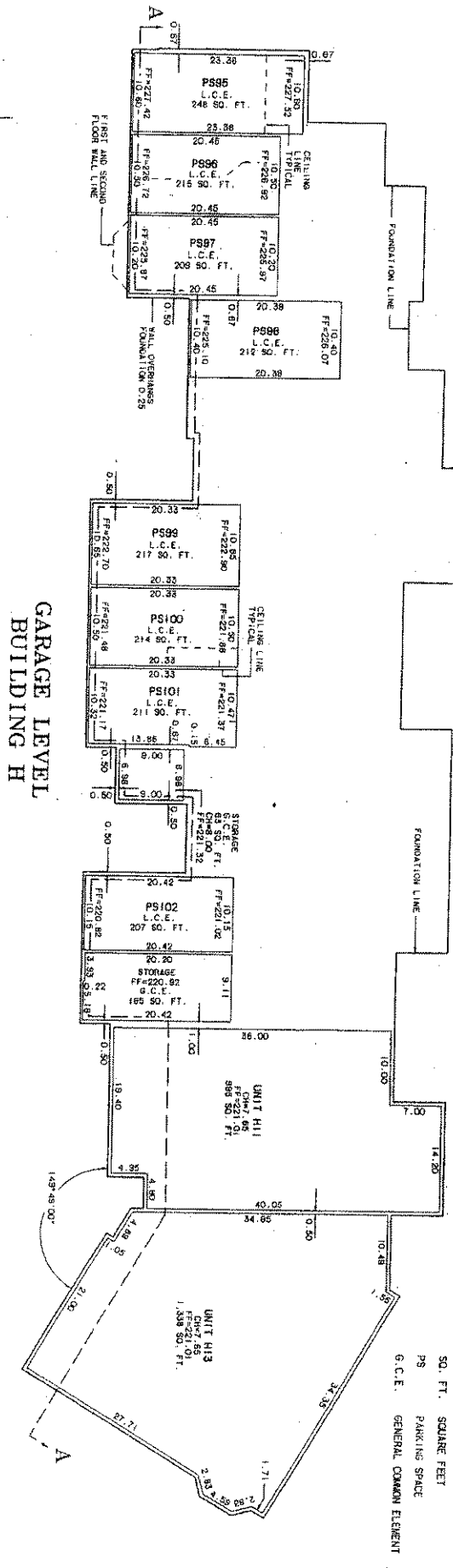
NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF PARKING SPACES ARE 0.29' WIDE UNLESS NOTED OTHERWISE.
3. INTERIOR WALLS OF PARKING SPACES ARE 0.39' WIDE UNLESS NOTED OTHERWISE.
4. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY BENCHMARK NO. 184, ELEVATION=209.294, WASHINGTON COUNTY DATA.
5. PARKING SPACES ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.

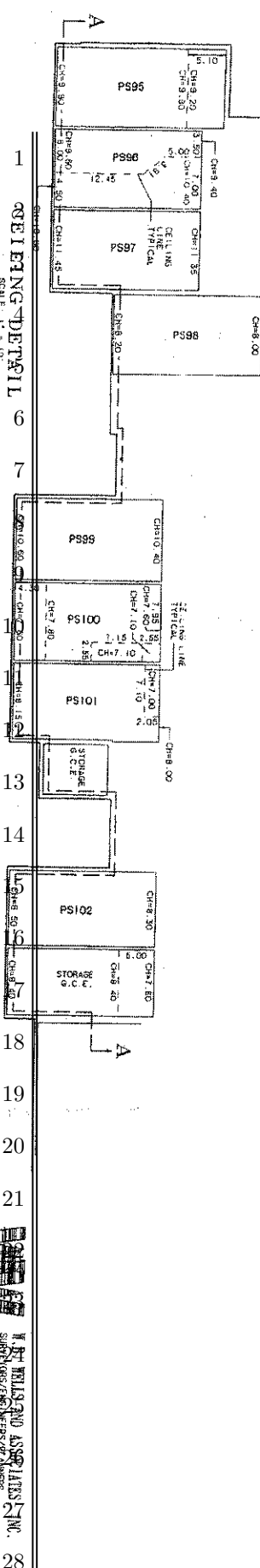
RECORDED AS DOCUMENT NUMBER 2005144830
COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 2: ANNEXATION OF STAGE 3
A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVEYED TO SPRINGVILLE ASSOCIATES, INC., IN DOCUMENT NO. 92-057026, WASHINGTON COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER OF SECTION 36, T11N, R10E, W11E, WASHINGTON COUNTY, STATE OF OREGON.
MAY 2, 2005

LEGEND

L.C.E. LIMITED COMMON ELEMENT
CH CEILING HEIGHT
FF FINISHED FLOOR ELEVATION
SQ. FT. SQUARE FEET
PS PARKING SPACE
G.C.E. GENERAL COMMON ELEMENT



GARAGE LEVEL BUILDING H



W. B. WILSON AND ASSOCIATES, INC.
SURVEYORS/ENGINEERS/PLANNERS
4230 N.E. FREMONT STREET
PORTLAND, OREGON 97213
PHONE (503) 284-9350
FAX (503) 284-9350
FILE NO. 00-288C D1M

LEGEND

L.C.E. LIMITED COMMON ELEMENT
CH CEILING HEIGHT
FF FINISHED FLOOR ELEVATION
SQ. FT. SQUARE FEET

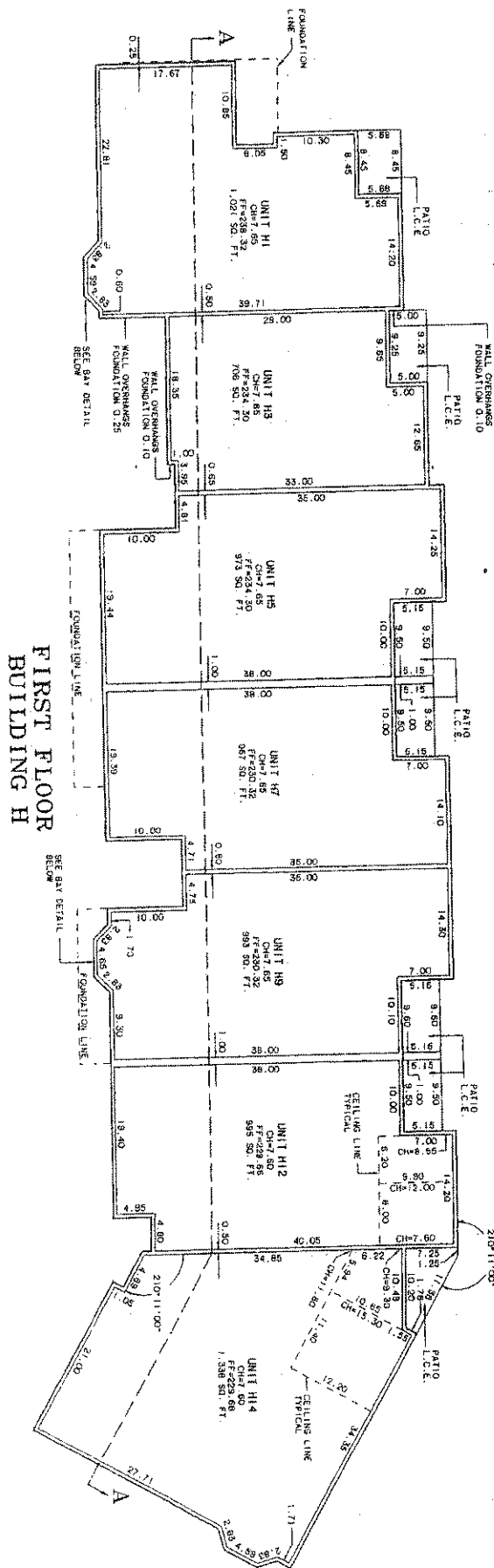
NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF UNITS ARE 0.50' WIDE.
3. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY BENCHMARK NO. 194, ELEVATION=209.234, WASHINGTON COUNTY DATUM.
4. THE HORIZONTAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FACE OF FINISHED WALL TO FACE OF FINISHED WALL. THE VERTICAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR TO FINISHED CEILING.
5. PATIOS ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED TO THE UNIT TO WHICH THEY ADJOIN.

RECORDED AS DOCUMENT NUMBER 2005144830
COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 2: ANNEXATION OF STAGE 3
A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVERTED TO SPRINGVILLE ASSOCIATES, INC.'S, IN DOCUMENT NO. 2002025 QUARTER WASHINGTON COUNTY BEING NE 1/4 SEC 10, T4N, R4E, NE 1/4 WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
MAY 2, 2005
SCALE: 1" = 10'

I HEREBY CERTIFY THIS TO BE A TRUE AND EXACT COPY OF THE ORIGINAL PLAT

REGISTERED
PROFESSIONAL
LAND SURVEYOR
20.20
OREGON
JULY 12, 1981
RANDY L. ROEMER
2107
EXPIRES 12-31-05



FIRST FLOOR BUILDING H

BAY DETAIL
NOT TO SCALE

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

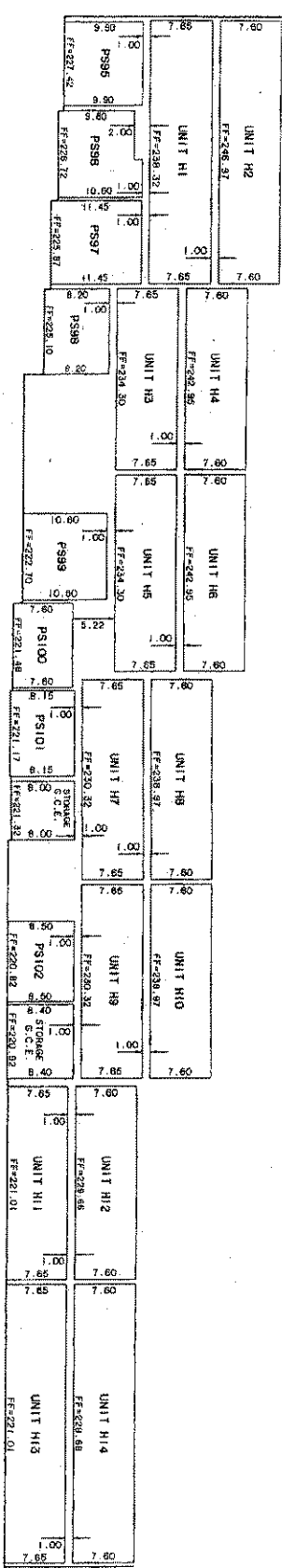
FILE NO. DA-288C DTW
PAGE 4 OF 6

REGISTERED
PROFESSIONAL
LAND SURVEYOR
2020
JULY 1, 2004
ANDY L. ADAMS
2187
EXPIRES 12-31-06

I HEREBY CERTIFY THIS TO
BE A TRUE AND EXACT COPY
OF THE ORIGINAL PLAT

- NOTES:**
1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
 2. EXTERIOR WALLS OF UNITS ARE 0.50' WIDE, UNLESS NOTED OTHERWISE.
 3. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY BENCHMARK NO. 1541. ELEVATION 220.224, WASHINGTON COUNTY DATUM.
 4. THE HORIZONTAL, INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM THE INTERIOR FINISHED FLOOR. THE VERTICAL MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR TO THE UNIT TO WHICH THEY ADJOIN.
 5. BALCONIES ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED TO THE UNIT TO WHICH THEY ADJOIN.

RECORDED AS DOCUMENT NUMBER 2005144130
COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 2: ANNEXATION OF STAGE 3
A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVEYED TO SPRINGVILLE ASSOCIATES, INC., IN DOCUMENT NO. 82-087025, OF SPRINGVILLE COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER OF SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
SCALE: 1" = 10'
MAY 2, 2005





I, Richard Hobemicht, Director of Assessment and
Taxation and Ex-Officio County Clerk for Washington
County, Oregon, do hereby certify that the within
instrument of writing was received and recorded in the
book of records of said county.

Richard W. Hobemicht, Director of Assessment and
Taxation, Ex-Officio County Clerk



AFTER RECORDING, RETURN TO:

FIRELITE NATIONAL
1008 SW 5TH AVENUE
PORTLAND, OR 97204

PREPARED BY:

Howard M. Feuerstein, Esq.
Stoel Rives LLP
900 SW Fifth Avenue, Suite 2600
Portland, OR 97204

**SUPPLEMENTAL DECLARATION SUBMITTING
COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE 4
TO CONDOMINIUM OWNERSHIP**

Springville Corporation
Declarant

PortInd1-2225411.1 0040603-00001

65
66
11

AFTER RECORDING, RETURN TO;

Fidelity National
1000 SW 5th Avenue
Portland, OR 97204

PREPARED BY;

Howard M. Feuerstein, Esq.
Stoel Rives LLP
900 SW Fifth Avenue, Suite 2600
Portland, OR 97204

**SUPPLEMENTAL DECLARATION SUBMITTING
COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE 4
TO CONDOMINIUM OWNERSHIP**

Springville Corporation
Declarant

Washington County, Oregon

08/11/06 04:26:04 PM

D-R/SD Cnt=1 Stn=3 T EAKIN

\$65.00 \$6.00 \$11.00 - Total = \$82.00



00998556200600885700130132

I, Richard Hobemicht, Director of Assessment and
Taxation and Ex-Officio County Clerk for Washington
County, Oregon, do hereby certify that the within
instrument of writing was received and recorded in the
book of records of said county.

Richard W. Hobemicht
Richard W. Hobemicht, Director of Assessment and
Taxation, Ex-Officio County Clerk



Portind1-2225411.1 0040603-00001

TABLE OF CONTENTS

	<u>Page</u>
ARTICLE 1 DEFINITIONS	1
1.1 "Association"	1
1.2 "Bylaws"	1
1.3 "Condominium"	1
1.4 "Declarant"	1
1.5 "Declaration"	1
1.6 "Plat"	1
1.7 "Stage 1 Declaration"	1
1.8 Incorporation by Reference	1
ARTICLE 2 SUBMISSION OF PROPERTY TO CONDOMINIUM OWNERSHIP	2
ARTICLE 3 UNITS	2
3.1 General Description of Buildings	2
3.2 General Description, Location and Designation of Units	2
3.3 Boundaries of Units	2
ARTICLE 4 GENERAL COMMON ELEMENTS	2
ARTICLE 5 LIMITED COMMON ELEMENTS	3
ARTICLE 6 ALLOCATION OF UNDIVIDED INTERESTS IN COMMON ELEMENTS	3
ARTICLE 7 EASEMENTS	3
7.1 In General	3
7.2 Encroachments	3
7.3 Granting of Easements by Association	4
7.4 Right of Entry	4
7.5 Easements for Declarant	4
ARTICLE 8 PLAN OF DEVELOPMENT	4
ARTICLE 9 ADOPTION BY REFERENCE	4

PortInd1-2225411.1 0040603- 00001

SUPPLEMENTAL DECLARATION SUBMITTING
COURTYARDS AT SPRINGVILLE CONDOMINIUM, STAGE 4
TO CONDOMINIUM OWNERSHIP

THIS SUPPLEMENTAL DECLARATION, pursuant to the provisions of the Oregon Condominium Act, is made and executed this 20th day of APRIL, 2006, by **SPRINGVILLE CORPORATION**, an Oregon corporation ("Declarant").

By document dated April 4, 2001, entitled Declaration Submitting Courtyards at Springville Condominium, Stage 1 to Oregon Condominium Act, Declarant created a condominium known as Courtyards at Springville Condominium, which is located in Washington County, Oregon. The purpose of this Supplemental Declaration is to submit the property described in Article 2 below to the condominium form of ownership and use in the manner provided by the Oregon Condominium Act, and to annex such property to Courtyards at Springville Condominium.

NOW, THEREFORE, Declarant does hereby declare and provide as follows;

ARTICLE 1

DEFINITIONS

When used in this Declaration the following terms shall have the following meanings;

1.1 "**Association**" means Courtyards at Springville Condominium Association.

1.2 "**Bylaws**" means the Bylaws of Courtyards at Springville Condominium Association adopted pursuant to the Stage 1 Declaration as the same may be amended from time to time.

1.3 "**Condominium**" means all of that property submitted to the condominium form of ownership by the State 1 Declaration.

1.4 "**Declarant**" means Springville Corporation, an Oregon corporation, and its successors and assigns.

1.5 "**Declaration**" means the Stage 1 Declaration and any Supplemental Declaration recorded in accordance with Article 16 of the Stage 1 Declaration, including without limitation, this Supplemental Declaration.

1.6 "**Plat**" means the plat of Courtyards at Springville Condominium Supplemental Plat No. 3; Annexation of Stage 4 recorded simultaneously with the recording of this Supplemental Declaration.

1.7 "**Stage 1 Declaration**" means that instrument dated April 4, 2001, recorded June 21, 2001 in the Records of Washington County, Oregon, as Document/Reception No. 2001059740.

1.8 "**Incorporation by Reference**." Except as otherwise provided in this Supplemental Declaration, each of the terms defined in ORS 100.005, a part of the Oregon Condominium Act, shall have the meanings set forth in such section.

ARTICLE 2

SUBMISSION OF PROPERTY TO CONDOMINIUM OWNERSHIP

The property submitted to the Oregon Condominium Act by this Supplemental Declaration is held by Declarant and conveyed by Declarant in fee simple estate. The land submitted is located in Washington County, Oregon, and is more particularly described in the attached Exhibit A. The property submitted includes the land so described, all buildings, improvements and structures, all easements, and rights and appurtenances located on, belonging to or used in connection with such land.

ARTICLE 3

UNITS

3.1 **General Description of Buildings.** Stage 4 contains two buildings of dwelling units, four garage buildings and a storage building. The dwelling buildings contain two stories, without basement. The buildings are of wood frame construction with vinyl siding and composition roofs.

3.2 **General Description, Location and Designation of Units.** Stage 4 consists of 34 units. The designation, location, description of boundaries and area in square feet of each unit are shown on the Plat and the attached Exhibit B.

3.3 **Boundaries of Units.** Each unit shall be bounded by the interior surfaces of its perimeter and bearing walls, floors, ceilings, windows and window frames, doors and door frames, and trim. The unit shall include all lath, furring, wallboard, plasterboard, plaster, paneling, tiles, wallpaper, paint, finished flooring and any other materials constituting any part of its finished surfaces, except those portions of the walls, floors or ceilings that materially contribute to the structural or shear capacity of the Condominium. All other portions of the walls, floors or ceilings shall be a part of the common elements. In addition, each unit shall include the following: (a) All spaces, nonbearing interior partitions, windows, window frames, exterior doors, door frames and all other fixtures and improvements within the boundaries of the unit; and (b) All outlets of utility and communications service lines, including but not limited to power, light, gas, hot and cold water, heating, refrigeration, air conditioning and waste disposal, security, cable television and telephone, within the boundaries of the unit, but shall not include any part of such lines or ducts themselves.

ARTICLE 4

GENERAL COMMON ELEMENTS

The general common elements consist of the following:

4.1 The land, pathways, driveways, fences, grounds, storage building, garage structures and parking areas, except parking spaces designated as limited common elements by Article 5 below.

4.2 Pipes, ducts, flues, chutes, conduits, wires and other utility and communications installations to their outlets.

4.3 Roofs, foundations, bearing and shear walls, perimeter walls, beams, columns and girders to the interior surfaces thereof..

4.4 Stairways, landings, entrances and exits which are not part of a unit.

4.5 All other elements of the buildings and the Condominium necessary or convenient to their existence, maintenance and safety, or normally in common use, except as may be expressly designated in this Supplemental Declaration as part of a unit or a limited common element.

ARTICLE 5

LIMITED COMMON ELEMENTS

The following shall constitute limited common elements, the use of which shall be restricted to the units to which they pertain:

5.1 All patios and balconies, each of which shall pertain to the unit which it adjoins as shown on the Plat.

5.2 Parking spaces designated as limited common elements in the Plat, each of which shall pertain to the unit indicated in the attached Exhibit C; provided, however, that any such parking space may be transferred so as to pertain to a different unit by an amendment to the Declaration executed by the owner and any mortgagee of the unit to which the parking space previously pertained and by the owner of the unit to which the space is being transferred. Such transfer shall be effective upon the recording of such amendment in the Records of Washington County, Oregon. No transfer, however, shall be such as to leave any unit without at least one parking space assigned to it as a limited common element.

ARTICLE 6

ALLOCATION OF UNDIVIDED INTERESTS IN COMMON ELEMENTS

Each unit will be entitled to an undivided ownership interest in the common elements determined by the ratio by which the approximate area of the particular unit bears to the total approximate area of all units combined, as shown on the attached Exhibit B. Each unit's interest in the common elements shall be inseparable from the unit and any conveyance, encumbrance, judicial sale, or other transfer, voluntary or involuntary, of an undivided interest in the common elements shall be void unless the unit to which that interest is allocated is also transferred.

ARTICLE 7

EASEMENTS

7.1 **In General.** Each unit has an easement in and through each other unit and the common elements for all support elements and utility, wiring, heat, and service elements, and for reasonable access thereto, as required to effectuate and continue proper operation of the Condominium. In addition, each unit and all the common elements are specifically subject to easements as required for the electrical wiring and plumbing for each unit. The specific mention or reservation of any easement in this Supplemental Declaration does not limit or negate the general easement for common elements reserved by law. Each unit owner has an unrestricted right of ingress and egress to his or her unit. This right is perpetual and passes with the ownership of the unit.

7.2 **Encroachments.** Each unit and all common elements shall have an easement over all adjoining units and common elements for the purpose of accommodating any present or future encroachment as a result of engineering errors, construction, reconstruction, repairs, settlement, shifting, or movement of any portion of the property, or any other similar cause, and any encroachment due to

1 building overhang or projection as long as the physical boundaries of the units are in substantial accord
2 with the description of those boundaries that appears in the Declaration. There shall be valid easements
3 for the maintenance of the encroaching units and common elements so long as the encroachments shall
4 exist, and the rights and obligations of owners shall not be altered in any way by the encroachment. This
5 provision does not relieve a unit owner of liability in the case of willful misconduct of the unit owner, or
6 relieve Declarant or any contractor, subcontractor or materialman from any liability as a result of failure
7 to adhere to the Plat. The encroachments described in this Section 7.2 shall not be construed to be
8 encumbrances affecting the marketability of title to any unit.

9
10 **7.3 Granting of Easements by Association.** Pursuant to ORS 100.405(5), the Association,
11 upon prior approval of 75 percent of the voting power of the unit owners, may execute, acknowledge,
12 deliver and record on behalf of the unit owners leases, easements, rights-of-way, licenses, and similar
13 interests in excess of two years affecting the common elements and consent to vacation of roadways
14 within and adjacent to the Condominium. Any such instrument shall be executed by the chairperson and
15 secretary of the Association. No such interest may be granted with regard to a limited common element
16 unless the owners and mortgagees of the units having the right to use such limited common element join
17 in the instrument granting the interest.

18
19 **7.4 Right of Entry.** The board of directors of the Association, managing agent, manager or
20 any other person authorized by the board of directors shall have the right to enter any unit and limited
21 common element in the case of an emergency originating in or threatening such unit or other
22 condominium property, whether or not the owner is present at the time. Such persons shall also have the
23 right to enter any unit and limited common element for the purpose of performing installations, alterations
24 or repairs to any common element and for the purpose of inspection to verify that the unit owner is
25 complying with the restrictions and requirements described in the Declaration and the Bylaws, provided
26 that requests for entry are made in advance and that such entry is at a time convenient to the owner.

27
28 **7.5 Easements for Declarant.** Declarant and Declarant's agents, successors and assigns
shall have an easement over and upon the common elements as may be reasonably necessary for the
purpose of completing or making repairs to existing structures, for the purpose of carrying out sales and
rental activities necessary or convenient for the sale or rental of units, including, without limitation, the
right to use the units owned by Declarant as model units and the right to use a unit as a sales office, and
for the purpose of discharging any other obligation of Declarant or exercising any other special Declarant
right, whether arising under the Oregon Condominium Act or reserved in the Declaration or the Bylaws.

19 **ARTICLE 8**

20 **PLAN OF DEVELOPMENT**

21 Stage 4 is the final stage of development of Springville Condominium. No additional stages or
22 units will be annexed to the Condominium. The allocation of undivided interests in the common elements
23 for each unit in the Condominium is set forth in Exhibit B.

23 **ARTICLE 9**

24 **ADOPTION BY REFERENCE**

25 Except as otherwise expressly provided in this document, each of the provisions of the Stage 1
26 Declaration shall be applicable to Stage 4 of Courtyards at Springville Condominium.

1 IN WITNESS WHEREOF, Declarant has caused this Supplemental Declaration to be executed
2 as of the day and year first set forth above.

3 SPRINGVILLE CORPORATION

4 By: [Signature]
5 Michael Chiu, President

6
7 CALIFORNIA)
8 STATE OF ~~OREGON~~) ss.

9 County of SANTA CLARA)

10 The foregoing instrument was acknowledged before me this 20 day of April, 2006
11 2006 by Michael Chiu, President of Springville Corporation, an Oregon corporation, on behalf of the
12 corporation.



13 [Signature]
14 Notary Public for ~~Oregon~~ CALIFORNIA
15 My commission expires; Nov 24, 2006
16 Commission No.; 1387082

17 The foregoing Supplemental Declaration is approved this 18th day of AUGUST, 2006.

18 ASSESSOR AND TAX COLLECTOR
19 FOR WASHINGTON COUNTY

20 By: [Signature]

21 The foregoing Supplemental Declaration is approved pursuant to ORS 100.110 and ORS 100.120
22 this 20th day of June, 2006 and in accordance with ORS 100.110(7), this approval shall
23 automatically expire if this Supplemental Declaration is not recorded within two (2) years from this date.

24 SCOTT W. TAYLOR
25 Real Estate Commissioner

26 By: [Signature]
27 Laurie Skillman

EXHIBIT A

Legal Description Stage 4

A portion of that tract of land as conveyed to Springville Associates, Inc., in Document No. 92-057025, recorded August 17, 1992, Washington County Deed Records, situated in the Northwest Quarter of Section 19, Township 1 North, Range 1 West, Willamette Meridian, County of Washington and State of Oregon, being more particularly described as follows;

Beginning at the Initial Point, the southwest corner of the plat of "Courtyards at Springville Condominium", said point being marked with a found 5/8" iron rod with a yellow plastic cap marked "W.B. Wells & Assoc. Inc."; thence along the South line of said Courtyards plat the following courses: South 79°48'19" East, a distance of 27.82 feet; South 86°32'50" East, a distance of 110.33 feet to the northwest corner of the plat of "Courtyards at Springville Condominium Supplemental Plat No. 1: Annexation of Stage 2"; thence along the westerly line of said Courtyards Stage 2 plat the following courses: South 00°54'40" West, a distance of 61.90 feet; South 29°20'01" West, a distance of 18.52 feet; South 03°58'37" West, a distance of 118.09 feet; South 34°58'23" West, a distance of 12.02 feet to the most northerly corner of the plat of "Courtyards at Springville Condominium Supplemental Plat No. 2: Annexation of Stage 3"; thence along the westerly line of said Courtyards Stage 3 Plat, the following courses; South 06°26'14" East, a distance of 84.32 feet; South 63°44'25" East a distance of 23.00 feet; South 08°43'27" West, a distance of 102.27 feet; South 22°21'42" East, a distance of 56.71 feet; South 07°21'40" West, a distance of 85.62 feet to the North line of the plat of "Deerfield Park No. 3"; thence along the North line of said "Deerfield Park No. 3", North 89°10'50" West, a distance of 139.16 feet to the southeast corner of the plat of "College Park"; thence along the East line of said "College Park" and its northerly extension, being the West line of said Springville Associates, Inc. Tract, North 00°10'01" East, a distance of 547.68 feet to the Initial Point.

EXHIBIT B**Unit Square Footages and Undivided Interests**

	Unit	Square Footage	Undivided Interest
Stage 1	A1	999	999/126342
	A2	999	999/126342
	A3	708	708/126342
	A4	708	708/126342
	A5	913	913/126342
	A6	913	913/126342
	A7	913	913/126342
	A8	913	913/126342
	A9	913	913/126342
	A10	913	913/126342
	A11	913	913/126342
	A12	913	913/126342
	A13	1366	1366/126342
	A14	1366	1366/126342
	B1	1010	1010/126342
	B2	1010	1010/126342
	B3	706	706/126342
	B4	706	706/126342
	B5	971	971/126342
	B6	971	971/126342
	B7	995	995/126342
	B8	995	995/126342
	B9	1318	1318/126342
	B10	1318	1318/126342
	B11	1318	1318/126342
	B12	1318	1318/126342
	B13	995	995/126342
	B14	995	995/126342
	B15	971	971/126342
	B16	971	971/126342
	B17	706	706/126342
	B18	706	706/126342

PortInd1-2225411.1 0040603-0000

	Unit	Square Footage	Undivided Interest
	B19	1016	1016/126342
	B20	1016	1016/126342
	C1	998	998/126342
	C2	998	998/126342
	C3	906	906/126342
	C4	906	906/126342
	C5	913	913/126342
	C6	913	913/126342
	C7	913	913/126342
	C8	913	913/126342
	C9	912	912/126342
	C10	912	912/126342
	C11	1349	1349/126342
	C12	1349	1349/126342
	D1	1013	1013/126342
	D2	1013	1013/126342
	D3	709	709/126342
	D4	709	709/126342
	D5	973	973/126342
	D6	973	973/126342
	D7	971	971/126342
	D8	971	971/126342
	D9	985	985/126342
	D10	985	985/126342
	D11	995	995/126342
	D12	995	995/126342
	D13	1319	1319/126342
	D14	1319	1319/126342
Stage 2	F1	1015	1015/126342
	F2	1015	1015/126342
	F3	708	708/126342
	F4	708	708/126342
	F5	973	973/126342
	F6	973	973/126342
	F7	995	995/126342
	F8	995	995/126342
	F9	1313	1313/126342

PortInd1-2225411.1 0040603-0000

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

	Unit	Square Footage	Undivided Interest
	F10	1313	1313/126342
	F11	1313	1313/126342
	F12	1313	1313/126342
	F13	995	995/126342
	F14	995	995/126342
	F15	973	973/126342
	F16	973	973/126342
	F17	708	708/126342
	F18	708	708/126342
	F19	1012	1012/126342
	F20	1012	1012/126342
Stage 3	H1	1021	1021/126342
	H2	1021	1021/126342
	H3	706	706/126342
	H4	706	706/126342
	H5	973	973/126342
	H6	973	973/126342
	H7	967	967/126342
	H8	967	967/126342
	H9	993	993/126342
	H10	993	993/126342
	H11	995	995/126342
	H12	995	995/126342
	H13	1338	1338/126342
	H14	1338	1338/126342
Stage 4	E1	1002	1002/126342
	E2	1002	1002/126342
	E3	709	709/126342
	E4	709	709/126342
	E5	916	916/126342
	E6	916	916/126342
	E7	916	916/126342
	E8	916	916/126342
	E9	916	916/126342
	E10	916	916/126342
	E11	917	917/126342
	E12	917	917/126342

	Unit	Square Footage	Undivided Interest
	E13	1356	1356/126342
	E14	1356	1356/126342
	G1	1003	1003/126342
	G2	1003	1003/126342
	G3	706	706/126342
	G4	706	706/126342
	G5	913	913/126342
	G6	913	913/126342
	G7	915	915/126342
	G8	915	915/126342
	G9	1339	1339/126342
	G10	1339	1339/126342
	G11	1342	1342/126342
	G12	1342	1342/126342
	G13	915	915/126342
	G14	915	915/126342
	G15	915	915/126342
	G16	915	915/126342
	G17	706	706/126342
	G18	706	706/126342
	G19	1000	1000/126342
	G20	1000	1000/126342
	TOTAL	126342	1

EXHIBIT C

Parking Space Assignments

<u>Unit</u>	<u>Parking Space</u>
E1	P-73
E2	P-74
E3	P-70
E4	P-72
E5	P-69
E6	P-71
E7	P-68
E8	P-67
E9	P-66
E10	P-63
E11	P-62
E12	P-61
E13	P-65
E14	P-64
G1	P-127
G2	P-128
G3	P-125
G4	P-126
G5	P-123
G6	P-124
G7	P-115
G8	P-116
G9	P-113
G10	P-114
G11	P-112
G12	P-122
G13	P-111
G14	P-121
G15	P-109
G16	P-119
G17	P-110
G18	P-120
G19	P-118
G20	P-117

RECORDED AS DOCUMENT NUMBER 2006094564

**COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 3: ANNEXATION OF STAGE 4**

A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS COMEDED
TO THE PUBLIC DOMAIN BY THE STATE OF OREGON, SITUATED IN THE NORTHEAST
QUARTER OF SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE
MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
SCALE: 1" = 10'

APRIL 19, 2006

I CERTIFY THAT THIS SURVEY WAS PREPARED USING HENNETT-PACKARD
PRODUCT NO. 51845A OR OCE # 86-6942 DOUBLE WHITE FILM.

REGISTERED
PROFESSIONAL
LAND SURVEYOR

Robert H. Hallett
JUL 12, 2003
OREGON
EXPIRATION DATE: 12-31-06
734271LS

I HEREBY CERTIFY THIS TO
BE A TRUE AND EXACT COPY
OF THE ORIGINAL PLAT

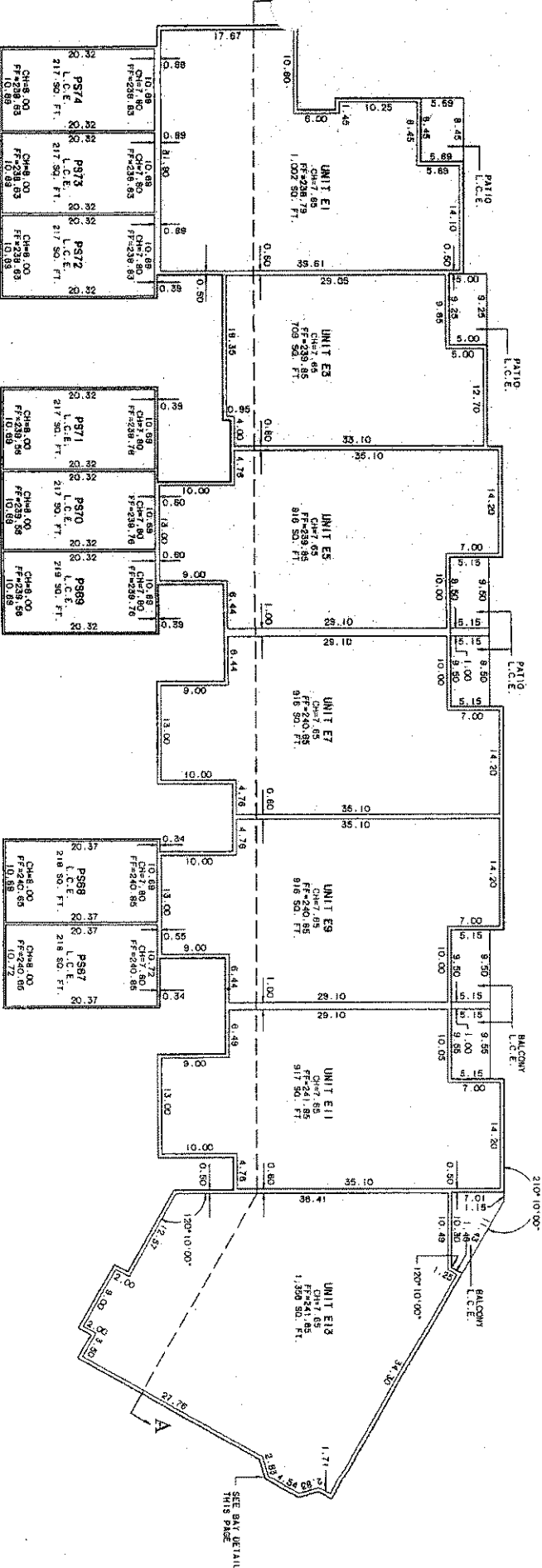
STORAGE BUILDING

STORAGE BUILDING
WALLS
ARE 0.34' WIDE.

BAY DETAIL
NOT TO SCALE

- LEGEND**
- L.C.E. LIMITED COMMON ELEMENT
 - CH CEILING HEIGHT
 - FF FINISHED FLOOR ELEVATION
 - SO. FT. SQUARE FEET
 - PS PARKING SPACE
 - G.C.E. GENERAL COMMON ELEMENT

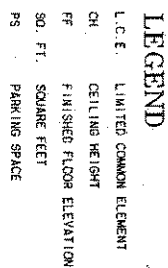
- NOTES:**
1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
 2. EXTERIOR WALLS OF UNITS ARE 0.50' WIDE.
 3. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY
BENCHMARK NO. 194, ELEVATION=209.254, WASHINGTON COUNTY
DATUM.
 4. THE HORIZONTAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM
FACE OF FINISHED WALL TO FACE OF FINISHED WALL. THE VERTICAL
INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR
TO FINISHED CEILING.
 5. PATIOS AND BALCONIES ARE LIMITED COMMON ELEMENTS AND ARE
ASSIGNED TO THE UNIT THEY ADJOIN. PARKING SPACES ARE
LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.
OTHERWISE.
 6. EXTERIOR WALLS OF PARKING SPACES ARE 0.29' WIDE UNLESS NOTED
OTHERWISE.
 7. INTERIOR WALLS OF PARKING SPACES ARE 0.34' WIDE.



**FIRST FLOOR
BUILDING E**

FILE NO. DO-2080
PAGE 4 OF 10

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF UNITS ARE 0.50' WIDE.
3. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY BENCHMARK NO. 194, ELEVATION=209.254, WASHINGTON COUNTY DATUM.
4. THE HORIZONTAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FACE OF FINISHED WALL TO FACE OF FINISHED WALL. THE VERTICAL MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR TO FINISHED CEILING.
5. PARKING SPACES AND PLATOS ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.
6. EXTERIOR WALLS OF PARKING SPACES ARE 0.29' WIDE.
7. INTERIOR WALLS OF PARKING SPACES ARE 0.34' WIDE.



RECORDED AS DOCUMENT NUMBER 2006099569
COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 3: ANNEXATION OF STAGE 4
A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS COMEITED
TO SPRINGVILLE ASSOCIATES, INC., IN DOCUMENT NO. 28087025
WASHINGTON COUNTY DEED RECORDS SITUED IN THE NORTHWEST QUARTER
OF SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE
MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
SCALE: 1" = 10 FEET
APRIL 19, 2006

REGISTERED
PROFESSIONAL
LAND SURVEYOR

Jeffrey M. Miller

OREGON
JULY 12, 2005
DEKINION T. MACKAI
734277LS

RENEWAL DATE: 12-31-06

I HEREBY CERTIFY THIS TO
BE A TRUE AND EXACT COPY
OF THE ORIGINAL PLAT

THIS SURVEY WAS PREPARED USING HESLETY-PACKARD
5A ON COE # 86-8342 DOUBLE-MATTE FILM.

78 WELLS AND ASSOCIATES INC

SUPERVISORS (ENGINEERS OR PLANNERS)

2'

PHONE (503) 284-5896

FILE NO. K-2681

RECORDED AS DOCUMENT NUMBER 2006099569

COURTYARDS AT SPRINGVILLE CONDOMINIUM SUPPLEMENTAL PLAT NO. 3: ANNEXATION OF STAGE 4

A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVEYED TO SPRINGVILLE ASSOCIATES, INC., IN A COMMERCIAL DEVELOPMENT, SITUATED IN THE NORTHWEST QUARTER OF SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
SCALE: 1" = 10'

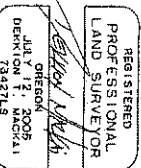
APRIL 18, 2006

LEGEND

L.C.E. LIMITED COMMON ELEMENT
CH CEILING HEIGHT
FF FINISHED FLOOR ELEVATION
SQ. FT. SQUARE FEET
PS PARKING SPACE

NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF UNITS ARE 0.60' WIDE.
3. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY DATUM.
BENCHMARK NO. 194, ELEVATION=209.294, WASHINGTON COUNTY
4. THE HORIZONTAL, INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FACE OF FINISHED WALL TO FACE OF FINISHED WALL. THE VERTICAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR TO FINISHED CEILING.
5. PARKING SPACES AND PATIOS ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.
6. EXTERIOR WALLS OF PARKING SPACES ARE 0.28' WIDE.
7. INTERIOR WALLS OF PARKING SPACES ARE 0.34' WIDE.



RENEWAL DATE: 12-31-06

I CERTIFY THAT THIS SURVEY WAS PREPARED USING HEMLETT-PACKARD PRODUCT NO. 510624 ON OCE # 85-0542 DOUBLE WHITE FILM.

SPRINGVILLE ASSOCIATES, INC.
600 N.E. GILBERT STREET
PORTLAND, OREGON 97213
PHONE (503) 284-2495
FAX (503) 284-6550
FILE NO. 00-2880

**COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 3: ANNEXATION OF STAGE 4**

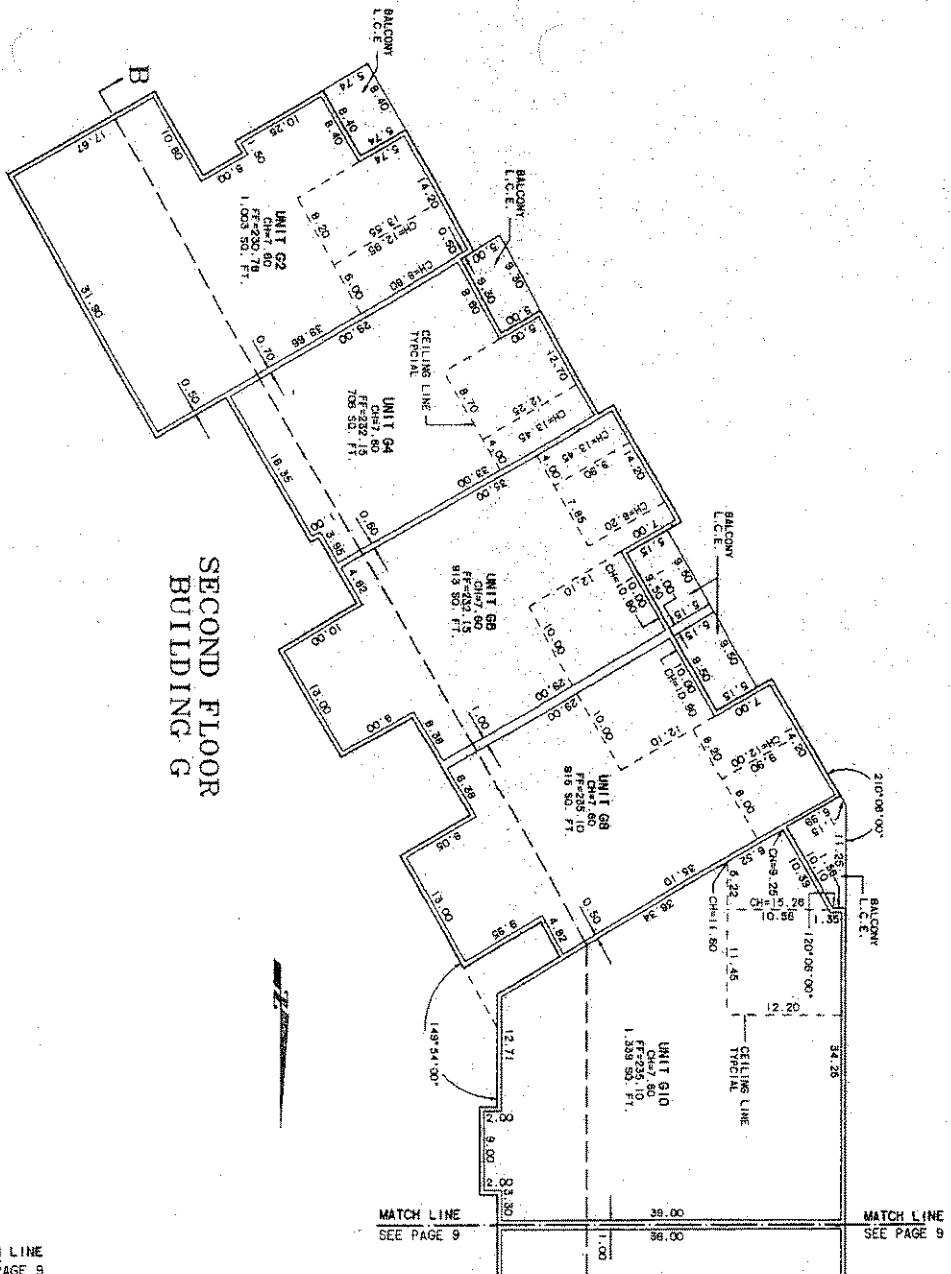
A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONNECTED TO SPRINGVILLE ASSOCIATES, INC., IN DOCUMENT NO. 9207023, WASHINGTON COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER OF SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON. APRIL 19, 2006
SCALE: 1" = 10'

LEGEND

L.C.E. LIMITED COMMON ELEMENT
CH CEILING HEIGHT
FF FINISHED FLOOR ELEVATION
SQ. FT. SQUARE FEET

NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF UNITS ARE 0.50' WIDE.
3. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY DATUM. BENCHMARK NO. 194. ELEVATION=209.234, WASHINGTON COUNTY DATUM.
4. THE HORIZONTAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FACE OF FINISHED WALL TO FACE OF FINISHED WALL. THE VERTICAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR TO FINISHED CEILING.
5. BALCONIES ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.



**SECOND FLOOR
BUILDING G**

UNIT G2 FF=230.78 1,003 SQ. FT.	UNIT G4 FF=232.15 708 SQ. FT.	UNIT G6 FF=232.15 813 SQ. FT.	UNIT G8 FF=232.15 813 SQ. FT.	UNIT G10 FF=232.15 813 SQ. FT.	UNIT G12 FF=232.15 813 SQ. FT.
7.60	7.60	7.60	7.60	7.60	7.60
7.65	7.65	7.65	7.65	7.65	7.65

I CERTIFY THAT THIS SURVEY WAS PREPARED USING HERETI-PACKARD PRODUCT NO. 31645A OR ONE # 88-8342 DOUBLE DATE FILE.

REGISTERED
PROFESSIONAL
LAND SURVEYOR
OFFICER
JULY 12, 2005
OSKAR J. MACHAL
1344715

I HEREBY CERTIFY THIS TO
BE A TRUE AND EXACT COPY
OF THE ORIGINAL PLAT



SURVEYORS/ENGINEERS ASSOCIATES, INC.
4200 N.E. OREGON STREET
PORTLAND, OREGON 97213
PHONE (503) 284-8500
FAX (503) 284-8500

FILE NO. 00-2680

RECORDED AS DOCUMENT NUMBER 2006099569

**COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 3: ANNEXATION OF STAGE 4**

A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS CONVERTED TO SPRINGVILLE ASSOCIATES, L.L.C., A LIMITED LIABILITY COMPANY, SITUATED IN WASHINGTON COUNTY, OREGON, DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER OF SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
SCALE: 1" = 10'

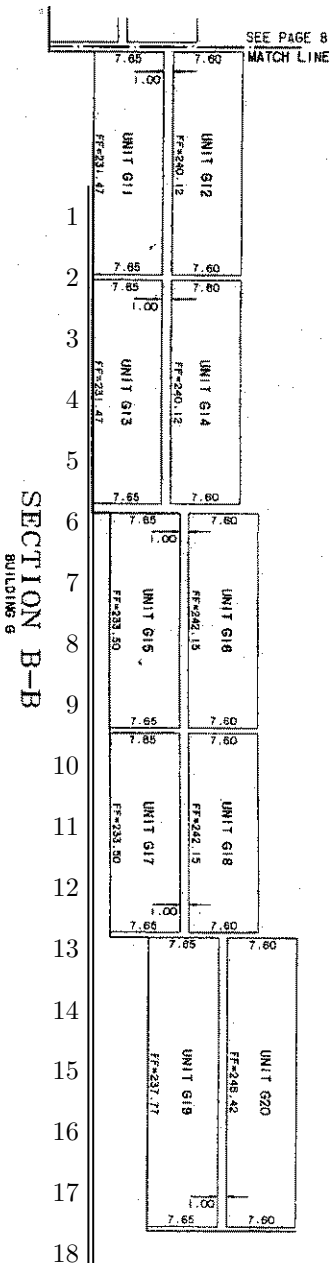
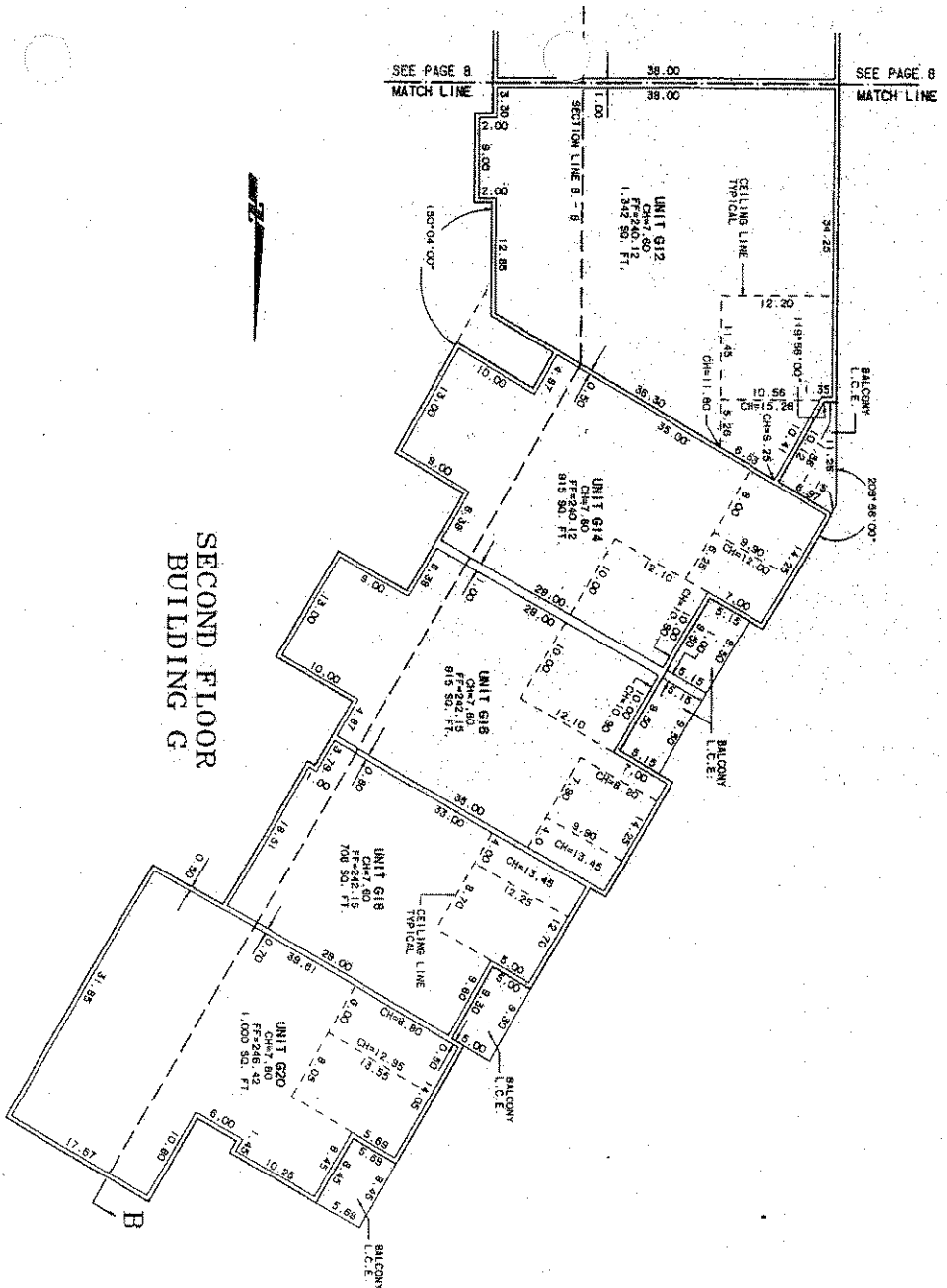
APRIL 19, 2006

LEGEND

L.C.E. LIMITED COMMON ELEMENT
CH CEILING HEIGHT
FF FINISHED FLOOR ELEVATION
SQ. FT. SQUARE FEET

NOTES:

1. BUILDING CORNERS ARE PERPENDICULAR UNLESS NOTED OTHERWISE.
2. EXTERIOR WALLS OF UNITS ARE 0.50' WIDE.
3. FINISHED FLOOR ELEVATIONS BASED ON WASHINGTON COUNTY DATUM.
BENCHMARK NO. 154. ELEVATION=209.254. WASHINGTON COUNTY DATUM.
4. THE HORIZONTAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FACE OF FINISHED WALL TO FACE OF FINISHED WALL. THE VERTICAL INTERIOR MEASUREMENTS OF UNITS SHOWN ARE FROM FINISHED FLOOR TO FINISHED CEILING.
5. BALCONIES ARE LIMITED COMMON ELEMENTS AND ARE ASSIGNED IN THE DECLARATION.



REGISTERED
PROFESSIONAL
LAND SURVEYOR
JULY 2, 2004
DECKEN 1, MACCAI
7342715

I HEREBY CERTIFY THIS TO
BE A TRUE AND EXACT COPY
OF THE ORIGINAL PLAT

I CERTIFY THAT THIS SURVEY WAS PREPARED USING HEMLETT-PACKARD
PRODUCT NO. 510624 ON OCE # 80-6342 DOUBLE WHITE FILM.

WILLIS AND ASSOCIATES, INC.
3000 N.E. CHERRY STREET
PORTLAND, OREGON 97213
PHONE (503) 284-5856
FAX (503) 284-5850
FILE NO. 00-2680

[illegible]

I, DEKLEON, MACKAL, A REGISTERED PROFESSIONAL LAND SURVEYOR, DO HEREBY CERTIFY THAT THE PLAT OF "COURTWARDS AT SPRINGVILLE CONDOMINIUMS SUPPLEMENTAL PLAT NO. 3: ANNEXATION OF STAGE 4" FULLY AND ACCURATELY DEPICTS THE BOUNDARIES OF THE UNITS OF THE BUILDINGS AND THAT CONSTRUCTION OF THE UNITS AND BUILDINGS AS DEPICTED ON THE PLAT HAVE BEEN COMPLETED AS OF JANUARY 15, 2001.

THE PURPOSE OF THIS SURVEY IS TO CREATE A CONDOMINIUM PLAT OF A
PORTION OF THAT TRACT OF LAND AS CONVEYED TO SPRINGVILLE
ASSOCIATES, INC., IN DOCUMENT NO. 92057025, WASHINGTON COUNTY DEED
RECORDS.

[illegible]

I HEREBY CERTIFY THIS TO
BE A TRUE AND EXACT COPY
OF THE ORIGINAL PLAT.

I CERTIFY THAT THIS SURVEY
PRODUCT NO. 51845A ON OCE

REGISTERED
PROFESSIONAL
LAND SURVEYOR

Richard M. Lai

OREGON
JULY 12, 2005
DEKRON T. MACKAI
7342719

RENEWAL DATE: 12-31-08

PRINTED USING HEWLETT-PACKARD
DURABLE MATTE FILM.

AND AMONG ALL PEOPLE BY THESE PRESENTS THAT SPRINGMEYER CORPORATION, AND SPRINGMEYER CORPORATION DOES HEREBY DECLARE THE NAMED MAP OF :
ANNEXATIONS OF STATE SEC. 5 AS DESCRIBED HEREIN, THE CONVEYANCE, NO. 3 :
SURVEYOR'S CERTIFICATE, TO BE A TRUE AND CORRECT MAP AND PLAT
HEREOF, DOES HEREBY COME, SAID LAND TO THE OPERATION OF OREGON
STATUTES, THE PROPERTY AND IMPROVEMENTS DESCRIBED AND DEPICTED ON
THE PLAT ARE SUBJECT TO THE PROVISIONS OF OREGON REVISED STATUTES
OS. 005 TO 006 623.

THIS INSTRUMENT WAS ACKNOWLEDGED BEFORE ME ON July 28th, 2006
BY MICHAEL CHIU AS PRESIDENT OF SPRINGVILLE CORPORATION.

Scott Morgan
NOTARY SIGNATURE

Scott Morgan
NOTARY PUBLIC - OREGON

COMMISSION NO. 362546

MY COMMISSION EXPIRES October 30, 2008

APPROVED THIS 18th DAY OF AUGUST 2005
WASHINGTON COUNTY SHERIFF
BY: *[Signature]*

BY: James H. Cummings
 ATTTEST THIS 18th DAY OF August
 DIRECTOR OF ASSESSMENT AND TAXATION
 EXAMINER OF COUNTY OF Clark.
James H. Cummings
 DEPUTY

 2006

COUNTY OF WASHINGTON)
 ss
 I DO HEREBY CERTIFY THAT THIS CONDOMINIUM
 PLAN WAS RECEIVED FOR RECORD ON THIS 18th
 DAY OF AUGUST, 2006, AT 4:26 P.M.
 AND RECORDED IN THE COUNTY CLERK RECORDS.
Deanne M. Allen
 DEPUTY COUNTY CLERK

STATE OF WASHINGTON)
COUNTY OF WASHINGTON) SS
I, DO HEREBY CERTIFY THAT THIS TRACING IS A COPY CERTIFIED TO BE
BY THE SURVIVOR OF THIS CONDOMINIUM PLAT, TO BE A TRUE AND FAITH-
FUL COPY OF THE ORIGINAL, AND THAT IT WAS RECORDED ON THE 28th DAY
OF August, 2006, AT 11:46 AM, IN THE COUNTY CLERK'S
RECORDS

Steven M. Cole
DEPUTY COUNTY CLERK

RECORDED AS DOCUMENT NUMBER 2006099569
COURTYARDS AT SPRINGVILLE
CONDOMINIUM SUPPLEMENTAL PLAT
NO. 3: ANNEXATION OF STAGE 4
A CONDOMINIUM PLAT OF A PORTION OF THAT TRACT OF LAND AS SOMETIMES
KNOWN AS THE SPRINGVILLE ASSOCIATES, INC., IN DOCUMENT NO. 2006099569
WASHINGTON COUNTY DEED RECORDS, SITUATED IN THE NORTHWEST QUARTER
OF SECTION 19, TOWNSHIP 1 NORTH, RANGE 1 WEST, WILLAMETTE
MERIDIAN, WASHINGTON COUNTY, STATE OF OREGON.
APRIL 19, 2006



1 Defendant's Exhibit F

2 BYLAWS — COURTYARDS AT SPRINGVILLE

3 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

1
2
3
4 **EXHIBIT E**
5
6
7
8
9

10
11
12
13 **BYLAWS**
14

15 **OF**
16

17 **COURTYARDS AT SPRINGVILLE CONDOMINIUM ASSOCIATION**
18
19
20
21
22
23
24
25
26
27
28

PortInd1-2055951.1 0040603-00001

27

TABLE OF CONTENTS

	<u>Page</u>
ARTICLE 1. PLAN OF CONDOMINIUM OWNERSHIP	1
1.1 Name and Location	1
1.2 Principal Office	1
1.3 Purposes	1
1.4 Applicability of Bylaws	1
1.5 Composition of Association	1
1.6 Incorporation	1
1.7 Definitions	1
ARTICLE 2. MEETINGS OF ASSOCIATION	2
2.1 Place of Meetings	2
2.2 Organizational and Turnover Meeting	2
2.3 Annual Meetings	2
2.4 Special Meetings	2
2.5 Notice of Meetings	2
2.6 Voting	3
2.7 Absentee Ballots and Proxies	3
2.8 Fiduciaries and Joint Owners	3
2.9 Tenants and Contract Vendors	3
2.10 Quorum of Unit Owners	3
2.11 Majority Vote	4
2.12 Order of Business	4
2.13 Ballot Meetings	4
ARTICLE 3. BOARD OF DIRECTORS	5
3.1 Number and Qualification	5
3.2 Interim Directors	5
3.3 Transitional Committee	5
3.4 Election and Term of Office	6
3.5 Vacancies	6
3.6 Removal of Directors	6
3.7 Powers and Duties	6
3.8 Managing Agent or Manager	8
3.9 Contracts Entered into by Declarant or Interim Board	8
3.10 Organizational Meeting	9
3.11 Regular and Special Meetings	9

1			
2	3.12	Open Meetings	9
3	3.13	Waiver of Notice	9
4	3.14	Quorum of Board of Directors	9
5	3.15	Compensation	10
6	3.16	Liability and Indemnification of Directors and Officers	10
7	3.17	Insurance	10
8	ARTICLE 4.	OFFICERS	10
9	4.1	Designation	10
10	4.2	Election of Officers	10
11	4.3	Removal of Officers	10
12	4.4	Chairperson	10
13	4.5	Secretary	11
14	4.6	Treasurer	11
15	4.7	Execution of Instruments	11
16	4.8	Compensation of Officers	11
17	ARTICLE 5.	BUDGET, EXPENSES AND ASSESSMENTS	11
18	5.1	Budget	11
19	5.2	Determination of Common Expenses	12
20	5.3	Assessment of Common Expenses	12
21	(a)	Obligation to pay	12
22	(b)	Initial working capital fund	13
23	(c)	Commencement of regular operating expense assessments	13
24	(d)	Commencement of assessment for replacement reserves	13
25	(e)	Annexation of additional stages	13
26	5.4	Special or Extraordinary Assessments	13
27	(a)	Special Assessments for Capital Improvements	13
28	(b)	Other Special or Extraordinary Assessments	14
	5.5	Replacement Reserves	14
	(a)	Establishment of Account	14
	(b)	Funding of Account	14
	(c)	Reserve Studies	14
	(d)	Use of Reserve Funds	15
	(e)	Sale of Units	15
	5.6	Default in Payment of Assessments	15
	5.7	Foreclosure of Liens for Unpaid Assessments	16
	5.8	Statement of Assessments	16
	5.9	Priority of Lien; First Mortgages	16
	5.10	Voluntary Conveyance	16

1 **ARTICLE 6. RECORDS AND AUDITS 17**

2

3 6.1 General Records 17

4 6.2 Financial Records and Accounts 17

5 6.3 Assessment Roll 17

6 6.4 Payment of Vouchers 17

7 6.5 Reports and Audits 17

8 6.6 Notice of Sale, Mortgage, Rental or Lease 17

9 6.7 Availability of Records 18

10 **ARTICLE 7. MAINTENANCE AND USE OF CONDOMINIUM PROPERTY . . 18**

11 7.1 Maintenance and Repair 18

12 (a) Units 18

13 (b) Common elements 18

14 7.2 Additions, Alterations or Improvements 18

15 7.3 Damage or Destruction by Casualty of Condominium Property 19

16 7.4 Condemnation 20

17 (a) Complete Taking 20

18 (b) Partial Taking 21

19 7.5 Restrictions and Requirements Respecting Use of Condominium Property . . 21

20 (a) Residential use 21

21 (b) Use of common elements 21

22 (c) Offensive or unlawful activities 21

23 (d) Animals 22

24 (e) Exterior lighting or noisemaking devices and antennas 22

25 (f) Windows, balconies, patios and outside walls 22

26 (g) Parking of Vehicles 22

27 (h) Leasing and rental of units 22

28 (i) Signs 23

(j) Trash 23

(k) Insurance 23

(l) Garages 23

(m) Water beds 23

(n) Washing Machines 23

(o) Association rules and regulations 23

7.6 Abatement and Enjoining of Violations 24

24 **ARTICLE 8. INSURANCE 24**

25 8.1 Types of Insurance 24

26 (a) Property Damage Insurance 25

27 (b) Liability Insurance 25

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

BYLAWS OF
COURTYARDS AT SPRINGVILLE CONDOMINIUM ASSOCIATION

ARTICLE 1.

PLAN OF CONDOMINIUM OWNERSHIP

1.1 **Name and Location.** These are the bylaws of the **COURTYARDS AT SPRINGVILLE CONDOMINIUM ASSOCIATION** (the "Association"). Courtyards at Springville Condominium (the "condominium") is located in Washington County, Oregon, and has been submitted to the Oregon Condominium Act by a declaration recorded simultaneously with these Bylaws and by supplemental declarations, if any, annexing property to the condominium (collectively the "Declaration"). The location of the condominium is more specifically described in the Declaration.

1.2 **Principal Office.** The principal office of the Association shall be located at 17618 NW Springville Road, Portland, Oregon 97029, or such other address as may be designated by the board of directors from time to time.

1.3 **Purposes.** This Association is formed under the provisions of the Oregon Condominium Act to serve as the means through which the unit owners may take action with regard to the administration, management and operation of the condominium.

1.4 **Applicability of Bylaws.** The Association, all unit owners, and all persons using the condominium property shall be subject to these Bylaws and to all rules and regulations which may be adopted pursuant to these Bylaws.

1.5 **Composition of Association.** The Association shall be composed of all the unit owners of the condominium, including Springville Corporation and its successors and assigns (the "Declarant"), and the Association, itself, to the extent any of these own any unit or units of the condominium.

1.6 **Incorporation.** The Association shall be incorporated under the Oregon Non-Profit Corporation Law. The Articles of Incorporation of the Association shall be consistent with the Declaration and these Bylaws, and these Bylaws shall constitute the bylaws of the incorporated association.

1.7 **Definitions.** The definitions contained in or adopted by the Declaration shall be applicable to these Bylaws.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

ARTICLE 2.

MEETINGS OF ASSOCIATION

2.1 **Place of Meetings.** The Association shall hold meetings at such suitable place convenient to the unit owners as may be designated by the board of directors from time to time.

2.2 **Organizational and Turnover Meeting.** Within five years after the date of conveyance of the first unit to a person other than the Declarant, or within ninety (90) days after Declarant has sold and conveyed seventy-five percent (75%) or more of the total number of units which Declarant may submit to the condominium, whichever is earlier, the Declarant shall call the first meeting of the unit owners to organize the Association and to elect directors. Notice of such meeting shall be given to all owners as provided in Section 2.5. If Declarant fails to call the meeting, the meeting may be called and notice given by any unit owner or mortgagee of a unit. The expense of giving notice shall be paid or reimbursed by the Association. At the meeting, Declarant shall deliver to the Association such information and documents as may be required by the Oregon Condominium Act. Nothing in this section shall be construed as preventing the Declarant from calling the organizational and turnover meeting prior to such date, or from calling informal, informational meetings of the unit owners.

2.3 **Annual Meetings.** The annual meetings of the Association shall be held on such date each year as may be established by the board of directors from time to time, or if the board does not establish such a date, then in the month of February at such hour and on such date as the chairperson may designate, or if the chairperson should fail to designate such date by the first day of February then on the last Tuesday in February. The annual meetings shall be for the purpose of electing directors and for the transaction of such other business as may properly come before the meeting.

2.4 **Special Meetings.** Special meetings of the Association may be called by the chairperson or by a majority of the board of directors, and must be called by such officers upon receipt of a written request from at least thirty percent (30%) of the unit owners stating the purpose of the meeting. Business transacted at a special meeting shall be confined to the purposes stated in the notice.

2.5 **Notice of Meetings.** Notice of the annual meeting and all other meetings of the Association stating the time and place and the objects for which the meeting is being called shall be given by the chairperson or secretary. Such notice shall be in writing and mailed not less than ten (10) days nor more than fifty (50) days prior to the date of the meeting to each unit owner at his address as it appears on the books of the Association and to any first mortgagee requesting such notice. Proof of such mailing shall be given by the affidavit of the person giving the notice. Notice of meeting may be waived by any unit owner before or after meetings. When a meeting is adjourned for less than 30 days, no notice of the adjourned meeting need be given other than by announcement at the meeting at which such adjournment takes place.

1
2 **2.6 Voting.** Each unit owner shall have one vote for each unit of the condominium
3 owned by such unit owner. The Declarant shall be entitled to vote as the unit owner of any then
4 existing units retained by the Declarant, and the board of directors shall be entitled to vote on
5 behalf of any unit which has been acquired by or on behalf of the Association; provided, however,
6 that the board of directors shall not be entitled to vote such units in any election of directors.

7 **2.7 Absentee Ballots and Proxies.** A vote may be cast in person, by absentee ballot
8 or by proxy. A proxy given by a unit owner to any person who represents such owner at
9 meetings of the Association shall be in writing and signed by such owner, and shall be filed with
10 the secretary, at any time prior to the meeting. An owner may not revoke a proxy given pursuant
11 to this section except by actual notice of revocation to the person presiding over a meeting. A
12 proxy shall not be valid if it is undated or purports to be revocable without notice. A proxy shall
13 terminate one year after its date unless the proxy specifies a shorter term. Every proxy shall
14 automatically cease upon sale of the unit by its owner. A unit owner may pledge or assign such
15 owner's voting rights to a mortgagee. In such a case, the mortgagee or its designated
16 representative shall be entitled to receive all notices to which the unit owner is entitled under these
17 Bylaws and to exercise the unit owner's voting rights from and after the time that the mortgagee
18 shall give written notice of such pledge or assignment to the board of directors. Any first
19 mortgagee may designate a representative to attend all or any meetings of the Association.

20 **2.8 Fiduciaries and Joint Owners.** An executor, administrator, guardian or trustee
21 may vote, in person or by proxy, at any meeting of the Association with respect to any unit owned
22 or held in such capacity, whether or not the same shall have been transferred to his or her name;
23 provided, that such person shall satisfy the secretary that he or she is the executor, administrator,
24 guardian or trustee, holding such unit in such capacity. Whenever any unit is owned by two or
25 more persons jointly, according to the records of the Association, the vote or proxy of such unit
26 may be exercised by any one of the owners then present, in the absence of protest by a co-owner.
27 In the event of such protest, no one co-owner shall be entitled to vote without the approval of all
28 co-owners. In the event of disagreement among the co-owners, the vote of such unit shall be
disregarded completely in determining the proportion of votes given with respect to such matter.

29 **2.9 Tenants and Contract Vendors.** Unless otherwise expressly stated in the rental
30 agreement or lease, all voting rights allocated to a unit shall be exercised by the owner/landlord.
31 Unless otherwise stated in the contract, all voting rights allocated to a unit shall be exercised by
32 the vendee of any recorded land sale contract on the unit.

33 **2.10 Quorum of Unit Owners.** At any meeting of the Association, members holding
34 twenty percent (20%) of the voting rights, present in person or by proxy, shall constitute a
quorum. The subsequent joinder of a unit owner in the action taken at a meeting by signing and
concurring in the minutes of the meeting shall constitute the presence of such person for the
purpose of determining a quorum. When a quorum is once present to organize a meeting, it
cannot be broken by the subsequent withdrawal of a unit owner or owners. If any meeting of

1
2 members cannot be organized because of a lack of quorum, the members who are present, either
3 in person or by proxy, may adjourn the meeting from time to time until a quorum is present.

4 **2.11 Majority Vote.** The vote of the holders of more than fifty percent (50%) of the
5 voting rights, present in person or by proxy at a meeting at which a quorum is constituted, shall
6 be binding upon all unit owners for all purposes except where a higher percentage vote is required
7 by law, by the Declaration or by these Bylaws.

8 **2.12 Order of Business.** The order of business at annual meetings of the Association
9 shall be:

- 10 (a) Calling of the roll and certifying of proxies;
- 11 (b) Proof of notice of meeting or waiver of notice;
- 12 (c) Reading of minutes of preceding meeting;
- 13 (d) Reports of officers;
- 14 (e) Reports of committees, if any;
- 15 (f) Election of directors;
- 16 (g) Unfinished business;
- 17 (h) New business; and
- 18 (i) Adjournment.

19 **2.13 Ballot Meetings.** At the discretion of the board of directors, any action that may
20 be taken at any annual, regular or special meeting of the Association may be taken without a
21 meeting if the Association delivers a written ballot to every member that is entitled to vote on the
22 matter. The written ballot shall set forth each proposed action and provide an opportunity to vote
23 for or against each proposed action. If approval of a proposed action would otherwise require a
24 meeting at which a certain quorum must be present and at which a certain percentage of total votes
25 cast is required to authorize the action, the proposal will be deemed to be approved when the date
26 for return of ballots has passed, a quorum of unit owners has voted and the required percentage
27 of approving votes has been received. Otherwise, the proposal shall be deemed to be rejected.
28 If approval of a proposed action otherwise would require a meeting at which a specified
percentage of unit owners must authorize the action, the proposal shall be deemed to be approved
when the percentage of total votes cast in favor of the proposal equals or exceeds such required
percentage. The proposal shall be deemed to be rejected when the number of votes cast in
opposition renders approval impossible or when both the date for return of ballots has passed and

1
2 such required percentage has not been met. Votes may be counted from time to time before the
3 final return date to determine whether the proposal has passed or failed by the votes already cast
4 on the date they are entered. All solicitations for votes by written ballot shall state the number
5 of responses needed to meet any applicable quorum requirement and the total percentage of votes
6 needed for approval. All such solicitations for votes shall specify the period during which the
7 Association will accept written ballots for counting, which period shall end on the earliest of (a)
8 the date on which the Association has received a sufficient number of approving ballots to pass
9 the proposal, or (b) the date on which the Association has received a sufficient number of
10 disapproving ballots to render the proposal impossible of passage, or (c) a date certain on which
11 all ballots must be returned to be counted. A written ballot may not be revoked.

12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 ARTICLE 3.

BOARD OF DIRECTORS

3.1 Number and Qualification. The affairs of the Association shall be governed by
a board of directors composed of three (3) interim directors or five (5) to seven (7) regular
directors, as provided in Sections 3.2 and 3.4 of this Article. All directors, other than interim
directors appointed by Declarant, shall be owners or co-owners of units of the condominium. For
purposes of this section, the officers and any duly appointed employees of any corporate owner,
the members of any limited liability company and the partners of any partnership shall be
considered co-owners of any units owned by such corporation, limited liability company or
partnership.

3.2 Interim Directors. Upon the recording of the Declaration submitting the
condominium to the Oregon Condominium Act the Declarant shall appoint an interim board of
three (3) directors, who shall serve until replaced by Declarant or their successors have been
elected by the unit owners as provided below.

3.3 Transitional Committee. Unless the organizational and turnover meeting
described in Section 2.2 above has already been held, Declarant shall call a meeting of the unit
owners for the purpose of forming a transitional committee. The meeting shall be called within
sixty (60) days of conveyance to persons other than Declarant of fifty percent (50%) of the total
number of units which Declarant may submit to the condominium. Declarant shall give notice
of the meeting as provided in Section 2.5 above. The committee shall consist of two or more
members elected by the unit owners other than Declarant and not more than one representative
of Declarant. The members shall serve until the organizational and turnover meeting. The
transitional committee shall be advisory only and its purpose shall be to enable ease of transition
from control of the administration of the Association by the Declarant to control by the unit
owners. The committee shall have access to the information, documents and records which
Declarant must turn over to the unit owners at the time of the organizational and turnover
meeting. If Declarant fails to call the meeting to elect a transitional committee within the time
specified, the meeting may be called and notice given by any unit owner.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

3.4 **Election and Term of Office.** At the first organizational and turnover meeting called by Declarant pursuant to Section 2.2 of these Bylaws, the interim directors shall resign and five (5) successors shall be elected, two to serve until the next annual meeting and three to serve until the second annual meeting after their election. The candidates receiving the greatest number of votes shall be elected to the two-year terms. Thereafter, at the expiration of the initial term of office of each respective director, his or her successor shall be elected to serve for a term of two years, so that the term of not less than one-third of the directors shall expire annually. Directors shall hold office until their respective successors have been elected by the unit owners. Election shall be by plurality. Upon a majority vote of the membership present in person or by proxy at a meeting called for such purpose, the number of directors may be increased to seven (7) directors. Upon such increase, two additional directors shall be elected, one to serve until the next annual meeting and the other to serve until the second annual meeting after their election. Thereafter, each successor shall be elected to serve for a two-year term.

3.5 **Vacancies.** Vacancies in the board of directors caused by any reason other than the removal of a director by a vote of the Association shall be filled by vote of the majority of the remaining directors, even though they may constitute less than a quorum, or by a sole remaining director. Each person so elected shall be a director until a successor is elected to fill the unexpired term at the next annual meeting of the Association or the next special meeting of the Association called for that purpose. Vacancies in interim directors shall be filled by Declarant.

3.6 **Removal of Directors.** At any regular or special meeting of the Association duly called, any one or more of the directors, other than interim directors, may be removed with or without cause by a majority vote of the unit owners present in person or by proxy, and a successor shall be elected at that meeting to fill the vacancy thus created. The notice of any such meeting shall state that such removal is to be considered, and any director whose removal has been proposed shall be given an opportunity to be heard at that meeting.

3.7 **Powers and Duties.** The board of directors shall have all of the powers and duties necessary for the administration of the affairs of the Association, except such powers and duties as by law or by the Declaration or by these Bylaws may not be delegated to the board of directors by the unit owners. The powers and duties to be exercised by the board of directors shall include, but shall not be limited to the following:

(a) Operation, care, upkeep, maintenance, repair and replacement of the general and limited common elements and Association property.

(b) Determination of the amounts required for operation, maintenance and other affairs of the Association, and the making of such expenditures.

(c) Preparation and adoption of budgets, preparation, review and update of reserve studies and assessment and collection of the common expenses, all in accordance with the provisions of these Bylaws.

1
2 (d) Employment and dismissal of such personnel as necessary for the efficient
3 maintenance, upkeep and repair of the common elements.

4 (e) Employment of legal, accounting or other personnel for reasonable
5 compensation to perform such services as may be required for the proper administration
6 of the Association; provided, however, the board may not incur or commit the Association
7 to incur legal fees in excess of \$5,000 for any specific matter unless the unit owners have
8 enacted a resolution authorizing the incurring of such fees by a vote of seventy-five percent
9 (75%) of the voting rights present in person or by proxy at a meeting at which a quorum
10 is constituted. This limitation shall not be applicable to legal fees incurred in defending
11 the Association and the board of directors from claims or litigation brought against them.
12 The limitation set forth in this paragraph shall increase by \$500 on each fifth anniversary
13 of the recording of the Declaration. To the extent required by ORS 100.490, the board
14 shall notify the owners prior to instituting litigation or administrative proceedings. With
15 regard to any pending litigation involving the Association, the board shall periodically
16 report to the unit owners as to the status (including settlement offers), progress, and
17 method of funding such litigation. Nothing in this paragraph shall be construed as
18 requiring the board to disclose any privileged communication between the Association and
19 its counsel.

20 (f) Opening of bank accounts on behalf of the Association and designating the
21 signatories required therefor.

22 (g) Preparation and distribution of annual financial statements in accordance
23 with these Bylaws and annual preparation and filing of all required income tax returns or
24 forms for the Association.

25 (h) Purchasing units of the condominium at foreclosure or other judicial sales
26 in the name of the Association, or its designee, on behalf of all the unit owners as provided
27 in these Bylaws.

28 (i) Selling, leasing, mortgaging, voting the votes appurtenant to (other than for
the election of directors), or otherwise dealing with units of the condominium acquired by
the Association or its designee on behalf of all the unit owners.

(j) Obtaining insurance or bonds pursuant to the provisions of these Bylaws and
at least annually review the insurance coverage of the Association.

(k) Making additions and improvements to, or alterations of, the common
elements; provided, however, that no such project may be undertaken by the board if the
total cost will exceed the amount of \$10,000 unless the unit owners have enacted a
resolution authorizing the project by a majority vote of the members. This limitation shall
not be applicable to maintenance, repairs or replacement undertaken pursuant to paragraph

1
2 (a) above. The limitation set forth in this paragraph shall increase by \$1,000 on each
3 anniversary of the recording of the Declaration.

4 (l) Modify, close, remove, eliminate or discontinue the use of a general
5 common element facility or improvement or portion of the common element landscaping,
6 except that modification, closure, removal, elimination or discontinuance other than on a
7 temporary basis of any swimming pool, spa or recreation or community building must be
8 approved by at least a majority of the unit owners voting on such matter at a meeting or
9 ballot meeting held in accordance with these Bylaws.

10 (m) Designating one or more committees which, to the extent provided in the
11 resolution designating the committee, shall have the powers of the board of directors in
12 the management of the affairs of the Association. At least one member of each committee
13 shall be a member of the board of directors.

14 (n) Enforcement by legal means of the provisions of the Oregon Condominium
15 Act, the Declaration, these Bylaws and any rules and regulations adopted hereunder.

16 (o) The filing of an Annual Report and any amendment in accordance with
17 ORS 100.250.

18 3.8 Managing Agent or Manager. On behalf of the Association, the board of
19 directors may employ or contract for a managing agent or a manager at a compensation to be
20 established by the board of directors. Any such management agreement shall be terminable by
21 the Association upon not more than 90 days' written notice thereof. The board of directors may
22 delegate to the managing agent or manager such duties and powers as the board of directors may
23 authorize. In the absence of such appointment, the board of directors shall act as manager;
24 provided, however, that if an eligible mortgage holder had previously required professional
25 management, the board of directors may not terminate professional management and assume
26 self-management unless the decision to do so is approved by at least sixty-seven percent (67%)
27 of the total voting power of the Association, and approved by eligible mortgage holders holding
28 mortgages on units which have at least fifty-one percent (51%) of the voting rights of the units
subject to eligible holder mortgages.

3.9 Contracts Entered into by Declarant or Interim Board. Notwithstanding any
other provision of these Bylaws, any leases or contracts (including management contracts, service
contracts and employment contracts) entered into by the Declarant or the interim board on behalf
of the Association shall have a term not in excess of three years. In addition, any such lease or
contract shall provide that it may be terminated without cause or penalty by the Association or
board of directors upon not less than 30 days' notice to the other party given at any time after
election of the permanent board at the organizational and turnover meeting described in Section
2.2 of these Bylaws.

1
2 **3.10 Organizational Meeting.** Unless otherwise agreed by the board, within fourteen
3 (14) days following the annual meeting of the Association or following any meeting at which an
4 election of directors has been held, the board of directors shall hold an organization meeting at
5 such place and time as shall have been fixed by the directors at the meeting at which the election
6 was held.

7 **3.11 Regular and Special Meetings.** Regular meetings of the board of directors may
8 be held at such time and place as shall be determined, from time to time, by a majority of the
9 directors. Special meetings of the board of directors may be called by the chairperson and must
10 be called by the secretary at the written request of at least two directors. Notice of any special
11 meeting shall be given to each director, personally or by mail, telephone or telegraph at least
12 seven (7) days prior to the day named for such meeting, and shall state the time, place and
13 purpose of such meeting.

14 **3.12 Open Meetings.** All meetings of the board of directors shall be open to unit
15 owners except that, in the discretion of the board, the following matters may be considered in
16 executive session: (a) consultation with legal counsel concerning the rights and duties of the
17 Association regarding existing or potential litigation, or criminal matters; (b) personnel matters,
18 including salary negotiations and employee discipline; and (c) the negotiation of contracts with
19 third parties. Such meetings may be conducted by telephonic communication, except that if a
20 majority of the units are principal residences of the occupants, then: (a) for other than emergency
21 meetings, notice of each board of directors' meeting shall be posted at a place or places on the
22 property at least three (3) days prior to the meeting, or notice shall be provided by a method
23 otherwise reasonably calculated to inform the unit owners of such meeting; and (b) only
24 emergency meetings of the board of directors may be conducted by telephonic communication.

25 **3.13 Waiver of Notice.** Any director may, at any time, waive notice of any meeting
26 of the board of directors in writing, and such waiver shall be deemed equivalent to the giving of
27 such notice. Attendance by a director at any meeting of the board shall constitute a waiver of
28 notice by such director, except where the director attends the meeting for the express purpose of
objecting to the transaction of any business because the meeting is not lawfully called or
convened. If all of the directors are present at any meeting of the board, no notice to directors
shall be required and any business may be transacted at such meeting.

3.14 Quorum of Board of Directors. At all meetings of the board of directors, a
majority of the directors shall constitute a quorum for the transaction of business, and the votes
of a majority of the directors present at a meeting at which a quorum is present shall constitute
the decision of the board of directors. If at any meeting of the board of directors less than a
quorum should be present, a majority of those present may adjourn the meeting from time to time.
At any such adjourned meeting at which a quorum is present, any business which might have been
transacted at the meeting originally called may be transacted without further notice to directors.

1
2 **3.15 Compensation.** No director shall receive any compensation from the Association
3 for acting as such.

4 **3.16 Liability and Indemnification of Directors and Officers.** A member of the board
5 of directors or an officer of the Association shall not be liable to the Association or any member
6 thereof for any damage, loss or prejudice suffered or claimed on account of any action or failure
7 to act in the performance of his or her duties, except for acts of gross negligence or intentional
8 acts. In the event any member of the board of directors or any officer of the Association is made
9 a party to any proceeding because the individual is or was a director or officer of the Association,
10 the Association shall indemnify such individual against liability and expenses incurred to the
11 maximum extent permitted by law.

12 **3.17 Insurance.** The board of directors shall obtain the insurance and fidelity bonds
13 required in Article 8 of these Bylaws. In addition, the board of directors, in its discretion, may
14 obtain such other insurance as it deems necessary to protect the interests of the Association or unit
15 owners. The board of directors shall conduct an annual insurance review which, if appropriate,
16 shall include an appraisal of all improvements contained in the condominium.

17 18 19 20 21 22 23 24 25 26 27 28 ARTICLE 4.

OFFICERS

4.1 **Designation.** The principal officers of the Association shall be the chairperson,
the secretary and the treasurer, all of whom shall be elected by the board of directors. The
directors may appoint a vice chairperson, an assistant treasurer, an assistant secretary, and such
other officers as in their judgment may be necessary. The chairperson shall be a member of the
board of directors, but the other officers need not be directors or unit owners.

4.2 **Election of Officers.** The officers of the Association shall be elected annually, by
the board of directors at the organization meeting of each new board and shall hold office at the
pleasure of the board. If any office shall become vacant, the board of directors shall elect a
successor to fill the unexpired term at any regular meeting of the board of directors, or at any
special meeting of the board of directors called for such purpose.

4.3 **Removal of Officers.** Upon the affirmative vote of a majority of the directors, any
officer may be removed either with or without cause, and a successor may be elected at any
regular meeting of the board of directors, or at any special meeting of the board of directors called
for such purpose.

4.4 **Chairperson.** The chairperson shall be the chief executive officer of the
Association. He or she shall preside at all meetings of the Association and of the board of
directors. The chairperson shall have all of the general powers and duties which are usually
vested in the chief executive officer of an association, including but not limited to the power to

1
2 appoint committees from among the unit owners from time to time as the chairperson may in his
3 or her discretion decide is appropriate to assist in the conduct of the affairs of the Association.

4 **4.5 Secretary.** The secretary shall keep the minutes of all proceedings of the board
5 of directors and the minutes of all meetings of the Association. He or she shall attend to the
6 giving and serving of all notices to the unit owners and directors and other notices required by
7 law. The secretary shall keep the records of the Association, except for those of the treasurer,
8 and shall perform all other duties incident to the office of secretary of an association and as may
9 be required by the directors or the chairperson. In addition, the secretary shall act as vice
10 chairperson, taking the place of the chairperson and performing the chairperson's duties whenever
11 the chairperson is absent or unable to act, unless the directors have appointed another vice
12 chairperson.

13 **4.6 Treasurer.** The treasurer shall have the responsibility for Association funds and
14 securities and shall be responsible for keeping full and accurate financial records and books of
15 account showing all receipts and disbursements, and for the preparation of required financial
16 statements. He or she shall be responsible for the deposit of all moneys and other valuable effects
17 in such depositories as may from time to time be designated by the board of directors, and shall
18 disburse funds of the Association upon properly authorized vouchers. The treasurer shall perform
19 all other duties incident to the office of treasurer of an association and such other duties as may
20 be assigned to him or her by the board of directors.

21 **4.7 Execution of Instruments.** All agreements, contracts, deeds, leases and other
22 instruments of the Association, except checks, shall be executed by such person or persons as may
23 be designated by general or special resolution of the board of directors and, in the absence of any
24 general or special resolution applicable to any such instrument, then such instrument shall be
25 signed by the chairperson. All checks shall be signed by the treasurer, or in the absence or
26 disability of the treasurer, by the chairperson or any duly elected assistant treasurer.

27 **4.8 Compensation of Officers.** No officer who is a member of the board of directors
28 shall receive any compensation from the Association for acting as an officer, unless such
compensation is authorized by a resolution duly adopted by the unit owners. The board of
directors may fix any compensation to be paid to any officers who are not also directors.

ARTICLE 5.

BUDGET, EXPENSES AND ASSESSMENTS

24 **5.1 Budget.** The board of directors shall from time to time, and at least annually,
25 prepare a budget for the Association, estimate the common expenses expected to be incurred, less
26 any previous overassessment and plus any underassessment, and assess the common expenses to
27 each unit owner in the proportion set forth in the Declaration. The budget shall provide for a
28 reserve fund in accordance with Section 5.5 below. Within thirty (30) days after adopting the

1
2 annual budget, the board of directors shall provide a summary of the budget to all owners. If the
3 board of directors fails to adopt an annual budget, the last adopted budget shall continue in effect.

4 **5.2 Determination of Common Expenses.** Common expenses shall include:

- 5 (a) Expenses of administration, including management fees.
- 6 (b) Expenses of maintenance, repair or replacement of common elements or any
7 other portions of the condominium required to be maintained by the Association pursuant
8 to the Declaration or these Bylaws.
- 9 (c) Cost of insurance or bonds obtained in accordance with these Bylaws.
- 10 (d) A general operating reserve, including an amount sufficient to cover the
11 deductible under the property damage insurance policy.
- 12 (e) Reserve for replacements, repairs and maintenance.
- 13 (f) Any deficit in common expenses for any prior period.
- 14 (g) Utilities for the common elements and other utilities with a common meter
15 or commonly billed, such as trash collection, water and sewer.
- 16 (h) The Association's pro rata share of shared costs of maintaining the pool,
17 spa, and recreation areas located on the proposed future stages until such areas are annexed
18 to the Condominium.
- 19 (i) Any other items properly chargeable as an expense of the Association.

20 **5.3 Assessment of Common Expenses.**

- 21 (a) **Obligation to pay.** All unit owners shall be obligated to pay common
22 expenses assessed to them by the board of directors on behalf of the Association pursuant
23 to these Bylaws and the Declaration. No unit owner by the owner's own action may claim
24 exemption from liability for contribution towards common expenses by waiver by the
25 owner of use or enjoyment of any of the common elements or by abandonment by the
26 owner of the owner's unit. A unit owner may not claim an offset against an assessment
27 for failure of the Association to perform its obligations and no unit owner may offset
28 amounts owing or claimed to be owing by the Association or Declarant to the unit owner.
Subject to paragraph (c) below, Declarant shall be assessed as the unit owner of any unsold
unit, but such assessments shall be prorated to the date of sale of the unit. The board of
directors, on behalf of the Association shall assess the common expenses against the unit
owners from time to time, and at least annually, and shall take prompt action to collect

1
2 from a unit owner any common expense due which remains unpaid for more than thirty
3 (30) days from the due date for its payment. The board may elect to round assessments
4 to the nearest dollar.

5 (b) Initial working capital fund. Declarant shall establish an initial working
6 capital fund in an amount at least equal to two (2) months of estimated regular association
7 assessments for each unit. At the time of closing of the initial sale of each unit, the
8 purchaser shall make an initial contribution to the working capital of the Association equal
9 to two months' regular association assessments for the unit. At the time of the
10 organizational and turnover meeting, the Declarant shall pay such contribution for all
11 unsold units, but may obtain reimbursement for such sums from the purchaser upon the
12 sale of each such unit. Such initial contribution shall be in addition to the regular monthly
13 common expense assessment and shall not be considered as an advance payment of regular
14 assessments. The working capital fund shall be transferred to the Association for deposit
15 to a segregated fund at the time of the organizational and turnover meeting. Declarant
16 may not use the working capital fund to defray any of Declarant's expenses, reserve
17 contributions, or construction costs or to make up any budget deficits while Declarant is
18 in control of the Association.

19 (c) Commencement of regular operating expense assessments. Regular
20 monthly assessments for common operating expenses for units in each stage of the
21 condominium shall commence upon closing of the first sale of a unit in such stage of the
22 condominium.

23 (d) Commencement of assessment for replacement reserves. Regular
24 monthly assessments for replacement reserves as described in Section 5.5 for units in each
25 stage of the condominium shall commence upon the closing of the sale of the first unit in
26 such stage of the condominium, except that Declarant may elect to defer payment of such
27 assessments to the Association for each unit owned by Declarant until the closing of the
28 sale of such unit, not to exceed three (3) years from the date the Declaration was recorded.
The books and records of the Association shall reflect the amount owing from Declarant
for all reserve assessments.

(e) Annexation of additional stages. If additional units are annexed to the
condominium, the board of directors shall promptly prepare a new budget reflecting the
addition to the condominium and shall recompute any previous assessment covering any
period after the closing of the sale of the first unit in the new stage.

5.4 Special or Extraordinary Assessments.

(a) Special Assessments for Capital Improvements. In the case of any duly
authorized capital improvement to the common elements, the board of directors may by
resolution establish separate assessments for the same, which may be treated as capital

1
2 contributions by the unit owners, and the proceeds of which shall be used only for the
3 specific capital improvements described in the resolution. The Association shall not assess
4 units owned by the Declarant for additional capital improvements to the condominium
5 without the written consent of Declarant as long as Declarant owns more than five percent
6 (5%) of the units then submitted to the condominium or the time specified in the
7 Declaration for annexing additional stages has not expired.

8 (b) Other Special or Extraordinary Assessments. In the event the board of
9 directors determines that the assessments established upon adoption of the budget as
10 provided in Section 5.1 above will be insufficient to pay the common expenses, or the
11 board of directors determines that additional funds will be needed to meet unexpected or
12 unbudgeted common expenses, the board may levy an additional special or extraordinary
13 assessment. Such assessment shall be allocated to each unit in the same proportion set
14 forth in the Declaration, and may be payable in installments over a specified period, in a
15 lump sum, or in a lump sum with option to pay in installments with interest, as determined
16 by the board of directors.

17 5.5 Replacement Reserves.

18 (a) Establishment of Account. The Declarant shall establish a reserve account
19 for replacement of those common elements all or a part of which will normally require
20 replacement in more than three (3) and less than thirty (30) years, and for exterior painting
21 if the common elements include exterior painted surfaces. The reserve account need not
22 include those items that could reasonably be funded from operating assessments.

23 (b) Funding of Account. The reserve account shall be funded by assessments
24 against the individual unit assessed for maintenance of the items for which the reserve
25 account is being established, which sums shall be included in the regular monthly
26 assessment for the unit, except as otherwise provided in Section 5.3(b). The amount
27 assessed shall take into account the estimated remaining life of the items for which the
28 reserve is created and the current replacement cost of such items. The reserve account
shall be established in the name of the Association.

(c) Reserve Studies. The amount of the reserve payments shall be adjusted at
least annually to recognize changes in current replacement costs over time. The board of
directors annually shall conduct a reserve study, or review and update an existing study,
of the common elements to determine the reserve account requirements. A reserve
account shall be established for those items of the common elements all or part of which
will normally require replacement in more than three (3) and less than thirty (30) years,
for exterior painting if the common elements include exterior painted surfaces, and for the
maintenance, repair or replacement of other items the board of directors, in its discretion,
may deem appropriate. The reserve account need not include items that could reasonably
be funded from operating assessments. The reserve study shall include:

- 1
- 2 (i) Identification of all items for which reserves are to be established;
- 3 (ii) The estimated remaining useful life of each item as of the date of the
- 4 reserve study;
- 5 (iii) An estimated cost of maintenance, repair or replacement of each
- 6 item at the end of its useful life; and
- 7 (iv) A thirty (30) year plan with regular and adequate contributions,
- 8 adjusted by estimated inflation and interest earned on reserves, to meet the maintenance,
- 9 repair and replacement schedule.

10 (d) Use of Reserve Funds. The reserve account shall be used only for

11 maintenance, repair and replacement of common elements for which the reserves have

12 been established and shall be kept separate from other funds. After the organizational and

13 turnover meeting described in Section 2.2, however, the board of directors may borrow

14 funds from the reserve account to meet high seasonal demands on the regular operating

15 funds or to meet other temporary expenses which will later be paid from special

16 assessments or maintenance fees. After such meeting the Association may, on an annual

17 basis, elect not to fund the reserve account described in Section 5.5(a) of this section by

18 unanimous vote of the owners.

19 (e) Sale of Units. Nothing in this section shall prohibit prudent investment of

20 the reserve account. Assessments paid into the reserve account are the property of the

21 Association and are not refundable to sellers of units. Sellers of the units, however, may

22 treat their outstanding share of the reserve account as a separate item in any sales

23 agreement.

24 5.6 Default in Payment of Assessments. In the event of default by any unit owner

25 in paying any assessments to the Association, including assessed common expenses and any other

26 charge imposed or levied by the Association pursuant to the provisions of the Declaration, these

27 Bylaws or the Oregon Condominium Act, such unit owner shall be obligated to pay interest at the

28 rate of twelve percent (12%) per annum on such assessment from the due date thereof, or at such

greater rate as may be established by the board of directors from time to time, not to exceed the

maximum lawful rate, if any. In addition, the defaulting unit owner shall pay a late charge for

any assessment not paid within ten (10) days of its due date in the amount of five percent (5%)

of the delinquent payment, or such other reasonable late charge as may be established by the board

of directors from time to time, together with all expenses incurred by the Association in collecting

such unpaid assessments, including attorneys' fees (whether or not suit is instituted, and at trial

or any appeal or petition for review therefrom) and a reasonable administrative fee as established

by the board of directors. If the assessment is not paid within thirty (30) days of its due date, the

board of directors may declare any remaining installments of assessments for the balance of the

fiscal year immediately due and payable. The board of directors shall have the right and duty to

1
2 recover for the Association such assessments, together with such charges, interest and expense
3 of the proceeding, including attorneys' fees, by an action brought against such unit owner or by
4 foreclosure of the lien upon the unit granted by the Oregon Condominium Act. The board of
5 directors shall notify the holder of any first mortgage upon a unit and any eligible mortgage
6 insurer or guarantor thereof of any default not cured within sixty (60) days of the date of default.

7
8 **5.7 Foreclosure of Liens for Unpaid Assessments.** In any suit brought by the
9 Association to foreclose a lien on a unit because of unpaid assessments, the unit owner shall be
10 required to pay a reasonable rental for the use of the unit during the pendency of the suit, and the
11 plaintiff in such foreclosure suit shall be entitled to the appointment of a receiver to collect such
12 rental. The board of directors, acting on behalf of the Association, shall have the power to
13 purchase such unit at the foreclosure sale and to acquire, hold, lease, mortgage, vote the votes
14 appurtenant to, convey, or otherwise deal with the unit. A suit or action to recover a money
15 judgment for unpaid assessments shall be maintainable without foreclosing the liens securing the
16 same.

17
18 **5.8 Statement of Assessments.** The board of directors shall advise each unit owner
19 in writing of the amount of assessments payable by such owner, and furnish copies of each budget
20 on which such assessments are based to all unit owners and, if requested, to their mortgagees.
21 The board of directors shall promptly provide any unit owner who makes a request in writing with
22 a written statement of the owner's unpaid assessments.

23
24 **5.9 Priority of Lien: First Mortgages.** Any lien of the Association against a unit for
25 assessments shall be subordinate to tax and assessment liens and any prior mortgage of record.
26 Where the purchaser or mortgagee of a unit obtains title to the unit as a result of foreclosure of
27 a first mortgage, such purchaser or mortgagee, its successors and assigns, shall not be liable for
28 any of the assessments chargeable to such unit which became due prior to the acquisition of title
to such unit by such purchaser or mortgagee. Such unpaid share of assessments shall be a
common expense and reallocated on a pro rata basis for all units, including the mortgaged unit.
The purchaser or mortgagee shall not be relieved of the obligation to pay further assessments.
A deed in lieu of foreclosure accepted by the holder of a first mortgage shall extinguish a lien filed
by the Association to secure unpaid assessments under the circumstances described in ORS
100.465.

29
30 **5.10 Voluntary Conveyance.** In a voluntary conveyance of a unit, the grantee shall be
31 jointly and severally liable with the grantor for all unpaid assessments against the grantor of the
32 unit up to the time of the grant or conveyance, without prejudice to the grantee's right to recover
33 from the grantor the amounts paid by the grantee therefor. However, upon request of a
34 prospective purchaser the board of directors shall make and deliver a statement of the unpaid
35 assessments against the prospective grantor or the unit, and the grantee in that case shall not be
36 liable for, nor shall the unit when conveyed be subject to, a lien filed thereafter for any unpaid
37 assessments against the grantor in excess of the amount set forth in the statement.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

ARTICLE 6.

RECORDS AND AUDITS

6.1 **General Records.** The board of directors and the managing agent or manager, if any, shall keep detailed records of the actions of the board of directors and the managing agent or manager, minutes of the meetings of the board of directors and minutes of the meetings of the Association. The board of directors shall maintain a Book of Resolutions containing the rules, regulations and policies adopted by the Association, board of directors and the manager. The board of directors shall maintain a list of owners entitled to vote at meetings of the Association and a list of all mortgagees of units.

6.2 **Financial Records and Accounts.** The board of directors or its designee shall keep financial records sufficient for proper accounting purposes. All assessments shall be deposited in a separate bank account in the name of the Association. All expenses of the Association shall be paid from the Association's bank account.

6.3 **Assessment Roll.** The assessment roll shall be maintained in a set of accounting books in which there shall be an account for each unit. Such account shall designate the name and address of the owner or owners, the amount of each assessment against the owners, the dates and amounts in which the assessment comes due, the amounts paid upon the account and the balance due on the assessments.

6.4 **Payment of Vouchers.** The treasurer shall pay all vouchers for all budgeted items and for any nonbudgeted items up to \$1,000 signed by the chairperson, managing agent, manager or other person authorized by the board of directors. Any voucher for nonbudgeted items in excess of \$1,000 shall require the authorization of the chairperson. Any checks written on reserve accounts must be signed by a member of the board of directors.

6.5 **Reports and Audits.** An annual audited financial statement consisting of a balance sheet and income and expense statement for the preceding fiscal year shall be rendered by the board of directors to all unit owners and to all mortgagees of units who have requested the same within 90 days after the end of each fiscal year. From time to time the board of directors, at the expense of the Association, may obtain an audit or review of the books and records pertaining to the Association and furnish copies thereof to the owners and such mortgagees. Upon written request, any holder, insurer or guarantor of a first mortgage shall be entitled to an audited financial statement for the immediately preceding fiscal year at the expense of the Association and shall be made available within 120 days after the end of such fiscal year.

6.6 **Notice of Sale, Mortgage, Rental or Lease.** Immediately upon the sale, mortgage, rental or lease of any unit, the unit owner shall promptly inform the secretary or manager of the name and address of said vendee, mortgagee, lessee, or tenant.

1
2 6.7 Availability of Records. During normal business hours or under other reasonable
3 circumstances, the Association shall make available to unit owners, prospective purchasers and
4 lenders, and to holders, insurers, or guarantors of any first mortgage, current copies of the
5 Declaration, bylaws, other rules concerning the condominium, amendments or supplements to
6 such documents, and the books, records, financial statements and current operating budget of the
7 Association. Upon written request, the Association shall make such documents, information and
8 records available to such persons for duplication during reasonable hours. The Association may
9 charge a reasonable fee for furnishing copies of such documents, information or records. The fee
10 may include reasonable personnel costs incurred to furnish the information.

11 ARTICLE 7.

12 MAINTENANCE AND USE OF CONDOMINIUM PROPERTY

13 7.1 Maintenance and Repair. Except as otherwise provided in Section 7.3 for damage
14 or destruction caused by casualty:

15 (a) Units. All maintenance of and repairs to any unit shall be made by the
16 owner of such unit, who shall keep the same in good order, condition and repair and shall
17 do all redecorating, painting and staining which at any time may be necessary to maintain
18 the good appearance and condition of his unit. In addition, each unit owner shall be
19 responsible for the maintenance, repair, or replacement of windows and doors and any
20 plumbing or heating fixtures, telephones, water heaters, fans, lighting fixtures and lamps,
21 electrical outlets, blinds, garbage disposals, fireplaces, refrigerators, dishwashers, ranges,
22 or other appliances and accessories that may be in or connected with such owner's unit.
23 The Association, however, may repair or replace, at the Association's expense, portions
24 of units to the extent reasonably necessary for the preservation of the common elements
25 in good condition and working order.

26 (b) Common elements. All maintenance, repairs and replacements to the
27 general and limited common elements and to Association property shall be made by the
28 Association and shall be charged to all the unit owners as a common expense. Each unit
owner, however, shall keep the limited common elements which pertain to such owner's
unit in a safe, neat, clean and sanitary condition.

29 7.2 Additions, Alterations or Improvements.

30 (a) A unit owner may not make any improvements or alterations to such
31 owner's unit without first notifying the Association and obtaining approval by the board
32 of directors of the proposed alteration. The owner shall have the burden of establishing,
33 to the reasonable satisfaction of the board of directors, that the proposed improvements or
34 alterations will not impair the structural integrity or mechanical systems of the
35 condominium, lessen the support of any portion of the condominium, jeopardize the

1
2 soundness or safety of the condominium, reduce its value, impair any easement or
3 hereditament, increase the common expenses or increase sound transmissions to other
4 units. The board of directors may elect to require contractors to coordinate their access
5 and working hours so as to minimize disruption to the condominium. A unit owner shall
6 reimburse the Association for any actual costs incurred by the Association in reviewing
7 and monitoring such alterations.

8 (b) After acquiring an adjoining unit or an adjoining part of an adjoining unit,
9 a unit owner may submit a written request to the board of directors for permission to
10 remove or alter any intervening partition or to create apertures therein, even if the
11 partition in whole or in part is a common element. The board of directors shall approve
12 the change unless it determines within forty-five (45) days that the proposed change will
13 impair the structural integrity or mechanical systems of the condominium or lessen the
14 support of any portion of the condominium. The board of directors may require the unit
15 owner, at such owner's own expense, to submit an opinion of a registered architect or
16 registered professional engineer that the proposed change will not impair the structural
17 integrity or mechanical systems of the condominium or lessen the support of any portion
18 of the condominium. Removal of partitions or creation of apertures under this paragraph
19 is not an alteration of boundaries.

20 (c) A unit owner may not change the appearance of the common elements or
21 the exterior appearance of a unit without permission of the board of directors.

22 **7.3 Damage or Destruction by Casualty of Condominium Property.** In the case of
23 damage or destruction which affects a material portion of the project, timely written notice shall
24 be given to the unit owners and their mortgagees and any eligible mortgage insurer or guarantor
25 and the following provisions shall apply:

26 (a) In the event of damage or destruction by casualty of condominium property,
27 the damage or destruction shall be repaired, reconstructed or rebuilt unless, within
28 fourteen (14) days of such damage or destruction, the board of directors or more than ten
percent (10%) of the unit owners shall have requested a special meeting of the Association.
Such special meeting must be held within sixty (60) days of the date of damage or
destruction. At the time of such meeting, unless unit owners holding ninety percent (90%)
of the voting power, whether in person, by writing or by proxy, with the approval of
mortgagees as required by the Declaration, vote not to repair, reconstruct or rebuild the
damaged property, the damage or destruction shall be repaired, reconstructed or rebuilt.
If the damage or destruction is not repaired, reconstructed or rebuilt, then the property
shall be removed from condominium ownership in the manner provided in the Oregon
Condominium Act.

(b) The Association shall be responsible for repairing, reconstructing or
rebuilding all such damage or destruction to the common elements and, to the extent of the

1 Association's insurance coverage, all such damage or destruction to the units. Each unit
2 owner shall be responsible for such repairing, reconstructing or rebuilding of his unit as
3 is not so covered by the Association's insurance and to the extent of any deductible under
4 the Association's insurance.

5 (c) If, due to the act or neglect of a unit owner, or of a member of such
6 owner's family or household pet or of a guest or other authorized occupant or visitor of
7 such unit owner, damage shall be caused to the common elements or to a unit owned by
8 others, or maintenance, repairs or replacements shall be required which would otherwise
9 be a common expense, then such unit owner shall pay for such damage and such
10 maintenance, repairs and replacements as may be determined by the Association, to the
11 extent not fully covered by the Association's insurance.

12 (d) In the event any portion of the insurance proceeds paid to the Association
13 is not used to repair, reconstruct or rebuild the damaged or destroyed property, the
14 Association shall distribute the proceeds among the unit owners and their mortgagees (as
15 their interests may appear) in the same proportion as common expenses are shared, unless
16 the property is removed from unit ownership. If the property is removed from unit
17 ownership, the insurance proceeds, together with the proceeds from the sale of the
18 property, shall be distributed to the unit owners and their mortgagees (as their interests
19 may appear) in the manner described in the Oregon Condominium Act.

20 7.4 Condemnation. If any portion of the condominium is made the subject matter of
21 any condemnation or eminent domain proceeding or is otherwise sought to be acquired by a
22 condemning authority, notice of the proceeding or proposed acquisition shall promptly be given
23 to each unit owner and to each mortgagee and any eligible mortgage insurer or guarantor. The
24 Association shall represent the unit owners in any condemnation proceedings or in negotiations,
25 settlements and agreements with the condemning authority for acquisition of any portion of the
26 common elements, and each unit owner appoints the Association to act as his attorney-in-fact for
27 such purposes. All compensation, damages or other proceeds of the taking, other than any award
28 for moving expenses of specific unit owners, shall be payable to the Association and allocated and
distributed as provided in this Section 7.4.

21 (a) Complete Taking. If the entire condominium property is taken, or if unit
22 owners holding ninety percent (90%) of the voting power agree that such substantial
23 portion of the condominium has been taken as to make the project obsolete, then the
24 property shall be deemed removed from unit ownership. In such event, any proceeds of
25 the condemnation paid to the Association, together with any other proceeds upon sale of
26 the remaining condominium property, shall be distributed among the unit owners and their
27 mortgagees, as their interests may appear, in accordance with the provisions of the Oregon
28 Condominium Act.

1
2 (b) **Partial Taking.** If less than the entire condominium property is taken and
3 the property is not determined to be obsolete as provided in paragraph (a) above, then as
4 soon as practicable the board of directors shall, reasonably and in good faith, allocate the
5 award among the units in accordance with the reduction in the value of each unit and its
6 interest in the common elements, compared to the total reduction in value of all units and
7 their interest in the common elements. In the event any unit owner or mortgagee objects
8 to the allocation determined by the board of directors, the matter shall be submitted to
9 arbitration in accordance with the rules of the American Arbitration Association. The cost
10 of such determination shall be paid out of the proceeds of the condemnation. Any portion
11 of the award allocated to a unit owner under this paragraph shall be paid first to all
12 mortgagees and holders of liens on the unit owner's interest in accordance with the
13 existing priorities, and the balance to the unit owner. If any reconstruction or repair is
14 undertaken as a result of the condemnation, the board of directors may retain and apply
15 such portion of each unit owner's share of the award as is necessary to discharge the
16 owner's liability for any special assessment arising from such reconstruction or repair.

17
18 7.5 **Restrictions and Requirements Respecting Use of Condominium Property.** The
19 following restrictions and requirements are in addition to all other restrictions and requirements
20 contained in the Declaration and these Bylaws:
21

22 (a) **Residential use.** No commercial activities of any kind shall be carried on
23 in any unit or in any other portion of the condominium without the consent of the board
24 of directors of the Association, except activities relating to the rental or sale of units. This
25 provision, however, shall not be construed so as to prevent or prohibit a unit owner from
26 maintaining his or her professional personal library, keeping his or her personal business
27 or professional records or accounts, handling his or her personal business or professional
28 telephone calls, or conferring with business or professional associates, clients or
customers, in such owner's unit.

(b) **Use of common elements.** The common elements shall be used for the
furnishing of services and facilities for which the same are reasonably intended, for the
enjoyment of the units. The use, operation and maintenance of the common elements shall
not be obstructed, damaged or unreasonably interfered with by any unit owner.

(c) **Offensive or unlawful activities.** No noxious or offensive activities shall
be carried on in any unit nor shall anything be done in or placed upon any unit or common
element which interferes with or jeopardizes the enjoyment of other units or the common
elements or which is a source of annoyance to residents. Unit occupants shall exercise
extreme care not to make noises which may disturb other unit occupants, including the use
of musical instruments, radios, televisions and amplifiers. No unlawful use shall be made
of the condominium nor any part thereof, and all valid laws, zoning ordinances, and
regulations of all governmental bodies having jurisdiction thereof shall be observed.

1
2 (d) Animals. No animals or fowls shall be raised, kept or permitted within the
3 condominium or any part thereof, except domestic dogs, cats, or other household pets kept
4 within a unit. No such dogs, cats or pets shall be permitted to run at large nor shall be
5 kept, bred or raised for commercial purposes or in unreasonable numbers. Any
6 inconvenience, damage or unpleasantness caused by such pets shall be the responsibility
7 of the respective owners thereof, and owners shall be responsible for removal of wastes
8 of their animals. All dogs shall be carried or kept on a leash while outside a unit. No pet
shall be permitted to cause or create a nuisance or unreasonable disturbance or noise. A
unit owner may be required to remove a pet upon receipt of the third notice in writing from
the board of directors of violations of any rule, regulation or restriction governing pets
within the condominium.

9 (e) Exterior lighting or noisemaking devices and antennas. Except with the
10 consent of the board of directors of the Association, no exterior lighting or noisemaking
11 devices shall be installed or maintained on any unit and no antennas, satellite dishes or
transmitting towers shall be affixed to the general or limited common elements.

12 (f) Windows, balconies, patios and outside walls. In order to preserve the
13 attractive appearance of the condominium the board of directors of the Association may
14 regulate the nature of items which may be placed in or on windows, balconies, patios, and
15 the outside walls so as to be visible from other units, the common elements, or outside the
condominium. Garments, rugs, laundry, sheets, reflective surfaces and other similar items
may not be hung from windows, facades, patios or balconies.

16 (g) Parking of Vehicles. Except with the consent of the board of directors of
17 the Association, no vehicle in an extreme state of disrepair, trailer, truck camper,
18 motorcycle, boat or boat trailer, or other recreational vehicle or truck rated as one ton or
19 more shall be parked on any portion of the condominium. A vehicle shall be deemed in
an "extreme state of disrepair" when the board of directors reasonably determines that its
presence offends the occupants of the condominium due to its appearance or continued
inoperability.

20 (h) Leasing and rental of units. No unit owner may lease or rent less than his
21 or her entire unit and no unit owner may rent such owner's unit for transient or hotel
22 purposes, or for a period of less than seven days. All leases or rentals shall be by written
23 lease agreement, which shall provide that the terms of the lease shall be subject in all
24 respects to the provisions of the Declaration and these Bylaws, and that any failure by the
lessee or tenant to comply with the terms of such documents shall be a default under the
lease. If the board of directors finds that a lessee or tenant has violated any provision of
25 the Declaration, these Bylaws or the rules and regulations, the board may require the unit
owner to terminate such lease or rental agreement. Other than the foregoing, there is no
26 restriction on the right of any unit owner to lease or rent such owner's unit.

1
2 (i) Signs. Unless written approval is first obtained from the board of directors,
3 no sign of any kind shall be displayed to the public view on or from any unit or the
4 common elements except signs used by the Declarant to advertise units for sale or lease.

5 (j) Trash. No part of any unit or any part of the common elements shall be
6 used or maintained as a dumping ground for rubbish, trash, garbage, recycling materials
7 or other waste. No garbage, trash, recycling materials or other waste shall be kept or
8 maintained on any part of the property, except in sanitary containers in the designated
9 areas.

10 (k) Insurance. Nothing shall be done or kept in any unit or in the common
11 elements which will increase the cost of insurance on the common elements. No owner
12 shall permit anything to be done or kept in his or her unit or in the common elements
13 which will result in cancellation of insurance on any unit or any part of the common
14 elements.

15 (l) Garages. All garage doors shall remain closed except to permit the
16 entrance and exit of vehicles or access to any garage storage area. Garages may only be
17 used for parking of vehicles and may not be used as living area, or for storage purposes
18 such as would prevent parking of a vehicle.

19 (m) Water beds. Water beds may not be placed in any unit, except with the
20 prior consent of the board of directors. If such consent is given, the unit owner shall carry
21 insurance covering damage caused by the water bed and shall be responsible for all
22 damages to any unit or the common elements which might be caused by the water bed.

23 (n) Washing Machines. Each unit contains a washing machine hookup. The
24 unit owner shall be responsible for all damages to any unit or the common elements that
25 might be caused by the washing machine or leakage from the washing machine.

26 (o) Association rules and regulations. In addition, the board of directors from
27 time to time may adopt, modify, or revoke such rules and regulations governing the
28 conduct of persons and the operation and use of the units and common elements as it may
deem necessary or appropriate in order to assure the peaceful and orderly use and
enjoyment of the condominium property. Such action may be modified by vote of not less
than seventy-five percent (75%) of the voting rights present, in person or by proxy, at any
meeting, the notice of which shall have stated that such modification or revocation of rules
and regulations will be under consideration. A copy of the rules and regulations, upon
adoption, and a copy of each amendment, modification or revocation thereof, shall be
delivered by the secretary promptly to each unit owner and shall be binding upon all unit
owners and occupants of all units from the date of delivery.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

7.6 Abatement and Enjoining of Violations. The violation of any provision of the Declaration or these Bylaws, of any rule or regulation adopted pursuant to these Bylaws, or of any decision of the Association made pursuant to such documents, shall give the board of directors, acting on behalf of the Association, the right, in addition to any other rights set forth in these Bylaws, to do any or all of the following after giving notice and an opportunity to be heard:

(a) to enter the unit in which or as to which such violation exists and to summarily abate and remove, at the expense of the defaulting unit owner, any structure, thing, or condition that may exist contrary to the intent and meaning of such provisions, and the board of directors shall not thereby be deemed guilty of any manner of trespass, provided, however, that judicial proceedings shall be instituted before any items of construction may be altered or demolished; or

(b) to enjoin, abate, or remedy such thing or condition by appropriate legal proceedings;

(c) to levy reasonable fines; or

(d) to terminate the right to receive utility services paid for out of assessments or the right of access to and use of recreational and service facilities of the Condominium until the correction of the violation has occurred.

The offending unit owner shall be liable to the Association for a reasonable administrative fee as established by the board of directors and all costs and attorneys' fees incurred by the Association, whether or not legal proceedings are instituted and including attorneys' fees at trial, in arbitration or on appeal or petition for review, together with any expense incurred by the Association in remedying the default, damage incurred by the Association or unit owners, or fines so levied. Such sums shall be assessed against the offending unit as an assessment and enforced as provided in Article 5. In addition, any aggrieved unit owner may bring an action against such other unit owner or the Association to recover damages or to enjoin, abate, or remedy such thing or condition by appropriate legal proceedings.

ARTICLE 8.

INSURANCE

8.1 Types of Insurance. For the benefit of the Association and the unit owners, the board of directors shall obtain and maintain at all times, and shall pay for out of the common expense funds, the following insurance:

1
2 **(a) Property Damage Insurance.**

3 (i) The Association shall maintain a policy or policies of insurance
4 covering loss or damage from fire, with standard extended coverage and "all risk"
5 endorsements, and such other coverages as the Association may deem desirable.

6 (ii) The amount of the coverage shall be for not less than one hundred
7 percent (100%) of the current replacement cost of the units and common elements
8 (exclusive of land, foundation, excavation and other items normally excluded from
9 coverage), subject to a maximum deductible of the lesser of \$10,000 or one percent (1%)
10 of the policy amount.

11 (iii) The policy or policies shall include all fixtures and building service
12 equipment to the extent that they are part of the common elements and all personal
13 property and supplies belonging to the Association, together with all fixtures,
14 improvements and alterations comprising a part of each unit.

15 (iv) Such policy or policies shall name the Association as insured, and
16 shall provide for loss payable in favor of the Association, as a trustee for each unit owner
17 and each such unit owner's mortgagee, as their interests may appear. The policies shall
18 contain the standard mortgage clause, or equivalent endorsement (without contribution)
19 which is commonly accepted by institutional mortgage investors in Oregon.

20 **(b) Liability Insurance.**

21 (i) The Association shall maintain comprehensive general liability
22 insurance coverage insuring the Declarant, the Association, the board of directors, the unit
23 owners and the managing agent, against liability to the public or to the owners of units and
24 of common elements, and their invitees or tenants, incident to the operation, maintenance,
25 ownership or use of the property, including legal liability arising out of lawsuits related
26 to employment contracts of the Association. There may be excluded from such policy or
27 policies coverage of a unit owner (other than as a member of the Association or board of
28 directors) for liability arising out of acts or omission of such unit owner and liability
incident to the ownership and/or use of the part of the property as to which such unit
owner has the exclusive use or occupancy.

 (ii) Limits of liability under such insurance shall not be less than One
Million Dollars (\$1,000,000) on a combined single limit basis.

 (iii) Such policy or policies shall be issued on a comprehensive liability
basis and shall provide a cross liability endorsement wherein the rights of named insured
under the policy or policies shall not be prejudiced as respects his, her or their action
against another named insured.

1
2 least thirty (30) days' notice to the owners of any increase in the deductible proposed in
3 renewal or replacement insurance policies. Owners and tenants of all units must procure
4 and maintain comprehensive liability policies having combined limits in amounts
5 reasonably set by the Board of Directors no more often than every three years. Such
6 insurance must provide coverage for, without limitation, the negligent acts of the owner
7 and tenant and their guests or other occupants of the unit for damage to the general and
8 limited common elements and other units and the personal property of others located
9 therein.

10
11 **8.2 Other Insurance Requirements.** Insurance obtained by the Association shall be
12 governed by the following requirements:

13 (a) All policies shall be written with the State of Oregon or a company licensed
14 to do business in the State of Oregon acceptable to Fannie Mae which falls into an A-
15 general policyholder's rating or a financial performance index of 6 or better, as designated
16 in Best's Key Rating Guide, or an A or better rating from Demotech, Inc.

17 (b) Notwithstanding the provisions of Section 8.1 above, there may be named
18 as an insured, on behalf of the Association, the Association's authorized representative,
19 including any trustee with whom the Association may enter into any Insurance Trust
20 Agreement, or any successor to such trustee. Such insurance trustee shall have exclusive
21 authority to negotiate losses under any property or liability insurance policy. Each unit
22 owner appoints the Association, or any insurance trustee or substitute trustee designated
23 by the Association, as attorney-in-fact for the purpose of purchasing and maintaining such
24 insurance including: the collection and appropriate disposition of the proceeds thereof,
25 the negotiation of losses and execution of releases of liability, the execution of all
26 documents, and the performance of all other acts necessary to accomplish such purchase.
27 The Association or insurance trustee shall receive, hold or otherwise properly dispose of
28 any proceeds of insurance in trust for unit owners and their first mortgage holders, as their
interests may appear.

(c) All property insurance policies shall contain a "Special Condominium
Endorsement" or its equivalent providing for the following: recognition of any Insurance
Trust Agreement, a waiver of the right of subrogation against unit owners individually,
that the insurance is not prejudiced by any act or neglect of individual unit owners which
is not in the control of such owners collectively, and that the policy is primary in the event
the unit owner has other insurance covering the same loss.

(d) For purposes of this article, insurance policies are unacceptable where (i)
under the terms of the insurance carrier's charter, bylaws or policy, contributions or
assessments may be made against Fannie Mae, the designee of Fannie Mae, or the
Association or unit owners, or (ii) by the terms of the carrier's charter, bylaws or policy,
loss payments are contingent upon action by the carrier's board of directors, policy holders

1
2 (c) Workers' Compensation Insurance. The Association shall maintain
3 workers' compensation insurance to the extent necessary to comply with any applicable
4 laws.

5 (d) Fidelity Insurance.

6 (i) The Association shall maintain fidelity insurance for all officers,
7 directors, trustees and employees of the Association and all other persons handling or
8 responsible for funds of or administered by the Association. In the event the Association
9 has retained a management agent, such agent shall maintain fidelity insurance for its
10 officers, employees and agents handling or responsible for funds of, or administered on
11 behalf of, the Association.

12 (ii) The total amount of fidelity insurance coverage required shall be
13 based upon the best business judgment of the board of directors. In no event, however,
14 may the aggregate amount of such insurance be less than the sum equal to three months'
15 aggregate assessments on all units plus reserve funds.

16 (iii) Such fidelity insurance shall name the Association as obligee and
17 shall contain waivers by the issuers of the insurance of all defenses based upon the
18 exclusion of persons serving without compensation from the definition of "employees" or
19 similar terms or expressions. The insurance shall provide that it may not be canceled or
20 substantially modified (including cancellation for nonpayment of premium) without at least
21 10 days' prior written notice to the Association and each servicer on behalf of the Federal
22 National Mortgage Association ("Fannie Mae").

23 (e) Directors' and Officers' Liability Insurance. The Association shall
24 maintain a policy of directors' and officers' liability insurance with coverage in the amount
25 of not less than One Million Dollars (\$1,000,000), subject to a reasonable deductible.

26 (f) Insurance by Unit Owners. The Association has no responsibility to
27 procure or assist in procuring property loss insurance for any owner or tenant for (i)
28 damage to a unit or limited common elements not covered by the Association's policy
(because of the deductible amount or because the claim for loss or damage is one not
covered by fire and property loss insurance policies required by these Bylaws or held by
the Association); or (ii) for any damage or loss to the owner's or tenant's personal
property. Owners must be responsible for purchasing insurance policies insuring their
units and appurtenant limited common elements for the deductible amount under the
Association's policies and for insuring their own personal property for any loss or damage.
Proof of such insurance coverage must be provided to the Association by the unit owner.
Tenants must be responsible for insuring their own personal property for any loss or
damage. The Association shall notify all owners of the amount of the deductible under the
Association policies. To the extent reasonably practicable, the Association shall give at

1
2 or members, or (iii) policy includes any limiting clauses (other than insurance conditions)
3 which could prevent Fannie Mae or the owners from collecting insurance proceeds.

4 (e) All policies required by this article shall provide that they may not be
5 canceled or substantially modified without at least 10 days' prior written notice to the
6 Association and to each holder of a first mortgage which is listed as a scheduled holder of
7 a first mortgage in the insurance policy. Evidence of insurance shall be issued to each unit
8 owner and mortgagee upon request.

9 (f) Each unit owner shall be required to notify the board of directors of all
10 improvements made by the owner to his or her unit, the value of which is in excess of Five
11 Hundred Dollars (\$500). Nothing in this paragraph shall permit an owner to make
12 improvements without first obtaining the approval of the board of directors pursuant to
13 Section 7.2.

14 (g) Any unit owner who obtains individual insurance policies covering any
15 portion of the property other than such owner's personal property and fixtures shall file
16 a copy of such individual policy or policies with the Association within thirty (30) days
17 after the purchase of such insurance.

18 8.3 Optional Provisions. The board of directors shall make every effort to secure
19 insurance policies that will provide for the following:

20 (a) To the extent appropriate and available at reasonable cost, the Association
21 shall maintain additional coverages against such other risks as are customarily covered
22 with respect to projects similar in construction, location and use, including but not limited
23 to, host liquor liability, contractual and all-written contract insurance, employer's liability
24 insurance, comprehensive automobile liability insurance, and an endorsement patterned
25 after "use and occupancy" insurance providing relief from monthly assessments while a
26 unit is uninhabitable due to a covered loss.

27 (b) If reasonably available, the insurance policies shall include Inflation Guard
28 Endorsement, and Construction Code Endorsements (such as a Demolition Cost
Endorsement, a Contingent Liability from Operation of Building Laws Endorsement, and
an Increased Cost of Construction Endorsement).

(c) A Steam Boiler and Machinery Coverage Endorsement if the condominium
has central heating or cooling, which coverage per accident shall at least equal the lesser
of Two Million Dollars (\$2,000,000) or the insurable value of the building housing the
boiler or machinery.

(d) Flood Insurance, if the condominium is in a Special Flood Hazard Area.

1
2 (e) If reasonably available, waiver of subrogation by the insurer as to any
3 claims against the board of directors, any unit owner or any guest of a unit owner.

4 8.4 Fannie Mae and GNMA Requirements. Notwithstanding any other provisions
5 of this article, the Association shall continuously maintain in effect such casualty, flood and
6 liability insurance and a fidelity bond meeting the insurance and fidelity requirements for
7 condominium projects established by Fannie Mae and Government National Mortgage
8 Association, so long as either is a mortgagee or owner of a unit within the condominium, except
9 to the extent such coverage is not available or has been waived in writing by Fannie Mae or
10 Government National Mortgage Association. Fannie Mae or Fannie Mae's servicer, its successors
11 and assigns, shall be named as a mortgagee in the Association's policies.

12 ARTICLE 9.

13 AMENDMENTS TO BYLAWS

14 9.1 How Proposed. Amendments to the bylaws shall be proposed by either a majority
15 of the board of directors or by unit owners holding thirty percent (30%) of the voting rights. The
16 proposed amendment must be reduced to writing and shall be included in the notice of any
17 meeting at which action is to be taken thereon or attached to any request for consent to the
18 amendment.

19 9.2 Adoption. A resolution adopting a proposed amendment may be proposed by
20 either the board of directors or by the unit owners and may be approved by the unit owners at a
21 meeting called for this purpose or by ballot vote. Unit owners not present at the meeting
22 considering such amendment may express their approval in writing or by proxy. Any resolution
23 must be approved by unit owners holding a majority of the voting rights and by mortgagees to the
24 extent required by the Declaration, except that any amendment relating to age restrictions, pet
25 restrictions, limitations on the number of persons who may occupy units, or limitations on the
26 rental or leasing of units must be approved by unit owners holding seventy-five percent (75%) of
27 the voting rights. Declarant's consent shall also be required until the last stage is annexed and so
28 long as Declarant owns twenty-five percent (25%) or more of the total number of units which
Declarant may submit to the condominium. Such consent shall not be required after five years
from the date of conveyance of the first unit to a person other than Declarant. Any amendment
which would limit or diminish any special Declarant rights established in these Bylaws shall
require the written consent of Declarant.

29 9.3 Execution and Recording. An amendment shall not be effective until certified by
the chairperson and secretary of the Association as being adopted in accordance with these Bylaws
and the provisions of the Oregon Condominium Act and recorded as required by law. Any
amendment adopted within five (5) years after the recording of the initial bylaws shall be approved
by the Oregon Real Estate Commissioner to the extent required by the Oregon Condominium Act.

ARTICLE 10.

DISPUTE RESOLUTION

10.1 **Mediation/Arbitration.** Any claim, controversy or dispute by or among Declarant, Association, the manager or managing agent, or one or more unit owners, or any of them, arising out of or related to the Declaration, these Bylaws or the Condominium shall be first subject to mediation and, if not timely settled by mediation, resolved by arbitration in accordance with this Article 10. Any party may at any time opt to forego mediation and submit the matter directly to arbitration as provided herein. The decisions and award of the arbitrator shall be final, binding and nonappealable. The arbitration shall be conducted in Portland, Oregon pursuant to the arbitration statutes of the State of Oregon and any arbitration award may be enforced by any court with jurisdiction. Filing for arbitration shall be treated the same as filing in court for purposes of meeting any applicable statute of limitations or for purposes of filing a notice of pending action ("lis pendens").

10.2 **Selection of Arbitrator.** The arbitration shall be conducted by a single arbitrator selected by mutual agreement of the parties. The arbitrator selected shall be neutral and unbiased, except to the extent the arbitrator's prior relationship with any party is fully disclosed and consented to by the other party or parties. If the parties are unable to agree upon the arbitrator within ten (10) days after a party's demand for arbitration, upon application of any party, the Presiding Judge of the Circuit Court of Washington County, Oregon shall designate the arbitrator.

10.3 **Consolidated Arbitration.** Upon demand by any party, claims between or among the parties and third parties shall be submitted in a single, consolidated arbitration.

10.4 **Discovery.** The parties to the arbitration shall be entitled to such discovery as would be available to them in an action in Washington County Circuit Court. The arbitrator shall have all of the authority of the Court incidental to such discovery, including without limitation authority to issue orders to produce documents or other materials, to issue orders to appear and submit to deposition, and to impose appropriate sanctions including without limitation award against a party for failure to comply with any order.

10.5 **Evidence.** The parties to the arbitration may offer such evidence as they desire and shall produce such additional evidence as the arbitrator may deem necessary for an understanding and determination of the dispute. The arbitrator shall determine the admissibility of the evidence offered. All evidence shall be taken in the presence of the arbitrator and all of the parties, except where any of the parties is absent in default or has waived its right to be present.

10.6 **Excluded Matters.** Notwithstanding the foregoing, the following matters shall not be subject to mediation or arbitration under this Article 10 (but shall be subject to the applicable provisions of Section 10.7 below): (a) actions relating to the collection of fees, assessments, fines and other charges imposed or levied by the Association (other than disputes as to the validity or

1
2 amount of such fees, assessments, fines or charges, which disputes shall be subject to
3 mediation/arbitration as provided above), and (b) actions to enforce any order, decision or award
4 rendered by arbitration pursuant to this Article 10. The filing of a lis pendens or the application
5 to any court for the issuance of any provisional process or similar remedy described in the Oregon
6 or Federal Rules of Civil Procedure shall not constitute a waiver of the right or duty to utilize the
7 procedures specified in this Article.

8
9 **10.7 Costs and Attorneys' Fees.** The fees of any mediator and the costs of mediation
10 shall be divided and paid equally by the parties. Each party shall pay its own attorneys' fees and
11 costs in connection with any mediation. The fees of any arbitrator and the costs of arbitration
12 shall be paid by the nonprevailing party or parties; if none, such fees and costs shall be divided
13 and paid equally by the parties. Should any suit, action or arbitration be commenced in
14 connection with any dispute related to or arising out of the Declaration or these Bylaws, to obtain
15 a judicial construction of any provision of the Declaration or these Bylaws, to rescind the
16 Declaration or these Bylaws or to enforce or collect any judgment or decree of any court or any
17 award obtained during arbitration, the prevailing party shall be entitled to recover its costs and
18 disbursements, together with such investigation, expert witness and attorneys' fees incurred in
19 connection with such dispute, as the court or arbitrator may adjudge reasonable, at trial, in the
20 arbitration, upon any motion for reconsideration, upon petition for review, and on any appeal of
21 such suit, action or arbitration proceeding. The determination of who is the prevailing party and
22 the amount of reasonable attorneys' fees to be paid to the prevailing party shall be decided by the
23 arbitrator (with respect to attorneys' fees incurred prior to and during the arbitration proceeding)
24 and by the court or courts, including any appellate or review court, in which such matter is tried,
25 heard or decided, including a court that hears a request to compel or enjoin arbitration or that
26 hears exceptions made to an arbitration award submitted to it for confirmation as a judgment (with
27 respect to attorneys' fees incurred in such proceedings).

28 **10.8 Survival.** The mediation and arbitration agreement set forth in this Article 10 shall
survive the transfer by any party of its interest or involvement in the Condominium and any unit
therein and the termination of the Declaration or these Bylaws.

ARTICLE 11.

MISCELLANEOUS

11.1 Notices. All notices to the Association or to the board of directors shall be sent
care of the managing agent, or if there is no managing agent, to the principal office of the
Association or to such other address as the board of directors may designate from time to time.
All notices to any unit owner shall be sent to such address as may have been designated by such
owner from time to time, in writing, to the board of directors, or, if no address has been
designated, then to the owner's unit.

1
2 11.2 Waiver. No restriction, condition, obligation, or provision contained in these
3 Bylaws shall be deemed to have been abrogated or waived by reason of any failure to enforce the
4 same, irrespective of the number of violations or breaches thereof which may occur.

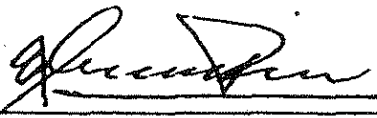
5 11.3 Action Without a Meeting. Any action which the Oregon Condominium Act, the
6 Declaration or the bylaws require or permit the owners or directors to take at a meeting or ballot
7 may be taken without a meeting or ballot meeting if a consent in writing setting forth the action
8 so taken is signed by all of the owners or directors entitled to vote on the matter. The consent,
9 which shall have the same effect as a unanimous vote of the owners or directors, shall be filed in
10 the records of minutes of the Association.

11 11.4 Invalidity; Number; Captions. The invalidity of any part of these Bylaws shall
12 not impair or affect in any manner the validity, enforceability or effect of the balance of these
13 Bylaws. As used in these Bylaws, the singular shall include the plural, and the plural the singular.
14 The masculine and neuter shall each include the masculine, feminine and neuter, as the context
15 requires. All captions are intended solely for convenience of reference and shall in no way limit
16 any of the provisions of these Bylaws.

17 11.5 Conflicts. these Bylaws are intended to comply with the Oregon Condominium
18 Act and the Declaration. In case of any irreconcilable conflict, such statute and document shall
19 control over these Bylaws or any rules and regulations adopted hereunder.

20 DATED this 4th day of April, 2001.

21 SPRINGVILLE CORPORATION, an Oregon
22 corporation

23 By 
24 Michael Chiu, President

1 Defendant's Exhibit G

2 WCHA HAP PAYMENT HISTORY

3 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

Payee	Payment Month	EFT/ Check# /	Amount	Unpaid	Notes
Name	(MM/YYYY)	Adj#		Amount	
JWP WONG REAL ESTATE	03/2026	386728	\$2,529.00	\$0.00	:HAP 03/26 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	02/2026	384874	\$2,529.00	\$0.00	:HAP 02/26 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	01/2026	383051	\$1,881.00	\$0.00	:HAP 01/26 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	12/2025	381182	\$1,881.00	\$0.00	:HAP 12/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	11/2025	379313	\$1,881.00	\$0.00	:HAP 11/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	10/2025	377310	\$1,881.00	\$0.00	:HAP 10/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	09/2025	375419	\$1,881.00	\$0.00	:HAP 09/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	08/2025	373526	\$1,881.00	\$0.00	:HAP 08/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	07/2025	371642	\$1,881.00	\$0.00	:HAP 07/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	06/2025	369774	\$1,881.00	\$0.00	:HAP 06/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	05/2025	367906	\$1,881.00	\$0.00	:HAP 05/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	04/2025	366078	\$1,881.00	\$0.00	:HAP 04/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	03/2025	364238	\$1,881.00	\$0.00	:HAP 03/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229
JWP WONG REAL ESTATE	02/2025	364238	\$1,747.00	\$0.00	:HAP 02/25 PENN, ASHLE' 17548 NW SPRINGVILLE RD #9, , PORTLAND OR 97229

1 **Defendant's Exhibit H**

2 **INCOME RECERTIFICATION SIGNATURE DOCUMENT**

3 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

CITIZENSHIP DECLARATION

INSTRUCTIONS: Complete this form for each member of the household listed on the Family Summary Sheet.

LAST NAME: _____

FIRST NAME: _____ MIDDLE NAME: _____

RELATIONSHIP TO HEAD OF HOUSEHOLD: _____ SEX: _____ DATE OF BIRTH: _____

SOCIAL SECURITY NO.: _____ ALIEN REGISTRATION NO.: _____

ADMISSION NUMBER: _____ if applicable, (this is an 11 digit number found on INS Form I-94, Departure Record).

NATIONALITY: _____ (Enter the foreign nation or country to which you owe legal allegiance. This is normally, but not always, the country of birth.)

SAVE VERIFICATION NO. _____
(To be entered by PHA.)

INSTRUCTIONS: Complete the Declaration below by printing or typing the person's first name, middle initial, and last name in the space provided. Then review the blocks designated below and complete either block number 1, 2, or 3:

DECLARATION

I, _____ hereby declare, under penalty of perjury,
that I am: _____

(print or type first name, middle initial, last name)

a citizen or national of the United States

If you check this block, no further information is required. Sign and date below and forward this form to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult who resides in the assisted unit and who is responsible for the child should sign and date below.



2. a noncitizen with eligible immigration status as evidenced by one of the documents listed below:

NOTE: If you checked this block and you are 62 years of age or older, you need only submit a proof of age document together with this form, and sign below:

If you checked this block and you are less than 62 years of age, you should submit the following documents:

a.1 Verification Consent Format

2
AND

b.3 One of the following documents:

(1) Form I-551, *Permanent Resident Card*

(2) Form I-94, *Arrival-Departure Record*, with one of the following annotations:

(a) "Admitted as Refugee Pursuant to section 207";

(b) "Section 208" or "Asylum";

(c) "Section 243(h)" or "Deportation stayed by Attorney General"; or

(d) "Paroled Pursuant to Sec. 212(d)(5) of the INA."

(3) If Form I-94, *Arrival-Departure Record*, is not annotated, it must be accompanied by one of the following documents:

(a) A final court decision granting asylum (but only if no appeal is taken);

(b) A letter from an DHS asylum officer granting asylum (if application was filed on or after October 1, 1990) or from an DHS district director granting asylum (if application was filed before October 1, 1990);

(c) A court decision granting withholding or deportation; or

(d) A letter from an DHS asylum officer granting withholding of deportation (if application was filed on or after October 1, 1990).

(4) A receipt issued by the DHS indicating that an application for issuance of a replacement document in one of the above-listed categories has been made and that the applicant's entitlement to the document has been verified.

(5) Other acceptable evidence. If other documents are determined by the DHS to constitute acceptable evidence of eligible immigration status, they will be announced by notice published in the Federal Register.

If this block is checked, sign and date below and submit the documentation required above with this declaration and a verification consent format to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult who will reside in the assisted unit and responsible for the child should sign and date below.

If for any reason, the documents shown in subparagraph 2.b. above are not currently available; complete the Request for Extension block below.

REQUEST FOR EXTENSION

I hereby certify that I am a noncitizen with eligible immigration status, as noted in block 2 above, but the evidence needed to support my claim is temporarily unavailable. Therefore, I am requesting additional time to obtain the necessary evidence. I

Further certify that diligent and prompt efforts will be undertaken to obtain this evidence.

3. not contending eligible immigration status and I understand that I am not eligible for financial assistance.

If you checked this block, no further information is required and the person named above is not eligible for assistance. Sign and date below and forward this form to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult living in the unit and responsible for the child should sign and date below.

Signature



Date _____

Check here if adult signed for a child: _____



CITIZENSHIP DECLARATION

INSTRUCTIONS: Complete this form for each member of the household listed on the Family Summary Sheet.

LAST NAME: _____

FIRST NAME: _____ MIDDLE NAME: _____

RELATIONSHIP TO HEAD OF HOUSEHOLD: _____ SEX: _____ DATE OF BIRTH: _____

SOCIAL SECURITY NO.: _____ ALIEN REGISTRATION NO.: _____

ADMISSION NUMBER: _____ if applicable, (this is an 11 digit number found on INS Form I-94, Departure Record).

NATIONALITY: _____ (Enter the foreign nation or country to which you owe legal allegiance. This is normally, but not always, the country of birth.)

SAVE VERIFICATION NO. _____
(To be entered by PHA.)

INSTRUCTIONS: Complete the Declaration below by printing or typing the person's first name, middle initial, and last name in the space provided. Then review the blocks designated below and complete either block number 1, 2, or 3:

DECLARATION

I, _____ hereby declare, under penalty of perjury,
that I am: _____

(print or type first name, middle initial, last name)

a citizen or national of the United States

If you check this block, no further information is required. Sign and date below and forward this form to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult who resides in the assisted unit and who is responsible for the child should sign and date below.



2. a noncitizen with eligible immigration status as evidenced by one of the documents listed below:

NOTE: If you checked this block and you are 62 years of age or older, you need only submit a proof of age document together with this form, and sign below:

If you checked this block and you are less than 62 years of age, you should submit the following documents:

a.1 Verification Consent Format

2
AND

b.3 One of the following documents:

- 4 (1) Form I-551, *Permanent Resident Card*
- 5 (2) Form I-94, *Arrival-Departure Record*, with one of the following annotations:
 - 6 (a) "Admitted as Refugee Pursuant to section 207";
 - 7 (b) "Section 208" or "Asylum";
 - 8 (c) "Section 243(h)" or "Deportation stayed by Attorney General"; or
 - 9 (d) "Paroled Pursuant to Sec. 212(d)(5) of the INA."
- 10 (3) If Form I-94, *Arrival-Departure Record*, is not annotated, it must be accompanied by one of the following documents:
 - 11 (a) A final court decision granting asylum (but only if no appeal is taken);
 - 12 (b) A letter from an DHS asylum officer granting asylum (if application was filed on or after October 1, 1990) or from an DHS district director granting asylum (if application was filed before October 1, 1990);
 - 13 (c) A court decision granting withholding or deportation; or
 - 14 (d) A letter from an DHS asylum officer granting withholding of deportation (if application was filed on or after October 1, 1990).
- 15 (4) A receipt issued by the DHS indicating that an application for issuance of a replacement document in one of the above-listed categories has been made and that the applicant's entitlement to the document has been verified.
- 16 (5) Other acceptable evidence. If other documents are determined by the DHS to constitute acceptable evidence of eligible immigration status, they will be announced by notice published in the Federal Register.

If this block is checked, sign and date below and submit the documentation required above with this declaration and a verification consent format to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult who will reside in the assisted unit and responsible for the child should sign and date below.

If for any reason, the documents shown in subparagraph 2.b. above are not currently available; complete the Request for Extension block below.

REQUEST FOR EXTENSION

I hereby certify that I am a noncitizen with eligible immigration status, as noted in block 2 above, but the evidence needed to support my claim is temporarily unavailable. Therefore, I am requesting additional time to obtain the necessary evidence. I further certify that diligent and prompt efforts will be undertaken to obtain this evidence.

3. not contending eligible immigration status and I understand that I am not eligible for financial assistance.

If you checked this block, no further information is required and the person named above is not eligible for assistance. Sign and date below and forward this form to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult living in the unit and responsible for the child should sign and date below.

Signature



Date _____

Check here if adult signed for a child: _____



CITIZENSHIP DECLARATION

INSTRUCTIONS: Complete this form for each member of the household listed on the Family Summary Sheet.

LAST NAME: _____

FIRST NAME: _____ MIDDLE NAME: _____

RELATIONSHIP TO HEAD OF HOUSEHOLD: _____ SEX: _____ DATE OF BIRTH: _____

SOCIAL SECURITY NO.: _____ ALIEN REGISTRATION NO.: _____

ADMISSION NUMBER: _____ if applicable, (this is an 11 digit number found on INS Form I-94, Departure Record).

NATIONALITY: _____ (Enter the foreign nation or country to which you owe legal allegiance. This is normally, but not always, the country of birth.)

SAVE VERIFICATION NO. _____
(To be entered by PHA.)

INSTRUCTIONS: Complete the Declaration below by printing or typing the person's first name, middle initial, and last name in the space provided. Then review the blocks designated below and complete either block number 1, 2, or 3:

DECLARATION

I, _____ hereby declare, under penalty of perjury,
that I am: _____

(print or type first name, middle initial, last name)

a citizen or national of the United States

If you check this block, no further information is required. Sign and date below and forward this form to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult who resides in the assisted unit and who is responsible for the child should sign and date below.



2. a noncitizen with eligible immigration status as evidenced by one of the documents listed below:

NOTE: If you checked this block and you are 62 years of age or older, you need only submit a proof of age document together with this form, and sign below:

If you checked this block and you are less than 62 years of age, you should submit the following documents:

a.1 Verification Consent Format

2
AND

b.3 One of the following documents:

(1) Form I-551, *Permanent Resident Card*

(2) Form I-94, *Arrival-Departure Record*, with one of the following annotations:

(a) "Admitted as Refugee Pursuant to section 207";

(b) "Section 208" or "Asylum";

(c) "Section 243(h)" or "Deportation stayed by Attorney General"; or

(d) "Paroled Pursuant to Sec. 212(d)(5) of the INA."

(3) If Form I-94, *Arrival-Departure Record*, is not annotated, it must be accompanied by one of the following documents:

(a) A final court decision granting asylum (but only if no appeal is taken);

(b) A letter from an DHS asylum officer granting asylum (if application was filed on or after October 1, 1990) or from an DHS district director granting asylum (if application was filed before October 1, 1990);

(c) A court decision granting withholding or deportation; or

(d) A letter from an DHS asylum officer granting withholding of deportation (if application was filed on or after October 1, 1990).

(4) A receipt issued by the DHS indicating that an application for issuance of a replacement document in one of the above-listed categories has been made and that the applicant's entitlement to the document has been verified.

(5) Other acceptable evidence. If other documents are determined by the DHS to constitute acceptable evidence of eligible immigration status, they will be announced by notice published in the Federal Register.

If this block is checked, sign and date below and submit the documentation required above with this declaration and a verification consent format to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult who will reside in the assisted unit and responsible for the child should sign and date below.

If for any reason, the documents shown in subparagraph 2.b. above are not currently available; complete the Request for Extension block below.

REQUEST FOR EXTENSION

I hereby certify that I am a noncitizen with eligible immigration status, as noted in block 2 above, but the evidence needed to support my claim is temporarily unavailable. Therefore, I am requesting additional time to obtain the necessary evidence. I

further certify that diligent and prompt efforts will be undertaken to obtain this evidence.

3. not contending eligible immigration status and I understand that I am not eligible for financial assistance.

If you checked this block, no further information is required and the person named above is not eligible for assistance. Sign and date below and forward this form to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult living in the unit and responsible for the child should sign and date below.

Signature



Date _____

Check here if adult signed for a child: _____



CITIZENSHIP DECLARATION

INSTRUCTIONS: Complete this form for each member of the household listed on the Family Summary Sheet.

LAST NAME: _____

FIRST NAME: _____ MIDDLE NAME: _____

RELATIONSHIP TO HEAD OF HOUSEHOLD: _____ DATE OF BIRTH: _____ SEX: _____

SOCIAL SECURITY NO.: _____ ALIEN REGISTRATION NO.: _____

ADMISSION NUMBER: _____ if applicable, (this is an 11 digit number found on INS Form I-94, Departure Record).

NATIONALITY: _____ (Enter the foreign nation or country to which you owe legal allegiance. This is normally, but not always, the country of birth.)

SAVE VERIFICATION NO. _____
(To be entered by PHA.)

INSTRUCTIONS: Complete the Declaration below by printing or typing the person's first name, middle initial, and last name in the space provided. Then review the blocks designated below and complete either block number 1, 2, or 3:

DECLARATION

I, _____ hereby declare, under penalty of perjury,
that I am: _____

(print or type first name, middle initial, last name)

a citizen or national of the United States

If you check this block, no further information is required. Sign and date below and forward this form to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult who resides in the assisted unit and who is responsible for the child should sign and date below.



2. a noncitizen with eligible immigration status as evidenced by one of the documents listed below:

NOTE: If you checked this block and you are 62 years of age or older, you need only submit a proof of age document together with this form, and sign below:

If you checked this block and you are less than 62 years of age, you should submit the following documents:

a.1 Verification Consent Format

2
AND

b.3 One of the following documents:

- 4 (1) Form I-551, *Permanent Resident Card*
- 5 (2) Form I-94, *Arrival-Departure Record*, with one of the following annotations:
 - 6 (a) "Admitted as Refugee Pursuant to section 207";
 - 7 (b) "Section 208" or "Asylum";
 - 8 (c) "Section 243(h)" or "Deportation stayed by Attorney General"; or
 - 9 (d) "Paroled Pursuant to Sec. 212(d)(5) of the INA."
- 10 (3) If Form I-94, *Arrival-Departure Record*, is not annotated, it must be accompanied by one of the following documents:
 - 11 (a) A final court decision granting asylum (but only if no appeal is taken);
 - 12 (b) A letter from an DHS asylum officer granting asylum (if application was filed on or after October 1, 1990) or from an DHS district director granting asylum (if application was filed before October 1, 1990);
 - 13 (c) A court decision granting withholding or deportation; or
 - 14 (d) A letter from an DHS asylum officer granting withholding of deportation (if application was filed on or after October 1, 1990).
- 15 (4) A receipt issued by the DHS indicating that an application for issuance of a replacement document in one of the above-listed categories has been made and that the applicant's entitlement to the document has been verified.
- 16 (5) Other acceptable evidence. If other documents are determined by the DHS to constitute acceptable evidence of eligible immigration status, they will be announced by notice published in the Federal Register.

If this block is checked, sign and date below and submit the documentation required above with this declaration and a verification consent format to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult who will reside in the assisted unit and responsible for the child should sign and date below.

If for any reason, the documents shown in subparagraph 2.b. above are not currently available; complete the Request for Extension block below.

REQUEST FOR EXTENSION

I hereby certify that I am a noncitizen with eligible immigration status, as noted in block 2 above, but the evidence needed to support my claim is temporarily unavailable. Therefore, I am requesting additional time to obtain the necessary evidence. I further certify that diligent and prompt efforts will be undertaken to obtain this evidence.

3. not contending eligible immigration status and I understand that I am not eligible for financial assistance.

If you checked this block, no further information is required and the person named above is not eligible for assistance. Sign and date below and forward this form to the name and address specified in the attached notification. If this block is checked on behalf of a child, the adult living in the unit and responsible for the child should sign and date below.

Signature



Date _____

Check here if adult signed for a child: _____



**Authorization for Release of Information Pertaining to the Resident
Selection and HUD – IRC Required Verification Process**

NOTE: A separate form must be completed by each household member age **18 and older**. Applicant / Client Identifying INFORMATION (Please PRINT in Ink):

First Name Middle Name Last Name Date of Birth

Any Other Name Used Social Security Number

Current Street Address **Race and Ethnicity and Gender Information:**
(Please check ALL that apply):

City, State Zip Code ☐ White ☐ American Indian/Alaskan Native

State Issued ID# State Issued ☐ Black/African American ☐ Asian/Pacific Islander

Must check one: ☐ Male ☐ Female

Place of Birth: City and State (or Country) Must check one: ☐ Hispanic ☐ Non-Hispanic

Consent For Release: I authorize and direct any federal, state or local agency, organization, business, or individual to release information necessary to verify my application for the purpose of determining eligibility status with the Public Housing Authority and/or its affiliate entities which receive or are governed by federally assisted housing program regulations, including "Drug-free Housing" requirements. I understand and agree this authorization or the information obtained with its use may be given to and used by the Department of Housing and Urban Development (HUD) and/or State Housing Finance Agency (SHFA) and the Public Housing Authority (PHA) in the administering and enforcing program rules and policies, along with reporting requirements for state and/or federal grants received by the Public Housing Authority or its affiliate entities. I also consent for HUD, SHFA, PHA or its affiliate entities to release information from my file to authorized city, county, state or federal law enforcement agencies.

Applicable to Groups, Individuals or Agencies: Verifications and/or information which may be shared, depending on applicable program policies, include, but are not limited to:

Past & Present Employers	Law Enforcement Agencies	Public or Private Schools & Colleges
State Unemployment Agencies	Social Services Agencies	Retirement / Pension Providers
Social Security & Veteran's Administration	Municipal Courts & Post Offices	Banks & Other Financial Institutions
State/Local Public Housing Agencies	Child Care Providers	Credit Providers & Credit Bureaus
Medical / Pharmaceutical Providers	Utility Service Providers	Child Support Enforcement Agency

Applicable Information Covered: I understand and agree that as an applicant or client for residency with the Public Housing Authority, verification and inquiries that may be requested include but are not limited to, all information related to identity, dependent and marital status of all household members, income and assets, household composition, medical and/or child care allowances for purposes of determining eligibility and level of rental assistance depending on program policies and requirements.

I agree that a photocopy of this Consent for Release may be attached to the appropriate form(s) used for verification purposes as stated above. I further herewith release the aforementioned agencies or organizations from any damages which may result from their furnishing accurate information. I further direct that PHA is not to disclose information within or without the above described perimeters to any other persons or organizations not listed above, without my specific written authorization to do so. This consent for release of information expires 15 months from the date of my signature.


Resident / Applicant Signature

Date Signed

PENALTIES FOR MISUSING THIS CONSENT: TITLE 18, SECTION 1001 OF THE U. S. Code states that a person is guilty of a felony for knowingly and willingly making false or fraudulent statements to any department of the United States Government. HUD, the PHA and any Owner (or employee of HUD, the PHA or the Owner) may be subject to penalties for unauthorized disclosures or improper uses of information collected based on the consent form. Use of the information collected based on this verification form is restricted to the purposes cited above. Any person, who knowingly or willingly requests, obtains or discloses any information under false pretenses concerning an applicant or participant may be subject to a misdemeanor and fined not more than \$5000. Any applicant or participant affected by negligent disclosure of information may bring civil action for damages, and seek other relief, as may be appropriate, against the officer or employee of HUD, the PHA or the Owner responsible for the unauthorized disclosure or improper use. Penalty provisions for misusing the social security number is contained in the Social Security Act at 42 U.S.C. (208) (a) (6), (7) and (8). Violation of these provisions are cited as violations of 42 U.S.C. 408 (a) (6), (7) and (8).

EQUAL HOUSING OPPORTUNITY

For Agency Use Only: CRIMINAL BACKGROUND CHECK

BACKGROUND TYPE: ELIGIBLE INELIGIBLE ACTION TYPE: ☐ INITIAL CERTIFY ☐ ADDITION TO

NATIONAL STATE LEASE PHA REVIEWER INITIALS:

REPORT DESTROYED ON: by



U.S. Department of Housing and Urban Development Office of Public and Indian Housing

DEBTS OWED TO PUBLIC HOUSING AGENCIES AND TERMINATIONS

Paperwork Reduction Notice: Public reporting burden for this collection of information is estimated to average 7 minutes per response. This includes the time for respondents to read the document and certify, and any record keeping burden. This information will be used in the processing of a tenancy. Response to this request for information is required to receive benefits. The agency may not collect this information, and you are not required to complete this form, unless it displays a currently valid OMB control number. The OMB Number is 2577-0266 and expires 06/30/2026.

NOTICE TO APPLICANTS AND PARTICIPANTS OF THE FOLLOWING HUD RENTAL ASSISTANCE PROGRAMS:

- Public Housing (24 CFR 960)
- Section 8 Housing Choice Voucher, including the Disaster Housing Assistance Program (24 CFR 982)
- Section 8 Moderate Rehabilitation (24 CFR 882)
- Project-Based Voucher (24 CFR 983)

The U.S. Department of Housing and Urban Development maintains a national repository of debts owed to Public Housing Agencies (PHAs) or Section 8 landlords and adverse information of former participants who have voluntarily or involuntarily terminated participation in one of the above-listed HUD rental assistance programs. This information is maintained within HUD's Enterprise Income Verification (EIV) system, which is used by Public Housing Agencies (PHAs) and their management agents to verify employment and income information of program participants, as well as, to reduce administrative and rental assistance payment errors. The EIV system is designed to assist PHAs and HUD in ensuring that families are eligible to participate in HUD rental assistance programs and determining the correct amount of rental assistance a family is eligible for. All PHAs are required to use this system in accordance with HUD regulations at 24 CFR 5.233.

HUD requires PHAs, which administers the above-listed rental housing programs, to report certain information at the conclusion of your participation in a HUD rental assistance program. This notice provides you with information on what information the PHA is required to provide HUD, who will have access to this information, how this information is used and your rights. PHAs are required to provide this notice to all applicants and program participants, and you are required to acknowledge receipt of this notice by signing page 2. Each adult household member must sign this form.

What information about you and your tenancy does HUD collect from the PHA?

The following information is collected about each member of your household (family composition): full name, date of birth, and Social Security Number.

The following adverse information is collected once your participation in the housing program has ended, whether you voluntarily or involuntarily move out of an assisted unit:

1. Amount of any balance you owe the PHA or Section 8 landlord (up to \$500,000) and explanation for balance owed (i.e., unpaid rent, retroactive rent (due to unreported income and/ or change in family composition) or other charges such as damages, utility charges, etc.); and
2. Whether or not you have entered into a repayment agreement for the amount that you owe the PHA; and
3. Whether or not you have defaulted on a repayment agreement; and
4. Whether or not the PHA has obtained a judgment against you; and
5. Whether or not you have filed for bankruptcy; and
6. The negative reason(s) for your end of participation or any negative status (i.e., abandoned unit, fraud, lease violations, criminal activity, etc.) as of the end of participation date.

Who will have access to the information collected?

This information will be available to HUD employees, PHA employees, and contractors of HUD and PHAs.

How will this information be used?

PHAs will have access to this information during the time of application for rental assistance and reexamination of family income and composition for existing participants. PHAs will be able to access this information to determine a family's suitability for initial or continued rental assistance and avoid providing limited Federal housing assistance to families who have previously been unable to comply with HUD program requirements. If the reported information is accurate, a PHA may terminate your current rental assistance and deny your future request for HUD rental assistance, subject to PHA policy.

How long is the debt owed and termination information maintained in EIV?

Debt owed and termination information will be maintained in EIV for a period of up to ten (10) years from the end of participation date or such other period consistent with State Law.

What are my rights?

In accordance with the Federal Privacy Act of 1974, as amended (5 USC 552a) and HUD regulations pertaining to its implementation of the Federal Privacy Act of 1974 (24 CFR Part 16), you have the following rights:

1. To have access to your records maintained by HUD, subject to 24 CFR Part 16.
2. To have an administrative review of HUD's initial denial of your request to have access to your records maintained by HUD.
3. To have incorrect information in your record corrected upon written request.
4. To file an appeal request of an initial adverse determination on correction or amendment of record request within 30 calendar days after the issuance of the written denial.
5. To have your record disclosed to a third party upon receipt of your written and signed request.

What do I do if I dispute the debt or termination information reported about me?

If you disagree with the reported information, you should contact in writing the PHA who has reported this information about you. The PHA's name, address, and telephone numbers are listed on the Debts Owed and Termination Report. You have a right to request and obtain a copy of this report from the PHA. Inform the PHA why you dispute the information and provide any documentation that supports your dispute. HUD's record retention policies at 24 CFR Part 908 and 24 CFR Part 982 provide that the PHA may destroy your records three years from the date your participation in the program ends. To ensure the availability of your records, disputes of the original debt or termination information must be made within three years from the end of participation date; otherwise, the debt and termination information will be presumed correct. Only the PHA who reported the adverse information about you can delete or correct your record.

Your filing of bankruptcy will not result in the removal of debt owed or termination information from HUD's EIV system. However, if you have included this debt in your bankruptcy filing and/or this debt has been discharged by the bankruptcy court, your record will be updated to include the bankruptcy indicator, when you provide the PHA with documentation of your bankruptcy status.

The PHA will notify you in writing of its action regarding your dispute within 30 days of receiving your written dispute. If the PHA determines that the disputed information is incorrect, the PHA will update or delete the record. If the PHA determines that the disputed information is correct, the PHA will provide an explanation as to why the information is correct.

This Notice was provided by the below-listed PHA:

Washington County HA (OR) Hillsboro OR 97124

**I hereby acknowledge that the PHA provided me with the
Debts Owed to PHAs & Termination Notice:**

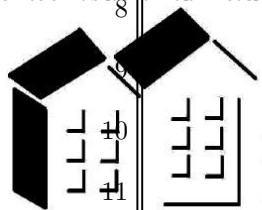
Signature 

Date _____

Printed Name Ashle' Penn



U.S. Department of Housing and Urban Development
Office of Public and Indian Housing (PIH)



RENTAL HOUSING INTEGRITY IMPROVEMENT PROJECT

What You Should Know About EIV

A Guide for Applicants & Tenants of Public Housing & Section 8 Programs

What is EIV?

The Enterprise Income Verification (EIV) system is a web-based computer system that contains employment and income information of individuals who participate in HUD rental assistance programs. All Public Housing Agencies (PHAs) are required to use HUD's EIV system.

What information is in EIV and where does it come from?

HUD obtains information about you from your local PHA, the Social Security Administration (SSA), and U.S. Department of Health and Human Services (HHS).

HHS provides HUD with wage and employment information as reported by employers; and unemployment compensation information as reported by the State Workforce Agency (SWA).

SSA provides HUD with death, Social Security (SS) and Supplemental Security Income (SSI) information.

What is the EIV information used for?

Primarily, the information is used by PHAs (and management agents hired by PHAs) for the following purposes to:

1. Confirm your name, date of birth (DOB), and Social Security Number (SSN) with SSA.
2. Verify your reported income sources and amounts.
3. Confirm your participation in only one HUD rental assistance program.
4. Confirm if you owe an outstanding debt to any PHA.
5. Confirm any negative status if you moved out of a subsidized unit (in the past) under the Public Housing or Section 8 program.
6. Follow up with you, other adult household members, or your listed emergency contact regarding deceased household members.

EIV will alert your PHA if you or anyone in your household has used a false SSN, failed to report complete and accurate income information, or is receiving rental assistance at another address. **Remember, you may receive rental assistance at only one home!**

EIV will also alert PHAs if you owe an outstanding debt to any PHA (in any state or U.S. territory) and any negative status when you voluntarily or involuntarily moved out of a subsidized unit under the Public Housing or Section 8 program. This information is used to determine your eligibility for rental assistance at the time of application.

The information in EIV is also used by HUD, HUD's Office of Inspector General (OIG), and auditors to ensure that your family and PHAs comply with HUD rules.

Overall, the purpose of EIV is to identify and prevent fraud within HUD rental assistance programs, so that limited taxpayer's dollars can assist as many eligible families as possible. EIV will help to improve the integrity of HUD rental assistance programs.

Is my consent required in order for information to be obtained about me?

Yes, your consent is required in order for HUD or the PHA to obtain information about you. By law, you are required to sign one or more consent forms. When you sign a form HUD-9886 (*Federal Privacy Act Notice and Authorization for Release of Information*) or a PHA consent form (which meets HUD standards), you are giving HUD and the PHA your consent for them to obtain information about you for the purpose of determining your eligibility and amount of rental assistance. The information collected about you will be used only to determine your eligibility for the program, unless you consent in writing to authorize additional uses of the information by the PHA.

Note: If you or any of your adult household members refuse to sign a consent form, your request for initial or continued rental assistance may be denied. You may also be terminated from the HUD rental assistance program.

What are my responsibilities?

As a tenant (participant) of a HUD rental assistance program, you and each adult household member must disclose complete and accurate information to the PHA, including full name, SSN, and DOB; income information; and certify that your reported household composition (household members), income, and expense information is true to the best of your knowledge.

February 2010

Remember, you must notify your PHA if a household member dies or moves out. You must also obtain the PHA's approval to allow additional family members or friends to move in your home **prior** to them moving in.

What are the penalties for providing false information?

Knowingly providing false, inaccurate, or incomplete information is **FRAUD** and a **CRIME**.

If you commit fraud, you and your family may be subject to any of the following penalties:

1. Eviction
2. Termination of assistance
3. Repayment of rent that you should have paid had you reported your income correctly
4. Prohibited from receiving future rental assistance for a period of up to 10 years
5. Prosecution by the local, state, or Federal prosecutor, which may result in you being fined up to \$10,000 and/or serving time in jail.

Protect yourself by following HUD reporting requirements. When completing applications and reexaminations, you must include all sources of income you or any member of your household receives.

If you have any questions on whether money received should be counted as income or how your rent is determined, **ask your PHA**. When changes occur in your household income, **contact your PHA immediately** to determine if this will affect your rental assistance.

What do I do if the EIV information is incorrect?

Sometimes the source of EIV information may make an error when submitting or reporting information about you. If you do not agree with the EIV information, let your PHA know. If necessary, your PHA will contact the source of the information directly to verify disputed income

information. Below are the procedures you and the PHA should follow regarding incorrect EIV information.

Debts owed to PHAs and termination

information reported in EIV originates from the PHA who provided you assistance in the past. If you dispute this information, contact your former PHA directly in writing to dispute this information and provide any documentation that supports your dispute. If the PHA determines that the disputed information is incorrect, the PHA will update or delete the record from EIV.

Employment and wage information reported in EIV originates from the employer. If you dispute this information, contact the employer in writing to dispute **and** request correction of the disputed employment and/or wage information. Provide your PHA with a copy of the letter that you sent to the employer. If you are unable to get the employer to correct the information, you should contact the SWA for assistance.

Unemployment benefit information reported in EIV originates from the SWA. If you dispute this information, contact the SWA in writing to dispute **and** request correction of the disputed unemployment benefit information. Provide your PHA with a copy of the letter that you sent to the SWA.

Death, SS and SSI benefit information reported in EIV originates from the SSA. If you dispute this information, contact the SSA at (800) 772-1213, or visit their website at: www.socialsecurity.gov. You may need to visit your local SSA office to have disputed death information corrected.

Additional Verification. The PHA, with your consent, may submit a third party verification form to the provider (or reporter) of your income for completion and submission to the PHA.

You may also provide the PHA with third party documents (i.e. pay stubs, benefit award letters, bank statements, etc.) which you may have in your possession.

Identity Theft. Unknown EIV information to you can be a sign of identity theft. Sometimes someone else may use your SSN, either on purpose or by accident. So, if you suspect someone is using your SSN, you should check your Social Security records to ensure your income is calculated correctly (call SSA at (800) 772-1213); file an identity theft complaint with your local police department or the Federal Trade Commission (call FTC at (877) 438-4338, or you may visit their website at: <http://www.ftc.gov>). Provide your PHA with a copy of your identity theft complaint.

Where can I obtain more information on EIV and the income verification process?

Your PHA can provide you with additional information on EIV and the income verification process. You may also read more about EIV and the income verification process on HUD's Public and Indian Housing EIV web pages at: <http://www.hud.gov/offices/pih/programs/ph/hiip/uiiv.cfm>.

The information in this Guide pertains to applicants and participants (tenants) of the following HUD-PIH rental assistance programs:

1. Public Housing (24 CFR 960); and
2. Section 8 Housing Choice Voucher (HCV), (24 CFR 982); and
3. Section 8 Moderate Rehabilitation (24 CFR 882); and
4. Project-Based Voucher (24 CFR 983)

My signature below is confirmation that I have received this Guide.



Signature

Date

Supplemental and Optional Contact Information for HUD-Assisted Housing Applicants

SUPPLEMENT TO APPLICATION FOR FEDERALLY ASSISTED HOUSING

This form is to be provided to each applicant for federally assisted housing

Instructions: Optional Contact Person or Organization: You have the right by law to include as part of your application for housing, the name, address, telephone number, and other relevant information of a family member, friend, or social, health, advocacy, or other organization. This contact information is for the purpose of identifying a person or organization that may be able to help in resolving any issues that may arise during your tenancy or to assist in providing any special care or services you may require. **You may update, remove, or change the information you provide on this form at any time.** You are not required to provide this contact information, but if you choose to do so, please include the relevant information on this form.

Applicant Name: Ashle' Penn	
Mailing Address: 17548 NW SPRINGVILLE RD #9 PORTLAND, OR 97229	
Telephone No: (424) 242-3374	Cell Phone No:
Name of Additional Contact Person or Organization: Marie Penn	
Address: Las Vegas, NV 89107	
Telephone No: (951) 551-6254	Cell Phone No:
E-Mail Address (if applicable): pennmarie0823@ymail.com	
Relationship to Applicant: Other	
Reason for Contact: (Check all that apply)	
☒ Emergency ☐ Unable to contact you ☐ Termination of rental assistance ☐ Eviction from unit ☐ Late payment of rent	☐ Assistance with Recertification Process ☐ Change in lease terms ☐ Change in house rules ☒ Other:
Commitment of Housing Authority or Owner: If you are approved for housing, this information will be kept as part of your tenant file. If issues arise during your tenancy or if you require any services or special care, we may contact the person or organization you listed to assist in resolving the issues or in providing any services or special care to you.	
Confidentiality Statement: The information provided on this form is confidential and will not be disclosed to anyone except as permitted by the applicant or applicable law.	
Legal Notification: Section 644 of the Housing and Community Development Act of 1992 (Public Law 102-550, approved October 28, 1992) requires each applicant for federally assisted housing to be offered the option of providing information regarding an additional contact person or organization. By accepting the applicant's application, the housing provider agrees to comply with the non-discrimination and equal opportunity requirements of 24 CFR section 5.105, including the prohibitions on discrimination in admission to or participation in federally assisted housing programs on the basis of race, color, religion, national origin, sex, disability, and familial status under the Fair Housing Act, and the prohibition on age discrimination under the Age Discrimination Act of 1975.	

Check this box if you choose not to provide the contact information.

	
Signature of Applicant	Date

The information collection requirements contained in this form were submitted to the Office of Management and Budget (OMB) under the Paperwork Reduction Act of 1995 (44 U.S.C. 3501-3520). The public reporting burden is estimated at 15 minutes per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Section 644 of the Housing and Community Development Act of 1992 (42 U.S.C. 13604) imposed on HUD the obligation to require housing providers participating in HUD's assisted housing programs to provide any individual or family applying for occupancy in HUD-assisted housing with the option to include in the application for occupancy the name, address, telephone number, and other relevant information of a family member, friend, or person associated with a social, health, advocacy, or similar organization. The objective of providing such information is to facilitate contact by the housing provider with the person or organization identified by the tenant to assist in providing any delivery of services or special care to the tenant and assist with resolving any tenancy issues arising during the tenancy of such tenant. This supplemental application information is to be maintained by the housing provider and maintained as confidential information. Providing the information is basic to the operations of the HUD Assisted-Housing Program and is voluntary. It supports statutory requirements and program and management controls that prevent fraud, waste and mismanagement. In accordance with the Paperwork Reduction Act, an agency may not conduct or sponsor, and a person is not required to respond to, a collection of information, unless the collection displays a currently valid OMB control number.

DEFENDANT'S EXHIBIT H — Pg. 174

Privacy Statement: Public Law 102-550, authorizes the Department of Housing and Urban Development (HUD) to collect all the information (except the Social Security Number (SSN)) which will be used by HUD to protect disbursement data from fraudulent actions.

1 **Department of Housing Services Language/Alternate Format**
2 **Designation**

3 The Washington County Department of Housing Services (DHS) wants to provide effective
4 communication and services to all its clients. This includes persons with disabilities, and
5 persons who do not speak English.

6 The purpose of this form is to gather information to help us serve you better. Note, this form is
7 optional.

8 **Kinds of Communication**

9 DHS can communicate with persons who have disabilities in several ways. Check below to
10 tell us how you would like to get information from the DHS:

- 11 ☐ I do not need written materials in a different format.
- 12 ☐ I need written materials in the following format:
- 13 ☐ Large Print: **This is 18 point font.**
- 14 ☐ Audiotape: Text is recorded on an audiocassette tape.
- 15 ☐ Braille: Written text is provided in Braille.
- 16 ☐ Electronic format: Written material emailed.
- 17 ☐ Spoken: Written material is read aloud by a DHS employee, in person or
18 over the phone.
- 19 ☐ I need a sign language interpreter.

20 **Do you need Information in any of the above formats? If so, please enter here:**
21 no

22 **I do not speak or read English, and I need written materials in:**
23 english

24 **I do not speak or read English, and I need oral communication in:**
25 english

26 **I have read this form, or it has been read to me.**

27 **Signature**

28 

Printed Name

Ashle' Penn

Date

Completion Details

File Name(s):

PHA HUD Citizenship Declaration (Adult)

PHA HUD Citizenship Declaration (Minor)

PHA Criminal History Release Form (Adult)

PHA HUD 52675

PHA RHIIP EIV

PHA HUD 92006

Language/Format

3

Document Pages: 15

Signatures: 9

Status: Completed

Initials: 0

5

**Applicant(s)
Details**

Signature

Initial

Timestamp

**Signing
Status**

Ashle Penn



11/04/2025 06:12 PM CST

Completed

8

Using IP Address:

67.161.105.145

Email Id:

ashlepenn.ap3@gmail.com

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

26

27

28

1 Defendant's Exhibit I

2 HOA COMPLIANCE LETTER — CASE NO. 2024-CSVC-00058

3 August 13, 2024

4 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815

Courtyards at Springville Condominium Association

August 13, 2024

Fine Notice

Certified Number: 9489 0090 0027 6620 4730 77

Jimmy Wae-Ping and Candy Mei-Fung
3300 NW 185th, Suite 303
Portland, OR 97229

Re: Windows at 17548 NW Springville Road 9

Dear Owner:

This letter is to advise you that you have not complied with previous written requests to abide by the governing documents. Therefore, a fine of **\$100.00** has been assessed to your account.

The unresolved violation was noted as follows:

Inspection/Report Date: 8/6/2024

Rules Violation Cited/Action Needed: Damaged window coverings are visible to the community. Please replace/repair window coverings.

Section of your Governing Documents/Community Rules in Violation. Please refer to this section for more information:
Bylaws, Article 7, Section 7.5 (f) Windows, Balconies, Patios and Outside Walls

You may find all of your Community Documents on your community portal at www.ams-nw.com in the Documents section. There may also be photos of your compliance issue available for your review on your community portal. If photos are available, you may view them by clicking on "Compliance" in the navigation menu of the portal.

Please be aware that if the above imposed fine is not paid within 14 days of the date of this letter, late fees and interest will begin to accrue. For your convenience, we have included a payment coupon below. Please remove the coupon and include with your remittance.

Sincerely,

Compliance Administrator



Ryun Gibson, Association Business Manager
Alexandria Kerr, Association Administrator
courtyardsatspringville@ams-nw.com
503-598-0552

Make your check or money order payable to:

Courtyards at Springville Condominium Association

In the amount of:

\$150.00

And mail to:

16520 SW Upper Boones Ferry Rd, Suite 250
Portland, OR 97224

Owner Name: Jimmy Wae-Ping and Candy Mei-Fung
Unit/Lot: 17548 NW Springville Road 9
Account #: 126200940

If you are signed up for ACH/Direct Debit your balance will be automatically debited on the next direct debit pull.

Note: Owner mailing address will not be changed unless specifically directed in writing by the legal owner of the property.

1 Defendant's Exhibit J

2 HOA COMPLIANCE LETTER — CASE NO. 2024-CSVC-00058

3 September 17, 2024

4 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815

Courtyards at Springville Condominium Association

September 24, 2024

Fine Notice

Certified Number: 9489 0090 0027 6620 4669 63

Jimmy Wae-Ping and Candy Mei-Fung
3300 NW 185th, Suite 303
Portland, OR 97229

Re: Windows at 17548 NW Springville Road 9

Dear Owner:

This letter is to advise you that you have not complied with previous written requests to abide by the governing documents. Therefore, a fine of **\$250.00** has been assessed to your account.

The unresolved violation was noted as follows:

Inspection/Report Date: 9/17/2024

Rules Violation Cited/Action Needed: Damaged window coverings are visible to the community. Please replace/repair window coverings.

Section of your Governing Documents/Community Rules in Violation. Please refer to this section for more information:
Bylaws, Article 7, Section 7.5 (f) Windows, Balconies, Patios and Outside Walls

You may find all of your Community Documents on your community portal at www.ams-nw.com in the Documents section. There may also be photos of your compliance issue available for your review on your community portal. If photos are available, you may view them by clicking on "Compliance" in the navigation menu of the portal.

Please be aware that if the above imposed fine is not paid within 14 days of the date of this letter, late fees and interest will begin to accrue. For your convenience, we have included a payment coupon below. Please remove the coupon and include with your remittance.

Sincerely,

Compliance Administrator



Ryun Gibson, Association Business Manager
Alexandria Kerr, Association Administrator
courtyardsatspringville@ams-nw.com
503-598-0552

Make your check or money order payable to:

Courtyards at Springville Condominium Association

In the amount of:

250.00

And mail to:

16520 SW Upper Boones Ferry Rd, Suite 250
Portland, OR 97224

Owner Name: Jimmy Wae-Ping and Candy Mei-Fung
Unit/Lot: 17548 NW Springville Road 9
Account #: 126200940

If you are signed up for ACH/Direct Debit your balance will be automatically debited on the next direct debit pull.

Note: Owner mailing address will not be changed unless specifically directed in writing by the legal owner of the property.

1 Defendant's Exhibit K

2 HOA COMPLIANCE LETTER — CASE NO. 2024-CSVC-00059

3 September 24, 2024

4 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815

Courtyards at Springville Condominium Association

September 24, 2024

Fine Notice

Certified Number: 9489 0090 0027 6620 4669 70

Jimmy Wae-Ping and Candy Mei-Fung
3300 NW 185th, Suite 303
Portland, OR 97229

Re: Maintenance at 17548 NW Springville Road 9

Dear Owner:

This letter is to advise you that you have not complied with previous written requests to abide by the governing documents. Therefore, a fine of \$250.00 has been assessed to your account.

The unresolved violation was noted as follows:

Inspection/Report Date: 9/17/2024

Rules Violation Cited/Action Needed: Items and/or debris left out. Please store items/debris out of view of community. Misc. items left on back porch need to be cleaned up and stored out of view.

Section of your Governing Documents/Community Rules in Violation. Please refer to this section for more information:
Bylaws, Article 7, Section 7.5 (f) Windows, Balconies, Patios and Outside Walls

Additional Notes:

You may find all of your Community Documents on your community portal at www.ams-nw.com in the Documents section. There may also be photos of your compliance issue available for your review on your community portal. If photos are available, you may view them by clicking on "Compliance" in the navigation menu of the portal.

Please be aware that if the above imposed fine is not paid within 14 days of the date of this letter, late fees and interest will begin to accrue. For your convenience, we have included a payment coupon below. Please remove the coupon and include with your remittance.

Sincerely,

Compliance Administrator



Ryun Gibson, Association Business Manager
Alexandria Kerr, Association Administrator
courtyardsatspringville@ams-nw.com
503-598-0552

Make your check or money order payable to:

Courtyards at Springville Condominium Association

In the amount of:

250.00

And mail to:

16520 SW Upper Boones Ferry Rd, Suite 250
Portland, OR 97224

Owner Name: Jimmy Wae-Ping and Candy Mei-Fung
Unit/Lot: 17548 NW Springville Road 9
Account #: 126200940

If you are signed up for ACH/Direct Debit your balance will be automatically debited on the next direct debit pull.

Note: Owner mailing address will not be changed unless specifically directed in writing by the legal owner of the property.

1 Defendant's Exhibit L

2 HOA COMPLIANCE LETTER — CASE NO. 2024-CSVC-00059

3 January 13, 2025

4 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815

Courtyards at Springville Condominium Association

January 13, 2025

Fine Notice

Certified Number: 9489 0090 0027 6620 4565 44

Jimmy Wae-Ping and Candy Mei-Fung
3300 NW 185th, Suite 303
Portland, OR 97229

Re: Maintenance at 17548 NW Springville Road 9

Dear Owner:

This letter is to advise you that you have not complied with previous written requests to abide by the governing documents. Therefore, a fine of **\$250.00** has been assessed to your account.

The unresolved violation was noted as follows:

Inspection/Report Date: 1/7/2025

Rules Violation Cited/Action Needed: Items and/or debris left out. Please store items/debris out of view of community. Misc. items left on back porch need to be cleaned up and stored out of view.

Section of your Governing Documents/Community Rules in Violation. Please refer to this section for more information:
Bylaws, Article 7, Section 7.5 (f) Windows, Balconies, Patios and Outside Walls

You may find all of your Community Documents on your community portal at www.ams-nw.com in the Documents section. There may also be photos of your compliance issue available for your review on your community portal. If photos are available, you may view them by clicking on "Compliance" in the navigation menu of the portal.

Please be aware that if the above imposed fine is not paid within 14 days of the date of this letter, late fees and interest will begin to accrue. For your convenience, we have included a payment coupon below. Please remove the coupon and include with your remittance.

Sincerely,

Compliance Administrator



Ryun G, Association Business Manager
Alexandria K, Association Administrator
courtyardsatspringville@ams-nw.com
503-598-0552

Make your check or money order payable to:

Courtyards at Springville Condominium Association

In the amount of:

250.00

And mail to:

16520 SW Upper Boones Ferry Rd, Suite 250
Portland, OR 97224

Owner Name: Jimmy Wae-Ping and Candy Mei-Fung
Unit/Lot: 17548 NW Springville Road 9
Account #: 126200940

If you are signed up for ACH/Direct Debit your balance will be automatically debited on the next direct debit pull.

Note: Owner mailing address will not be changed unless specifically directed in writing by the legal owner of the property.

1 Defendant's Exhibit M

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

26

TEXT MESSAGE — PLAINTIFF'S EX PARTE COURT CONTACT

27

March 2, 2026 at 10:19 a.m.

28

Jim Wong v. Ashle' Penn, Case No. 26LT03815

1 Wednesday, March 6

2
3
4 Good afternoon
5 This is Sergeants Towing
6 As requested, we have
7 arrived at Courtyards at
8 Springville
9 And found the following
10 vehicles: white Dodge
11 Journey no plate
12 in violation for: no permit
13 fire lane
14 Do you wish for us to tow
15 the vehicle at this time?

16
17
18 10:33 AM

19
20 Yes please

21
22 You were quick

23 10:35 AM

24
25 Yes my driver is on the
26 way

27 10:35 AM

28
Thank you

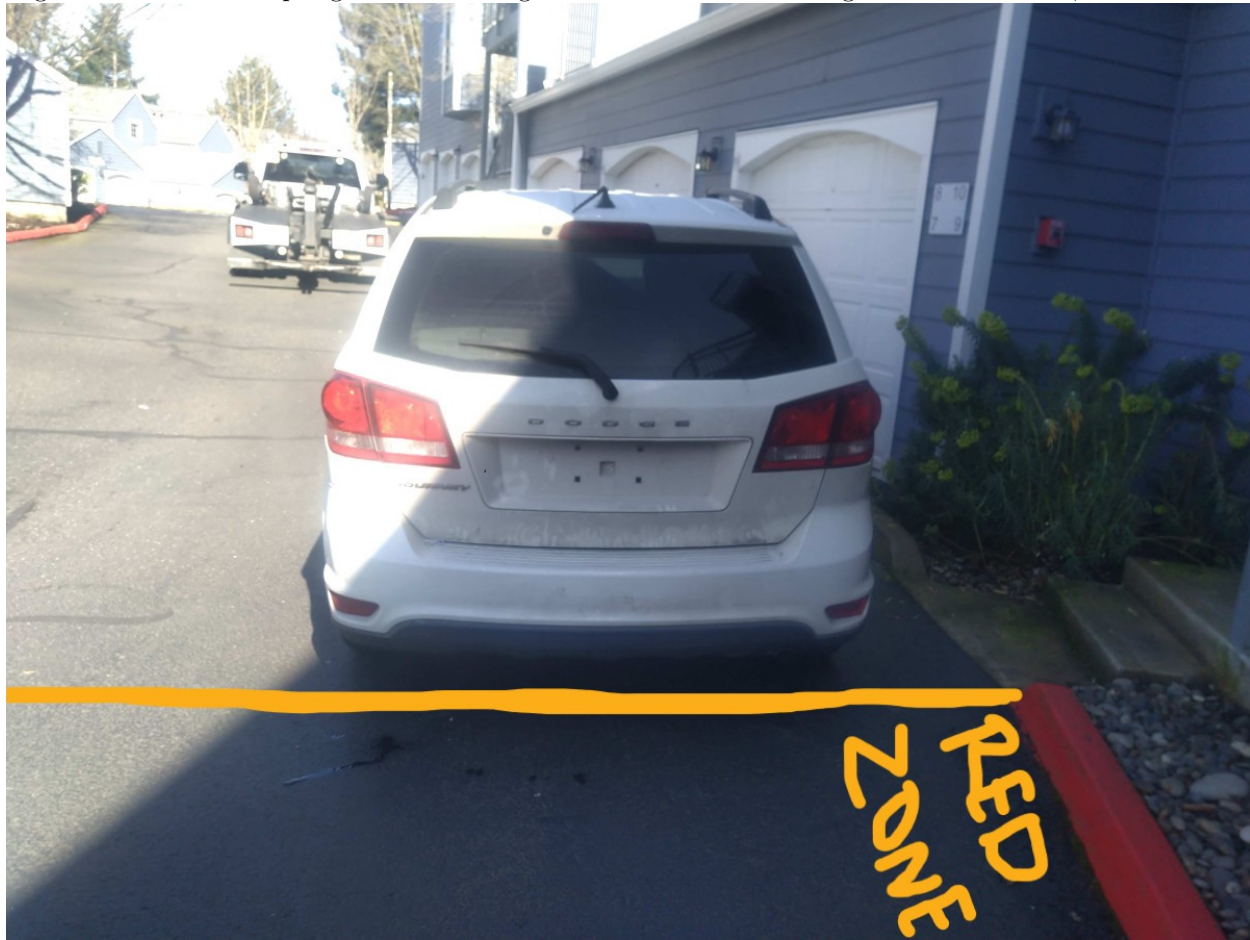
10:36 AM

1 Defendant's Exhibit N

2 PHOTOGRAPHS — PARKING AREA AND COMPARATIVE GRILL ENFORCEMENT

3 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815

4
5 **Figure 1:** Parking area at 17548 NW Springville Rd showing absence of fire lane markings at location of tow,



1 **Defendant's Exhibit O**

2 **JIM WONG EMAIL — ABDICATION OF LANDLORD DUTY**

3 **March 17–18, 2024**

4 *Jim Wong v. Ashle' Penn*, Case No. 26LT03815

5
6 This exhibit contains Plaintiff's written communications of March 17–18, 2024, in which Plaintiff
7 acknowledged that: (1) a warning was required before towing; (2) Defendant's photographs showed her
8 vehicle was not in the fire lane; and (3) there is nothing I could do" — establishing Plaintiff's abdication of
9 his non-delegable duty under ORS §90.325.



1 **Defendant's Exhibit P**

2 **CREDIT REPORT / VEHICLE PAYOFF BALANCE**

3 *Jim Wong v. Ashle' Penn, Case No. 26LT03815*

4
5 This exhibit contains Defendant's credit report and/or bank statement reflecting the \$14,039.88 outstanding
6 payoff balance on the Dodge Journey reported to Defendant's credit following the March 6, 2024 tow. *[Attach*
7 *credit report / bank statement here before filing.]*
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

Case No.: 26LT03815

JIM WONG,
Plaintiff,

vs.

ASHLE' PENN,

Defendant, *In Propria Persona*.

**NOTICE OF DEFENDANT'S RENEWED
MOTION TO DISMISS FOR LACK OF
SUBJECT MATTER JURISDICTION
AND LACK OF STANDING**

PLEASE TAKE NOTICE that Defendant Ashle' Penn, appearing specially and without waiving any jurisdictional defense, hereby renews her Motion to Dismiss for Lack of Subject Matter Jurisdiction and Lack of Standing, as set forth in her Amended Answer filed herewith. This motion is based upon the following grounds, each of which is independently sufficient to require dismissal:

1. **Defective Notice of Termination** — Plaintiff's notice overstates the amount of rent owed by \$4,573.00 (noticed: \$5,918.00; corrected: \$1,345.00), rendering the notice void and depriving this Court of subject matter jurisdiction under ORS §90.394(3) and *Hickey v. Scott*, 370 Or 97 (2022);
2. **Wrong Plaintiff; Failure to State a Claim** — Jim Wong individually is not the real party in interest; the landlord of record is JWP WONG REAL ESTATE, LLC; a plaintiff without a cognizable legal right to possession cannot state a claim under ORCP 21 A(1)(g) and ORS §105.130(4)
3. **Indispensable Party Not Joined** — JWP WONG REAL ESTATE is an indispensable party whose absence deprives this Court of the ability to grant complete relief; ORCP 26 A; ORCP 21 A(1)(g);
4. **Defective Service** — Service did not comply with ORCP 7 and ORS §105.135, depriving this Court of personal jurisdiction over Defendant; ORCP 21 A(1)(e); ORCP 21 G(1);
5. **Failure to Cooperate with Rental Assistance** — Plaintiff accepted HAP and HRSN payments and misapplied them to unlawful charges in violation of ORS §90.220(9); ORS §90.395 independently requires dismissal;
6. **Plaintiff's Non-Appearance** — Plaintiff failed to appear when this case was called on March 2,

2026; ORS §105.137(3) mandates dismissal or entry of judgment for Defendant upon Plaintiff's failure to appear; and

7. Trial Date Set Over Pending Jurisdictional Motion — No trial date may be set while a jurisdictional motion remains pending and unresolved; ORCP 21 G(4); ORS §105.130(4).

This motion is supported by Defendant's Amended Answer, Affirmative Defenses, and Counterclaims filed herewith, including all exhibits thereto, each of which is incorporated herein by reference. Defendant respectfully requests that this Court resolve this motion before any trial date proceeds and before requiring further substantive filings from Defendant. ORCP 21 G(4). Respectfully submitted,

Date: March 15, 2026

/s/ 

Ashle' Penn, Defendant, *In Propria Persona*

17548 NW Springville Rd #9, Portland, OR 97229

Defendant appears pro se and specially, without waiving any jurisdictional defenses.

1 **IN THE CIRCUIT COURT OF THE STATE OF OREGON**
2 **FOR THE COUNTY OF WASHINGTON**

3
4 Case No.: **26LT03815**

4 JIM WONG,
5 Plaintiff,

6 vs.

7 ASHLE' PENN,

8 Defendant, *In Propria Persona.*

**PROPOSED ORDER ON DEFENDANT'S
RENEWED MOTION TO DISMISS**

9 THIS MATTER having come before the Court on Defendant's Renewed Motion to Dismiss for Lack of Subject

10 Matter Jurisdiction and Lack of Standing, and the Court having considered the motion, the Amended Answer,

11 and all exhibits thereto, and being duly advised in the premises: **IT IS HEREBY ORDERED** as follows:

12 **[OPTION A — GRANT MOTION TO DISMISS]** ☐ Defendant's Renewed Motion to Dismiss is

13 **GRANTED.** ☐ Plaintiff's Complaint is dismissed _____ with prejudice _____ without

14 prejudice, on the following ground(s):

15 ☐ Defective notice of termination; notice void under ORS §90.394(3) and *Hickey v. Scott*, 370 Or 97
16 (2022); this Court lacks subject matter jurisdiction.

17 ☐ Wrong plaintiff; Jim Wong individually is not the real party in interest; failure to state a claim under
18 ORCP 21 A(1)(g).

19 ☐ Indispensable party JWP WONG REAL ESTATE not joined; ORCP 26 A.

20 ☐ Defective service; ORCP 21 A(1)(e).

21 ☐ Failure to cooperate with rental assistance; ORS §90.395.

22 ☐ Plaintiff's non-appearance; ORS §105.137(3).

23 ☐ The June 5, 2026 trial date is **VACATED**. ☐ Defendant's counterclaims are dismissed **WITHOUT**

24 **PREJUDICE** and are expressly preserved for assertion in any subsequent proceeding, including any refiled

25 FED action or independent civil action. No preclusion shall arise from this dismissal as to Defendant's

26 counterclaims. ORCP 22 B; ORS §90.370(1)(a). ☐ In the alternative, this Court retains jurisdiction over

1 Defendant's counterclaims as independent claims pursuant to ORS §90.370(1)(a) and ORCP 22 B, severed
2 from Plaintiff's dismissed complaint. [**OPTION B — DENY MOTION TO DISMISS**] ☐ Defendant's
3 Renewed Motion to Dismiss is **DENIED**. ☐ This matter is set for trial on _____, 2026
4 at _____ a.m./p.m., before Judge _____. ☐ All jurisdictional objections raised
5 by Defendant are **PRESERVED** for appellate review. ☐ The Court shall determine the amount due to
6 each party on Defendant's counterclaims at trial pursuant to ORS §90.370(1)(b). This determination is
7 mandatory. [**ALL ORDERS**] ☐ Any writ of possession is **STAYED** pending resolution of this motion
8 and, if denied, pending any appeal. ☐ The Court issues written findings of fact and conclusions of law on
9 the following:
10

- 11 (a) Whether the notice accurately states the amount of rent owed;
12
13 (b) Whether Jim Wong individually is the real party in interest;
14
15 (c) Whether service was legally sufficient;
16
17 (d) Whether Plaintiff appeared at the March 2, 2026 hearing within the meaning of ORS §105.137(3);
18
19 (e) The amount due to each party on Defendant's counterclaims under ORS §90.370(1)(b); and
20
21 (f) The disposition of each counterclaim.

22 ☐ Defendant is awarded attorney fees and costs under ORS §90.255 in the amount of
23 \$_____. IT IS SO ORDERED. DATED this _____ day of _____, 2026.
24
25
26
27
28

Circuit Court Judge
Washington County Circuit Court

1 **IN THE CIRCUIT COURT OF THE STATE OF OREGON**
2 **FOR THE COUNTY OF WASHINGTON**

3
4 Case No.: **26LT03815**

I,

4 JIM WONG,
5 Plaintiff,

CERTIFICATE OF SERVICE

6 vs.

7 ASHLE' PENN,
8 Defendant, *In Propria Persona*.

9 Ashle' Penn, hereby certify that on _____ March 2026, I served a true and correct copy of the following
10 documents:

- 11 1. Defendant's Amended Answer, Affirmative Defenses, and Renewed Motion to Dismiss, with Exhibits
12 A through P;
13 2. Notice of Defendant's Renewed Motion to Dismiss; and
14 3. Proposed Order on Defendant's Renewed Motion to Dismiss

15 upon Plaintiff Jim Wong by the following method: ☐ **First-class U.S. mail**, postage prepaid, addressed

16 to: Jim Wong
17
18 _____

19 _____ ☐ **Electronic service** to: jimwong@me.com ☐ **Personal**

20 **service** at: _____ I declare under penalty of perjury under the

21 laws of the State of Oregon that the foregoing is true and correct. Date: _____
22

23
24 
25 /s/ _____
26

27 Ashle' Penn, Defendant, *In Propria Persona*

28 17548 NW Springville Rd #9, Portland, OR 97229